

The Arms Rules, 2016

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Union of India - Act

The Arms Rules, 2016

UNION OF INDIA

India

The Arms Rules, 2016

Rule THE-ARMS-RULES-2016 of 2016

Published on 15 July 2016

Commenced on 15 July 2016

[This is the version of this document from 15 July 2016.]

[Note: The original publication document is not available and this content could not be verified.]

The Arms Rules, 2016

Published vide Notification No. G.S.R. 701(E), dated 15th July, 2016

Last Updated 13th February, 2020

Ministry of Home Affairs

G.S.R. 701(E). - In exercise of the powers conferred by sections 5, 9, 10, 11, 12, 13, 16, 17, 18, 21, 41 read with section 44 of the Arms Act, 1959 (

54 of 1959

), and in supersession of the Arms Rules, 1962, except as respects things done or omitted to be done before such supersession, the Central Government hereby makes the following rules, namely:-

Chapter I

General

1.

Short title.

(1)

These rules may be called the Arms Rules, 2016.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- (I) In these rules, unless the context otherwise requires:-

(1)

"Act" means the Arms Act, 1959 (

54 of 1959

);

(2)

"air weapon" means a device that discharges a projectile from a barrel under the pressure of compressed air or other gas but that does not employ an explosive charge to do so;

(3)

"antique small arm" means [firearm which has been in existence for not less than one hundred years;]

[Substituted 'firearms manufactured before 1899' by Notification No. G.S.R. 108(E), dated 12.2.2020 (w.e.f. 15.7.2016).]

(4)

"appellate authority" means the appellate authority referred to in rule 105;

(5)

"authority" or "officer" means, except where otherwise specifically provided in these rules, the district magistrate or such other officer as may, from time to time, be notified in the Official Gazette by the Central Government;

(6)

"automatic" means a small arm or light weapon that, after each discharge, automatically performs all the steps necessary to prepare the weapon to fire again; and that will continue to fire for as long as the trigger (or other activating device) remains depressed (assuming that ammunition remains and jamming does not occur) and an automatic weapon uses a portion of the energy from a firing cartridge to extract the spent cartridge case from the firing chamber and eject it from the weapon, cock the firing mechanism and load a new round of ammunition from the weapon's feed-device or magazine into the firing chamber and if the trigger or other activating device remains depressed, the firing pin is automatically released to begin a new firing cycle;

(7)

"blank cartridge" means a cartridge without a bullet or any other projectile;

(8)

"blank firing firearms" means firearms capable of firing a blank cartridge;

(9)

"bullet" means the conical head of the cartridge normally made of lead or copper that is expelled out of barrel or cylinder by means of explosive charge or compressed air or other gas;

(10)

"caliber" means the internal diameter or bore of the barrel of a firearm measured in inches or millimeters or geometric circumference;

(11)

"carry" means to bear a small arm, upon, about or in the proximity of one's person;

(12)

"cartridge" means a complete object consisting of a cartridge case, primer, propellant, bullet or any single or multiple projectile;

(13)

"chartered accountant" means a chartered accountant as defined in clause (b) of sub-section (1) of section 2 of the Chartered Accountants Act, 1949 (

38 of 1949

) who holds a valid certificate of practice under sub-section (1) of section 6 of that Act;

(14)

"company" has the same meaning as assigned to it in the Explanation under section 33 of the Act;

(15)

"conversion" of firearm refers to a permanent change of caliber or bore of a firearm and includes replacement or relining or re boring of a barrel having an integral or separate chamber, replacement of cylinder and/or barrel or related parts and change in configuration of action or mechanism of a firearm but does not include converting a permissible category firearm into a restricted or prohibited category firearm;

(16)

"configured for military use" means firearms and ammunition (other than small arms and light weapons) manufactured and configured according to specifications set by the Department of Defense Production, Ministry of Defense;

(17)

"curio" means a small arm manufactured at least fifty years prior to the current date or certified by the curator of a Government regulated museum or that derives at least half of its monetary value from the fact that it is novel, rare, bizarre, or associated with some historical figure, period, or event and includes an antique small arm;

(18)

"deactivation" means to render a small arm or light weapon incapable of expelling or launching a shot, bullet, missile or other projectile by the action of an explosive, and which cannot be readily restored to its original capability, and that has been certified and marked as deactivated by an accredited gunsmith or a competent State authority.

Explanation. - Deactivation requires that all pressure-bearing components of a small arm or light weapon be permanently altered in such a way so as to render the weapon unusable and includes modifications to the barrel, bolt, cylinder, slide, firing pin and receiver or frame;

(19)

"dealer" means a person who, by way of trade or business, buys, sells, tests (other than proof-test), exports, imports or transfers or keeps for sale, or test (other than proof-test) arms or ammunition and includes the Sports Authority of India (SAI), the National Rifle Association of India (NRAI) and the State Rifle Associations affiliated to NRAI or directly affiliated units of NRAI;

(20)

"dedicated sports person" means a person who actively participates in sports-shooting and who is a member of an accredited sports shooting organization;

(21)

"electronic disabling device" means an electronic device capable of firing electrode projectiles propelled by compressed gas, which stays connected to the main unit or device by a conductive wire, and causes temporary neuro-muscular incapacitation of the target;

(21A)

["existing manufacturer" means any manufacturer holding manufacturing licence under the Arms Rules, 1962 in Form IX or under the Industrial Development (Regulation) Act, 1951 or rules framed thereunder on the date of notification of these rules;]

[Inserted by Notification No. G.S.R. 1342(E), dated 27.10.2017 (w.e.f 15.7.2016).]

(22)

"Government arms" means a firearm or other weapon which is the property of Government; and "Government ammunition" means ammunition manufactured in any Government factory or prepared for and supplied to Government other than such ammunition as may be released by Government for civilian use;

(23)

"gunsmith" means any person who performs work of minor or major repairs of firearms and subject to grant of prior permission of the licensing authority, may alter the caliber or barrel length of a firearm or perform such other work as may be specified by the licensing authority;

(24)

"handgun" means a small arm with a short stock at an angle to and extending below the line of the barrel, that is designed to be held and fired with one hand and includes pistols and revolvers;

(25)

"in-transit" means the conveyance through India to another country of firearms or ammunition that have been imported;
(26)

"firearm replica" means an object designed to resemble a firearm which has an appearance that is so realistic as to make it indistinguishable, for all practical purposes, from a real firearm and which has been rendered innocuous;
(27)

"Form" means a Form as set out in Schedule III of these rules;
(28)

"light weapon" means any man-portable weapon designed for use by two or three persons serving as a crew (although some may be carried and used by a single person) that expels or launches, is designed to expel or launch, or may be readily converted to expel or launch a shot, bullet or projectile by the action of an explosive and includes, inter alia, heavy machine guns, hand-held under barrel and mounted grenade launchers, portable anti-aircraft guns, recoilless rifles, portable launchers of antitank missile and rocket systems, portable launchers of anti-aircraft missile systems, and mortars of a caliber of less than 100 millimeters, as well as their parts, components and ammunition;
(29)

"main firearm component" means the barrel, frame or receiver, slide, bolt or breech-block of a firearm;
(30)

"manufacturer" means a person, who manufactures, sells, tests (other than proof-test), exports, imports or transfers or keeps for sale, or test (other than proof-test) firearms, their parts, components or ammunition or arms other than firearms;
(31)

"manufacturing" means making, producing or assembling: -

- (i)
a complete firearm;
- (ii)
a pressure-bearing part or component of a firearm (e.g. barrel, slide, cylinder, bolt, breech lock, firing pin, etc.);
- (iii)
ammunition for firearm; or
- (iv)
an arm other than a firearm, and includes -
 - (i)
reactivating a deactivated firearm; and
 - (ii)
substantially modifying the function of a firearm (e.g. conversion to fully automatic), but does not include -
 - (i)
repair, restoration, maintenance or cosmetic enhancement or alteration of a firearm; nor
 - (ii)
the non-commercial reloading of ammunition;

(32)

"marking" means application of permanent inscriptions on firearms, ammunition and ammunition packaging to permit their identification;

(33)

"muzzle energy" means the kinetic energy of a projectile as it is expelled from the muzzle of a firearm and expressed in joules or foot-pounds;

(34)

"NDAL" means National Database of Arms Licenses;

(35)

"paintball" means a projectile (spherical gelatin capsule) that primarily consists of non-toxic water soluble substances and dye designed to mark a person or an object;

(36)

"paintball marker or paintball gun" means a device capable of firing paint-balls by use of an expanding gas or compressed air, whether operated mechanically or electro-pneumatically;

(37)

"parts and components" mean any element or replacement element specifically designed for a firearm and essential to its operation and includes barrel, frame or receiver, slide or cylinder, bolt or breech block, and any device designed or adapted to diminish the sound caused by firing;

(38)

"pistol" means a handgun with a chamber as an integral part of, or permanently aligned with, the barrel;

(39)

"port" includes a seaport, an airport and a land port;

(40)

"rimless" means a cartridge where the rim has the same diameter as the base of the case and used in firearms that feed from a box magazine;

(41)

"rimmed cartridge" means where the rim has a significantly larger diameter than the base of the cartridge with the rim serving to hold the cartridge at the proper depth in the chamber;

(42)

"revolver" means a handgun with a breech-loading, chambered cylinder so arranged that the cocking of the hammer or depression of the trigger rotates the cylinder and brings the next cartridge in line with the barrel for firing;

(43)

"repair" of firearm may be minor or major -

'minor repair' includes -

(i)

cleaning and carrying out re-finishing, fixing slings, recoil pads, installation of pre-fabricated stock, general accessories, preservative packaging and ensuring accuracy or safe working of the firearm and its components;

(ii)

fabricating or replacing or working on old, damaged, worn-out, eroded, shot-out part of a firearm (excluding barrels or receivers or frames or breech bodies or bolts) for the purpose of repair and safe functioning;

(iii)

making and replacing stocks, grips (butt stock) and other parts;

(iv)

ensuring accuracy or safe working of the firearm by means of carrying out work on complete barreled action, fabricating, fitting or adjusting optics, sights, other components, etc., including test firing;

(v)

making and installing accessories and tuning fabricated parts.

'major repair' requires extensive primary and secondary machining operations of critical parts and includes -

(i)

working on critical parts including fabrication of components like barrels and actions (re-boring or re-chambering or replacing or remaking barrels, re-machining of receivers or frames, bolts, slides, cylinders, breech, etc. and other components) for the purpose of repair or conversion;

(ii)

shortening, conversion, working on triggers, safeties and general safety testing of firearms and devices including firing or testing of firearms repaired or converted.

(44)

"responsible person" means in the case of a company, the person nominated in an application for an arms license by a company;

(45)

"rifle" means a small arm designed to expel, through the action of an explosive, a single projectile through a rifled barrel, while supported against the shoulder and held with both hands;

(46)

"Schedule" means a Schedule appended to these rules;

(47)

"selective fire" means capability of a small arm or light weapon that can be adjusted to fire in two or more of the following

ways:

(i)

semi-automatic (i.e. one shot per depression of the trigger);

(ii)

multi-shot burst (i.e. a set number of shots per depression of the trigger); or

(iii)

automatic (i.e. continuous fire while the trigger is depressed)

(48)

"self-loading" means semi-automatic;

(49)

"semi-automatic" means a small arm or light weapon that, after each discharge, automatically performs all of the steps necessary to prepare the weapon to fire again, but that requires a separate depression of the trigger to fire each round of ammunition;

(50)

"shotgun" means a small arm designed to expel, through the action of an explosive, shot or a single projectile through a smooth-bored barrel, while supported against the shoulder and held with both hands;

(51)

"small arm" means any man-portable lethal weapon designed for individual use (of caliber up to 12.7 mm) that expels or launches, is designed to expel or launch, or may be readily converted to expel or launch a shot, bullet or projectile by the action of an explosive and includes inter alia, revolvers and self-loading pistols, rifles and carbines, sub-machine guns, assault rifles and light machine guns, as well as their parts, components and ammunition but does not include antique small arms and firearm replica.

Note: - Shotguns, sporting rifles and muzzle loading black powder firearms, though of caliber of more than 12.7 mm are also covered under small arms;

(52)

"sport-shooting" means competitive and recreational sports that involve tests of proficiency (accuracy and speed) using permissible category of firearms, ammunition and targets;

(53)

"section" means a section of the Act;

(54)

"trade transfer" means sale or transfer of arms or ammunition between a manufacturer and a dealer or between a dealer and another dealer during the normal course of the business and includes a sale or transfer on consignment basis;

(55)

"unloaded" means that any propellant, projectile or cartridge which can be discharged from the firearm is not contained in the breech-block or firing chamber of the firearm nor in the cartridge, magazine or cylinder attached to or inserted into the firearm;

(56)

"use of a firearm" includes displaying, aiming and firing as well as manipulating the working parts of a firearm but does not include cleaning or maintenance;

(57)

"UIN" means Unique Identification Number generated in NDAL for a licensee under these rules.

(II)

Words and expressions used but not defined in these rules shall have the meanings respectively assigned to them in the Act.

3.

Classification of arms and ammunition.

- For the purposes of the Act and these rules, arms and ammunition shall be of the categories specified in columns (2) and (3) respectively of Schedule I and references to any category of arms or ammunition in these rules shall be construed accordingly.

4.

License for arms other than firearms and applicability of section 4.

(1)

Unless the Central or the State Government by notification in the Official Gazette so directs, no license shall be required for the manufacture, sale, possession for sale or test, of arms of category V in Schedule I except in the areas notified under section 4.

(2)

In any area specified in the notification issued by the Central Government under section 4 of the Act, license for acquisition, possession or carrying in that area of arms of such class or description as may be specified in that notification may also be granted or renewed as provided in Schedule II, subject to such conditions as may be specified in these rules, that Schedule and in the license.

Chapter II

Licensing Procedure

5.

Licensing authority and forms of licenses

- Licenses under Chapter II of the Act may be granted or renewed for, such purposes, by such authorities, in such forms and to be valid for such period and in such areas as are specified in Schedule II, subject to such conditions as are specified in these rules, that Schedule and in the license:

Provided that the licenses granted or renewed by a licensing authority may be signed by such officer subordinate to that authority as may be specially empowered in this behalf by the State Government.

6.

Restriction in granting licenses for acquisition, possession or carrying of arms or ammunition of category I of Schedule I

- No license shall be granted for acquisition, possession or carrying of arms or ammunition specified in category I(b) or I(c) in Schedule I unless they have been legally manufactured in India or lawfully possessed or lawfully imported into India or are being imported into India with the sanction of the Central Government.

7.

Licensing authorities to furnish information to district magistrate

(1)

A copy of every license granted for arms or ammunition specified in category I(a), I(b), I(c) and category II in Schedule I shall forthwith be sent to the district magistrate of the place in which the arms or ammunition are to be kept.

(2)

A copy of every other license granted in any Form by any authority other than a district magistrate shall be sent forthwith to the district magistrate having jurisdiction over the area in which the place of business or residence of the licensee is situated.

(3)

The licenses granted under sub-rule (1) and sub-rule (2) shall be intimated through NDAL system to the district magistrate of the place having jurisdiction over the area in which the place of business or residence of the licensee is situated.

8.

Possession of arms or ammunition for certain purposes to include use thereof.

- Possession of the following arms or ammunition for the purposes mentioned against each, includes use thereof, for such purposes only provided that such use does not involve manufacture of any arms or ammunition (including explosives and fireworks) :-

(a)

arms for theatrical performance, historical re-enactment, historical research (including assessment of performance), cinematograph or television production or signaling for starting races or athletic meets and safety equipment including signal flare guns, line throwing guns, avalanche cannon, etc.;

(b)

ingredients of ammunition including sulphur and chlorates for bona fide industrial, agricultural or medicinal purposes.

9.

Restrictions by Central Government in certain cases.

- Any license having effect outside the State in which it is granted, shall be subject to any restrictions, which may be imposed by a general or special order of the Central Government.

10.

Safe use and storage of firearms.

(1)

Every applicant applying for a license in Form II, Form III and Form IV; or a rifle club or association or firing range or staff employed by such club, association or firing range, applying for a license in Form V; or a manufacturer or dealer or gunsmith or staff employed by such manufacturer, dealer or gunsmith applying for a license in Form VII, Form VIII, Form IX or Form IX-A, shall be required to complete arms and ammunition safety training course which shall include -

(a)

basic arms and ammunition safety practices, including safe handling and carry procedures;

(b)

firing techniques and procedures;

(c)

care of arms and ammunition;

(d)

safe storage and transportation of arms and ammunition;

(e)

reasonable working knowledge of important provisions of the Act and these rules; and

(f)

responsibilities of the arms owner or user, particularly in relation to children.

(2)

The safety training course under sub-rule (1) shall be conducted by the accredited trainer or master accredited trainer having license under rule 39, who shall issue a certificate in Form S-1, to the applicant, on successful completion of the said course.

(3)

The effective date and duration of the safety training course as laid down in sub-rule (1) shall be notified by the Central Government by issuing a general or special order in this regard.

(4)

Every application for a license in Form II, Form III and Form IV shall be accompanied by -

(a)

a written undertaking that the applicant has the capacity to store the firearm safely and securely in a safe or steel almirah in order to minimize the risk that it could be stolen or accessed by someone other than the licensee; and

(b)

a written undertaking to practice safe storage of the firearm (in knocked down condition) and its ammunition and to educate the children about the dangers of interacting with arms and ammunition, in Form S-2.

(5)

The licensing authority responsible for the grant or renewal of a license shall conduct periodic inspections of the premises of companies, dealers, gunsmiths and manufacturers where arms and ammunition are stored in order to ensure compliance with safe storage requirements.

(6)

[Small arms falling under the category of curio shall be kept securely and out of reach of other persons by the owner. Such small arms shall not be used, carried or transported without the prescribed licence.

(7)

No licence is required for Indian citizens for acquisition, possession of small arms falling under the category of curio. However, appropriate licence as prescribed would be required for use or to carry or transport such small arms. Without the endorsement of such firearms in the prescribed licence of the owner, no ammunition shall be sold for their use.]

[Inserted by Notification No. G.S.R. 108(E), dated 12.2.2020 (w.e.f. 15.7.2016).]

11.

Application for license.

(1)

Every application for the grant of a license under these rules -

(a)

shall be submitted in Form A-1 to A-14 as applicable to the category of the license applied;

(b)

may be presented by the applicant in person or sent through the medium of post office or filed electronically or otherwise, to the licensing authority, as far as possible, having jurisdiction in respect of the place where he ordinarily resides or has his occupation.

(2)

Where the grant of license requires a certificate of no objection from some other authority as provided in rule 98, shall state whether such certificate has been obtained and, if so, be supported by evidence thereof either in physical form or by an electronically generated confirmation on NDAL system for the particular UIN of the applicant.

(3)

Every application for grant of license for special category under Chapter III of these rules, shall be subject to such additional requirements specified for these categories in that chapter.

(4)

Every application in Form A-1 submitted by an individual for grant of a license in Form II, Form III or Form IV shall be accompanied by the following documents, namely:-

(a)

four passport size copies of the latest photograph of the applicant (in white background);

(b)

proof of date of birth;

(c)

identification proof ?

(i)

Aadhar Card; or

(ii)

in case the applicant does not have Aadhar Card, a written declaration in the form of an Affidavit to be submitted in this regard along with an alternative identification proof which may include Passport or Voter's Identification Card or Permanent Account Number (PAN) card or Identity Card issued to the employees;

(iii)

in case of exemptee sports persons, shooters identification card issued by the National Rifle Association of India.

(d)

residence proof in case the applicant does not possess Aadhar Card or Passport, which may include ?

(i)

voter's identification card; or

(ii)

electricity bill; or

(iii)

land-line telephone bill; or

(iv)

rent deed or lease deed or property documents; or

(v)

any other document to the satisfaction of the licensing authority.

(e)

safe use and storage of firearms undertaking referred to in sub-rule (4) of rule 10;

(f)

for professional category applicant, referred to under clause (a) of sub-rule (3) of rule 12, self-attested copies of the educational and professional qualification certificates, wherever applicable;

(g)

medical certificate about mental health and physical fitness of the applicant with specific mention that the applicant is not dependent on intoxicating or narcotic substances (in Form S-3);

(h)

in case of an application for a license in Form IV, the particulars specified in sub-rule (2) of rule 35 along with a permit

from the authority empowered under the Wild Life (Protection) Act, 1972 (53 of 1972

);

(5)

Every application in Form A-2 submitted by a company for the grant of a license in Form II or Form III, shall be accompanied by the following documents, namely:-

(a)

written undertaking on the letter head of the applicant duly signed by the responsible person defined under clause (44) of rule 2;

(b)

original copy of the board resolution passed or an authority letter confirming the appointment of responsible person referred to in clause (a);

(c)

certified copies of the founding documents of the company including Memorandum and Articles of Association;

(d)

safe use and storage of firearms undertaking referred to in sub-rule (4) of rule 10.

(6)

An application by a member of the armed forces of the Union shall be made through his Commanding Officer to the licensing authority having jurisdiction in respect of the place to which he is for the time being posted.

(7)

The licensing authority may, in accordance with any instructions issued by the State Government in respect of all or any class of firearms, require the personal attendance of the applicant before granting the license under this rule.

(8)

The applicant shall not suppress any factual information or furnish any false or wrong information in the application form. 12.

Obligations of licensing authority in certain cases.

(1)

Save as otherwise provided in the Act, every licensing authority granting a license in Form III to an individual for the restricted or permissible arms or ammunition as specified in category I(b) and I(c) or category III respectively in Schedule I, shall have due regard to the application of norms specified in sub-rules (2) and (3).

(2)

For grant of a license for the restricted arms or ammunition specified in category I(b) and I(c) in Schedule I, the licensing authority, may consider the application of?

(a)

any person who faces grave and anticipated threat to his life by reason of -

(i)

being resident of a geographical area or areas where militants, terrorists or extremists are most active; or

(ii)

being the prime target in the eyes of militants, terrorists or extremists; or

(iii)

facing danger to his life for being inimical to the aims and objectives of the militants, terrorists or extremists; or

(b)

any Government official who by virtue of the office occupied by him or by the nature of duty performed by him and/or in due discharge of his official duty is exposed to anticipated risk to his life; or

(c)

any Member of Parliament or Member of Legislative Assembly, who by virtue of having close or active association with anti-militant, anti-terrorist or anti-extremist programmes and policies of the Government or by mere reason of holding views, political or otherwise, exposed himself to anticipated risk to his life; or

(d)

any family member or kith and kin of a person who by the very nature of his duty or performance (past or present) or position occupied in the Government (past or present) or even otherwise for known or unknown reasons exposed

himself to anticipated risk to his life; or

(e)

any other person, for any legitimate and genuine reason, to the satisfaction of the licensing authority, by passing of a speaking order in this regard:

Provided that before grant of a license under this sub-rule, the licensing authority based on the recommendations of the district magistrate and of the State Government concerned and on examination of the police report and after conducting a separate verification from its own source, shall satisfy itself that the applicant requires such license.

(3)

For grant of a license for the permissible arms or ammunition specified in category III in Schedule I, and without prejudice to the provisions contained in clause (a) of sub-section (3) of section 13, the licensing authority, based on the police report and on his own assessment, may consider the applications of ?

(a)

any person who by the very nature of his business, profession, job or otherwise has genuine requirement to protect his life and/or property; or

(b)

any dedicated sports person being active member for the last two years, of a shooting club or a rifle association, licensed under these rules and who wants to pursue sport shooting for target practice in a structured learning process; or

(c)

any person in service or having served in the Defense Forces, Central Armed Police Forces or the State Police Force and has genuine requirement to protect his life and/or property.

13.

Time limit for grant of license.

- The licensing authority, after considering the application and on being satisfied that the applicant has fulfilled the eligibility conditions, shall grant or refuse to grant a license for permissible category of arms or ammunition specified in category III of Schedule I, to any person by recording in writing the reasons for such grant or refusal, by passing a speaking order, within a period of sixty days of the receipt of the police report:

Provided that the licensing authority shall specify, the type of arms and ammunition to be procured by the applicant after assessing the reason and the need for possession of the type of arms and ammunition applied for by the applicant, considering its lethality or fire-power.

14.

Time limit for police report for grant of licenses.

(1)

On receipt of an application for grant of a license under sub-section (1) of section 13 or every subsequent renewal thereof under section 15, the licensing authority shall call for a report of the officer-in-charge of the nearest police station on that application, and such officer shall send his report in Form S-4, within a period of thirty days from the date of receipt of application by him.

(2)

The Central Government may by issuance of a general or special order, extend the period of thirty days as specified in sub-rule (1) up to ninety days for certain areas or States for any reason deemed appropriate by it.

(3)

The licensing authority may in case of non-receipt of police report within the period of thirty days under sub-rule (1) or within the extended period under sub-rule (2), make an order in writing for grant or refusal of license, without further waiting for the report.

15.

Maintenance of records in electronic format and consolidation of licenses.

(1)

Every licensing authority and the renewing authority specified in Schedule II, while granting a license or renewing a license, thereof, shall enter the data of the record locally in an electronic format specified by the Central Government.

(2)

[Every licensing authority and the renewing authority shall also enter such data in the NDAL system which shall

generate a unique identification number (UIN) and with effect from the [30th June, 2020]

[Substituted by Notification No. G.S.R. 644(E), dated 12.7.2018 (w.e.f. 15.7.2016).]

, any arms license without UIN shall be considered invalid.]

(3)

The UIN so generated under sub-rule (2) shall be unique for a licensee.

(4)

[Any existing licensee holding multiple licenses in Form III shall on or before the [30th June, 2020]

[Substituted by Notification No. G.S.R. 644(E), dated 12.7.2018 (w.e.f. 15.7.2016).]

, make an application for grant of a single license in respect of all the firearms held by him under his UIN, to the concerned licensing authority:

Provided that where the applicant applying a license for restricted category of arms or ammunition specified in Schedule I is also a holder of a licence for permissible category of arms or ammunition specified in the said Schedule; or where the applicant, applying for permissible category of arms or ammunition is also a holder of a licence for restricted category of arms or ammunition specified in the said Schedule, the licensing authority concerned shall issue a new licence for such restricted or permissible category of arms or ammunition, as may be applicable, under the existing UIN of the licensee;

[Provided further that separate licence either in book form or in electronic form shall be generated in case of each licence in Form II, Form III, Form IIIA and Form IV and in case of a licence in Form III, separately for restricted and permissible categories of arms and ammunition specified in Schedule I, with an overall ceiling of two firearms under a single UIN]

[Substituted by Notification No. G.S.R. 108(E), dated 12.2.2020 (w.e.f. 15.7.2016).]

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(5)

The licensing authority on receipt of an application from a multiple license holder under sub-rule (4) shall cancel the existing multiple licenses of the applicant and issue in lieu thereof, a new license endorsing therein, all the existing firearms of the said licensee.

(6)

The period of validity of the new license so issued by the licensing authority under sub-rule (5) shall be the farthest period as mentioned in any of the canceled licenses and the area validity endorsed on the new license shall be the more extensive area in any of the canceled licenses.

16.

Duty of licensing authority under NDAL.

(1)

The licensing authority, while granting or renewing a license or at the time of providing any allied service to any licensee under these rules shall ensure that the data of the transaction approved by him, is simultaneously updated in the electronic format locally and on the NDAL system under its log-in ID:

Provided that the licensee shall not be held accountable for failure on the part of the licensing authority to update such data in the electronic format.

(2)

The licensing authority shall ensure compliance of delivery of different services specified in column (2) of Schedule V, within the time specified in column (4), of the said Schedule.

17.

Registration of license with an outside licensing authority and change of address with existing licensing authority.

(1)

If a person who holds a license in Form III changes his place of residence, permanently, or temporarily for a period of more than six months, and carries with him the arms covered by the license, to a place falling, other than within the jurisdiction of the existing licensing authority indicated in the license, he shall, immediately before the expiry of a period of six months, send intimation about such change to the licensing authority of the place of his new residence and shall on demand, forthwith produce the license and the arm or arms to the new licensing authority by applying in Form B-1 and indicating there in the particulars of his new residence.

(2)

The licensing authority of the new place of residence of the licensee on receiving an application in Form B-1 under sub-rule (1), shall within a period of fifteen days, register the licensee in the NDAL system whereby the UIN of the licensee shall stand activated and transferred to its jurisdiction and de-activated from the records of the original licensing authority or the last renewing authority as the case may be and thereupon a new license book shall be issued to the licensee and such new authority shall be the licensing or the renewing authority in relation to the said license.

(3)

Where the licensee changes his permanent place of residence within the jurisdiction of the existing licensing authority, he shall forthwith inform the same to the licensing authority with the proof of his new place of residence and if such change has resulted in change of jurisdiction of police station, along with information of the police station of his new place of residence and the licensing authority shall within a period of fifteen days, register the change of residence of the licensee in the NDAL system whereby the UIN of the licensee shall stand activated under the new police station and de-activated from that of the last police station.

18.

Permission for possession of arms to be acquired subsequent to grant of license.

- When a license is granted in Form II, Form III, Form IV or Form V for the possession of arms to be acquired by the licensee subsequent to the grant of the license, the authority granting the license shall at the time of granting the same, direct that the arms covered by the license shall be acquired within a period of two years and that the license or the arms or both shall be produced for his inspection and if within the said period of two years, the licensee fails to acquire the arms and to produce the license, or the arms or both, as the case may be, the license shall cease to be in force:

Provided that the licensing authority may extend the period of two years by a further period of one year, on the basis of a written representation received from the licensee and after recording the reasons for granting such an extension:

Provided further that if during the period of two years or the extended period of one year, as the case may be the licensee wishes to acquire and possess any arm or arms of a different description and the licensing authority has no objection to allow the acquisition and possession of such arm or arms, he may amend the license accordingly:

Provided also that where the licensee changes his place of residence, after the grant of license but before acquisition of any arm, he may produce the license or arm or both for inspection before the licensing authority of the place of his new residence to which the licensee may have shifted and the said authority on inspecting the arm, shall register and update the information on NDAL system:

Provided also that the provisions contained in this rule shall apply mutatis mutandis to any acquisition of an additional arm or arms which the licensee may desire to acquire subsequent to grant of license on account of sale or transfer or disposal of the arm or arms already possessed or otherwise as a fresh acquisition subject to the [overall limit of two firearms]

[Substituted 'overall limit of three firearms' by Notification No. G.S.R. 108(E), dated 12.2.2020 (w.e.f. 15.7.2016).]

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19.

Extension of area validity of license.

(1)

On receipt of an application from a licensee holding a license in Form III, the licensing authority may extend the area of validity specified in his license, if he is satisfied about the need of such extension subject to the condition that the licensing authority has the power to grant a license in relation to the area to which extension is being sought.

(2)

The application for extending the area validity for whole of India may be granted by the licensing authority as specified in column (5) of Schedule II, in respect of the following category of licensees, namely: -

(a)

Union Ministers or Members of Parliament;

(b)

Personnel of Defense Forces and Central Armed Police Forces;

(c)

Officers of All-India Services;

(d)

Officers in the Government or Government Sector Undertakings or Public Sector Undertakings with liability to serve

anywhere in India;

(e)

Dedicated sports persons and the sports persons specified in serial numbers (1) to (4) of the table in sub-rule (2) of rule 40.

(3)

In other cases, where the licensing authority is satisfied that the nature of business or profession of the applicant requires him to carry arm or arms frequently beyond the existing jurisdiction and such a requirement may not be met by the issuance of a journey license in Form XI of these rules, the application for extending the area validity for whole of India may be granted by the licensing authority specified in column (5) of Schedule II to the applicant.

(4)

[The Area validity granted under sub-rule (3) shall not terminate with the validity period of the licence and the renewing authority shall not vary the area validity at the time of renewal of licence:

Provided that where in any case, the renewing authority on the basis of some material evidence, is satisfied that area validity for the whole of India is not required anymore, it may send the recommendations to the licensing authority concerned for review of the area validity.]

[Inserted by Notification No. G.S.R. 1342(E), dated 27.10.2017 (w.e.f. 15.7.2016).]

20.

Additional licenses for individuals.

(1)

The holder of a license in Form III, for permissible category of firearms, as specified in Schedule I, may apply for grant of additional license for any two of his close relatives who are not in possession of any license in Form III and who are residing with him at the address given in the license, to possess, carry or use any of the arms or ammunition covered by his license and the licensing authority shall grant a license to such additional licensee if the eligibility conditions under the Act and these rules are fulfilled by the said additional licensee and there are no adverse remarks in the police report.

(2)

The additional licensee under his UIN shall be granted a separate license, with the arms and ammunition of the parent license endorsed thereupon:

Provided that the additional licensee shall not be permitted to, acquire any arms or ammunition on his license.

(3)

The additional licensee shall not obtain a license in his individual capacity during the period he holds an additional license under this rule.

(4)

The licensing authority shall ensure that the details of additional licensees are endorsed on the parent license and the period of validity and the area validity of the additional license are pari-passu with that of the parent license and if the parent license is suspended, revoked or canceled, the additional licenses shall also be subject to the same consequence.

(5)

The additional licensee shall not sell or transfer the arms and ammunition endorsed on his license.

(6)

In case the holder of an additional license shifts temporarily or permanently from the premises of the parent licensee, such additional license shall automatically lapse and the person to whom such additional license was issued, shall return his license to the licensing authority by whom the license was issued and the responsibility for furnishing such intimation to the licensing authority shall be that of the parent licensee.

(7)

The parent licensee may request the licensing authority to revoke or cancel the license of any of his additional licensees by submitting an application along with the original license and in all such cases, the licensing authority shall revoke or cancel the license of the additional licensee.

Explanation. - For the purposes of this rule, 'close relatives' mean spouse, son, daughter, brother and sister.

21.

Retainers for exemptees.

(1)

A license in Form III-A for possession and carrying of arms or ammunition may be granted to a person nominated to be his retainer by a person exempted under section 41 of the Act from licensing requirements:

Provided that the retainer shall have no right, independent of the person so exempted, to use the arms or ammunition covered by the license, and the license shall cease to be in force on the day on which the person so exempted has ceased to be an exemptee, or the retainer has ceased to be a nominee of the exemptee.

(2)

The licensing authority shall obtain a report from the Police, about the antecedents of the retainer nominated under sub-rule (1) and take into consideration such report before admitting him as a retainer in a license granted in Form III-A.

22.

Retainers for companies.

(1)

A license in Form II or Form III granted to a company for the protection of its premises or property shall be in the name (with designation) of the responsible person who shall be accountable and responsible for the custody of the arms and ammunition.

(2)

The name of a servant or any other employee entrusted with the arms and ammunition for guarding the premises or property of the company shall be entered as a retainer in the license.

(3)

The licensing authority shall issue to the licensee a permit in Form III-B for each of such retainers shown in the license and such permit shall remain in the personal custody of the responsible person of the company and shall be handed over to the retainers when they are entrusted with the arms and ammunition covered by the license:

Provided that the licensee at the time of making application for retainer shall submit along with the application in Form B-3, four recent passport size photographs of the retainer to be appointed and the proof of his employment with the company:

Provided further that the licensing authority, shall obtain a report from the Police about the antecedents of the retainer and take into consideration such report before admitting him as a retainer.

(4)

On an application from a company, holding a license in Form II or Form III, for a change of the responsible person of the company in whose name the license has been granted or of a retainer included in the license, the necessary amendments may be made in the license by the licensing authority.

23.

Restriction on the quantity of ammunition used in breech loading firearms.

(1)

For the purposes of the Act and these rules, quantity of ammunition for the licenses granted in Form II, Form III or Form IV for breech loading firearms shall be restricted as under, namely:-

Maximum purchasable during a calendar year(per firearm)

200

Maximum to be possessed at any given time(per firearm)

100

(2)

(a)

Notwithstanding anything contained in sub-rule (1), the State Government concerned may allow a higher quantity of ammunition in exceptional cases on merits and on the basis of good and sufficient reasons to be recorded in writing.

(b)

The Central Government in the Ministry of Home Affairs may allow a higher quantity of ammunition in exceptional cases by issuance of a general or special order in this regard.

24.

Renewal of licenses.

(1)

Every license may, at its expiration and subject to the same conditions (if any) as to the grant thereof, be renewed by the authority mentioned in Schedule II as renewing authority within a period of thirty days of receipt of the police report:

Provided that the license so renewed may be signed in the appropriate column of the license by such officer as may be specifically empowered in this behalf by the State Government under rule 5.

(2)

An application for renewal of a license for arms or ammunition shall be filed in the Form wherein specified at least sixty days prior to the expiry of the said license with the licensing authority along with the documents wherein specified in the Form:

Provided that in the case of arms and ammunition deposited under sub-rule (1) of rule 48, the renewal application may be filed either by the depositor, or where it is not practicable to make the application direct, through the dealer or any other person authorized by him in writing in this behalf, while the arms or ammunition continue to be so deposited.

(3)

The authority issuing a license shall ordinarily be responsible for watching all future renewals of the license:

Provided that where a licensee notifies a change of his place of residence, permanently or temporarily for a period of more than six months, to the licensing authority of the district in which the renewal is sought, the licensing authority of that district shall thenceforth become responsible for watching all future renewals of his license.

(4)

The new renewing authority shall, in respect of a licensee who notifies a change of his place of residence under sub-rule (3), register the licensee under its own jurisdiction in accordance with the provisions specified in rule 17 and carry out the renewal thereof and forthwith, inform the original issuing or last renewing authority.

(5)

The licensing authority may consider an application for renewal of a license, if the period between the date of its expiry and the date of application is not, in his opinion, unduly long with due regard to the circumstances of the case, and all renewal fees are paid; otherwise the application may be treated as one for grant of a fresh license.

(6)

The licensing authority may, in accordance with any instructions issued by the State Government in respect of all or any class of firearms, require the personal attendance of the applicant before renewing the license under this rule.

25.

Grant of licenses to legal heirs.

(1)

The licensing authority may grant a license -

(a)

after the death of the licensee, to his legal heir; or

(b)

in any other case, on the licensee attaining the age of seventy years or on holding the firearm for twenty five years, whichever is earlier, to any legal heir nominated by him:

Provided that notwithstanding the provisions contained in rule 12 of these rules, the licensing authority may grant a license to such legal heir if the eligibility conditions under the Act and these rules are fulfilled by the said legal heir and there are no adverse remarks in the [police report:]

[Substituted 'police report.' by Notification No. G.S.R. 108(E), dated 12.2.2020 (w.e.f. 15.7.2016).]

[Provided further that while granting arms licence on inheritance or heirloom basis, the limit of two firearms shall not be exceeded.]

[Inserted by Notification No. G.S.R. 108(E), dated 12.2.2020 (w.e.f. 15.7.2016).]

(2)

Where a licensee leaves behind more than one legal heir and the legal heirs decide amongst themselves to retain the arm or arms of the deceased, one of the legal heirs nominated by all other legal heirs may apply for a license under sub-rule (1) along with the following documents, namely:-

(i)

a declaration of no-objection from the remaining legal heirs;

(ii)

an indemnity bond executed by the applicant giving full details of the license and the arm or arms endorsed thereupon; and

(iii)

a copy of the death certificate of the deceased licensee.

(3)

Where the legal heirs decide to dispose of the arm or arms endorsed on the license of the deceased licensee, they may apply to the licensing authority for grant of a limited period permission to sell the arm or arms, within the time allowed by such authority, to any licensed dealer or to any other person entitled to possess an arm under these rules.

Explanation. - For the purposes of this rule, 'legal heir' [includes father, mother,]

[Substituted 'includes' by Notification No. G.S.R. 108(E), dated 12.2.2020 (w.e.f. 15.7.2016).]

husband, wife, son, daughter, son-in-law, daughter-in-law, brother, sister and grandchildren of the licensee or the deceased licensee.

26.

[Form of certain licences.

[Substituted by Notification No. G.S.R. 108(E), dated 12.2.2020 (w.e.f. 15.7.2016).]

- A licence in Form II, Form III, Form IIIA, Form IV or Form V generated under the UIN of the licensee in NDAL system, shall either be in book form serially numbered or in electronic form and strictly as per the formats specified in the rules and in case of individuals, shall contain the latest photograph of the licensee:

Provided that the licence in book form for restricted category of firearms shall be of dark maroon colour and for permissible category of firearms shall be of navy blue colour:

Provided further that the licensing authority may levy fee as specified in Schedule IV for providing licence in book form, or issue the licence in electronic form containing details as notified by a local or special order issued by the Central Government including levy of the fee for such electronic form of licence.]

27.

Fees for licenses.

(1)

(a)

Every license granted or renewed under these rules shall, save as herein otherwise expressly provided, be chargeable with the fee (if any) specified in Schedule IV.

(b)

In any case where fee is prescribed for a year, fee for a fraction of a year shall be the same as for a whole year.

(2)

Where a licensee submits his application for renewal of his license after the expiry of the period for which the license was granted, the licensing authority may, if he decides to renew the license, at his discretion, levy -

(a)

full fee as for initial grant of the license; and

(b)

a late fee of rupees two thousand, if he is satisfied that the delay is not justifiable or excusable, nor serious enough to warrant revocation of the license or prosecution of the licensee:

Provided that if an application for renewal for a license in Form III is made within one month from the date on which the license expires, no late fee may be leviable.

(3)

The Central Government may, by issuance of a general or special order and for reasons to be recorded in writing and subject to such conditions, if any, as it may specify in the order, grant exemption from, or reduction of, the fee payable in respect of any license:

Provided that it shall be a condition of every exemption from payment of the fee chargeable in respect of the grant or renewal of any license in Form III that if application for renewal of such license is not made within one month from the date on which the license expires, the licensing authority may, unless the applicant satisfies the licensing authority that he had sufficient cause for not making the application within that period, levy renewal fee at the rate specified in Schedule IV.

(4)

Differential fee shall be chargeable in respect of a change of type of the arm or ammunition entered in a license granted for its acquisition under second proviso to rule 18, if the license fee in respect of the arm or ammunition so changed is higher than that for the original arm or ammunition.

28.

Fee payable for copies and duplicates.

- Where a license granted or renewed under these rules is lost or accidentally destroyed, the authority empowered to grant such license may grant a duplicate license on payment of the fee with which the original license was chargeable.

29.

Collection of fees.

- All fees payable shall be paid in cash or by way of bank pay-order or demand draft or electronic banking transfer at the time of application.

[Provided that in case of a licence in Form VII for the manufacture and/or proof test of arms and ammunition, the fee shall be payable at the time of grant of a licence]

[Inserted by Notification No. G.S.R. 1342(E), dated 27.10.2017 (w.e.f. 15.7.2016).]

30.

Inspection of arms by the licensing authority.

- The authority by whom any license in Form II, Form III, Form IV or Form V has been granted or renewed, may, for the purpose of satisfying itself that any arms covered by such license are still in the possession of the licensee at the time of renewal or at any time while the license is in force, by order in writing require the licensee to produce the arm or arms at such time and place for inspection of such officer as may be specified in the order.

31.

Production of licenses.

- Any person who holds a license granted or renewed, or a permit or certificate granted under these rules shall forthwith produce such license, permit or certificate upon demand by any magistrate or any police officer of a rank not below that of an officer-in-charge of a police station.

32.

Restrictions on carrying of firearm in public place.

(1)

No person shall carry a firearm in a public place unless the firearm is carried -

(a)

in the case of a handgun -

(i)

in a holster or similar holder designed, manufactured or adapted for the carrying of a handgun and attached to his person; or

(ii)

in a rucksack or similar holder; or

(b)

in the case of any other firearm, in a holder designed, manufactured or adapted for the carrying of a firearm.

(2)

A firearm contemplated in sub-rule (1) must be completely covered and the person carrying the firearm must be able to exercise effective control over such firearm.

(3)

Brandishing or discharge of firearms or blank-firing firearms in any public place or a firearm free zone is strictly prohibited.

(4)

Any violation of this rule shall be liable to revocation of the license and seizure of the firearm in addition to the penalty specified under the Act.

33.

Correction of information.

(1)

Any request for correction of the information contained in a license which has been incorrectly uploaded in the NDAL system shall be made by submitting a written application together with supporting documents, to the concerned licensing authority.

(2)

Where an application referred to in sub-rule (1) concerns the detail of a firearm which has been incorrectly reflected on a license, the licensing authority may call for the physical inspection of the firearm to confirm the details of the firearm or call for a certificate from a gunsmith holding a license in Form IX or an armorer working with Defense Forces, Central Armed Police Forces and State Police Forces.

(3)

The gunsmith or armorer referred to in sub-rule (2), on having examined the firearm, shall issue a certificate stating the action, design, type, make, model, caliber and serial number or additional marking of the firearm.

(4)

The correction of information shall take place at no cost to the applicant where the error in uploading the information was attributable on the part of the licensing authority.

34.

Identification marks on firearms.

(1)

A person, who has in his possession any firearm which does not bear distinctly a manufacturer's name, number or other identification mark shall get the identification mark stamped on the firearm after obtaining prior approval of the licensing authority which will consist -

(a)

such distinct letters as may be prescribed for the purpose by the State Government;

(b)

serial number of the arms license; and

(c)

the year of stamping,

in that order on the barrel and the frame, or the barrel and the receiver of the firearm.

(2)

When an imported firearm kept for sale by a dealer does not bear the manufacturer's name, such distinguishing mark of the importer as allotted by the State Government shall be engraved on the barrel and the frame, or the barrel and the receiver of the firearm after obtaining prior permission of the licensing authority:

Provided that if a barrel bears more than one number, the distinguishing mark shall be affixed to the number appearing on the original invoice:

Provided further that where the manufacturer's number appears only on the trigger-guard or other replaceable part, that number shall also be engraved on the barrel and the frame, or the barrel and the receiver of the firearm.

Chapter III

Special categories of licenses

35.

License for destruction of wild animals which do injury to human beings or cattle and damage to crops.

(1)

The grant of arms licenses under this rule shall be subject to the provisions of the Wild Life (Protection) Act, 1972 (53 of 1972

), in respect of the States and Union Territories where the said Act is applicable.

(2)

The application under this rule for grant of a license in Form IV shall specify details of the land and cultivation requiring protection and area in which the arms and ammunition are required to be carried.

(3)

Where, after the end of any harvest season, the State Government considers it expedient that for the protection of wild life in any area, any arms or ammunition licensed in Form IV should be deposited in a police station or with a licensed dealer, it may, by order, require any licensee to deposit such arms or ammunition for such period as the arms or ammunition are not required for the purposes for which the license is granted and as may be specified therein, and thereupon the licensee shall be bound to comply with such order.

36.

License for training and target practice.

(1)

Any person below the age of twenty-one years but not below the age of twelve years may be allowed to use permissible category of arms for the purposes of training in the use of such arms in the immediate presence, or, under the direct supervision and guidance, of an adult instructor or the licensee:

Provided that no person below the age of twenty-one years shall be allowed, to carry any permissible category of arms requiring a license in a public place except in the immediate presence and supervision of the person who is lawfully authorized to carry such arms by the licensee.

(2)

Any person who applies for a license to possess permissible category of arms in Form III in order to practice sport shooting shall be required to show evidence that he participates in such activities or that he is in a structured learning process.

(3)

The use of arms that are licensed for the purpose of sport shooting shall be limited to practice and competition at sport shooting clubs or at shooting ranges.

(4)

A dedicated sports person, holding a license in Form III shall be able to lend his arms temporarily for a period not exceeding three months for the purpose of sport only to another dedicated sports person lawfully entitled to possess such type of armband subject to the conditions that ?

(a)

the arm is used by the borrower in the presence of the license holder or under his written authority along with a certified copy of his license, which shall show the number and other identification marks of the arm and the period for which it is lent;

(b)

in the event of the arm being misused by, or stolen or lost due to the gross negligence of the borrower, the license of the lender thereof shall be liable to be revoked in addition to being liable to be prosecuted under the provisions of the Act; and

(c)

the borrower shall, on demand produce proof of such lending.

(5)

Where in the absence of lender, the borrower of arms under sub-rule (4), intends to take the arms and ammunition to a shooting range for training or target practice or participation in a shooting competition, he shall carry a written authority in Form V-A signed by the lender in respect of the arms and ammunition and in the area and for the period specified in the said written authority along with a certified copy of the arms license of the lender:

Provided that where the arms or ammunition are intended to be taken out of the State, the written authority shall be attested by the President or Secretary of the district or State rifle association, with whom such lender is registered.

Explanation. - For the purpose of this rule, an "adult" means a person who has completed the age of twenty one years.

37.

License for sport shooting association.

(1)

Sport shooting association or a club or a military mess affiliated to the respective State Rifle Association or National Rifle Association of India, shall be eligible to apply for a license in Form V and to acquire and possess arms and ammunition that are used and/or stored at their premises.

(2)

An application under sub-rule (1) for grant of a license at the time of initial grant or at every subsequent renewal thereof, shall be submitted along with the following documents, as may be applicable, namely:-

(a)

its memorandum and articles of association and the membership rules;

(b)

the lists of office bearers and permanent members;

(c)

particulars of the accredited shooting range for training and target practice;

(d)

details of the training/target practice activities undertaken for promoting or encouraging the sport of shooting;

- (e) details of the shooting sport tournaments or events conducted;
- (f) details of safe storage of arms and ammunition specified under rule 10; and
- (g) complete records of the ammunition consumed by the club or association and/or its members.

(3)

Where a license in Form V has been granted in the name of any sport shooting association or club or a military mess, it shall be lawful for any member of such mess, club or association to use the arms or ammunition covered by such license at the approved shooting range mentioned in the license for the purpose of training and target practice, subject to the conditions of the license.

(4)

Where a member of a rifle club or association intends to take the arms and ammunition out of the premises of the club or association for the purpose of repair or to a shooting range for training or target practice or for participation in a shooting competition, he shall be required to carry a pass in Form V-B signed by the President or the Secretary of the club or association in respect of the arms and ammunition and in the area and for the period specified in the pass.

38.

License for shooting ranges.

(1)

Any person, applying for a license for an indoor or an outdoor private shooting range shall be required to meet the technical and security standards as may be specified by the Central Government in this regard by passing a general or special order:

Provided that the licensing requirements shall not be applicable to indoor ranges up to ten metres used for target practice of air pistols and air rifles.

(2)

No license shall be granted under this rule unless the owner or operator of such shooting range has in place adequate financial arrangements to meet any injury or damage claims requiring third party insurance covers or mandatory bank guarantees or bond requirements:

Provided that the ranges owned and operated by military, Central Armed Police Forces and State Police Departments shall normally cover their own risk as per the respective internal guidelines.

(3)

The Sports Authority of India or the National Rifle Association of India or the State Sports Authority or the State Rifle Association shall conduct regular inspection of their affiliated associations or bodies, owning or operating such ranges at regular intervals to ensure strict adherence of safety standards and other norms laid down for shooting ranges.

(4)

The licensing authority may also conduct periodic or surprise inspection of all categories of firing ranges falling under its jurisdiction to ensure the adherence to technical and security conditions applicable to such ranges.

(5)

Practical training regarding the safe and efficient handling of arms and testing of arms during which ammunition will be fired, may only be undertaken at an accredited shooting range that holds a license in Form V.

39.

License for accredited trainers.

(1)

Any person applying for a license to be an accredited trainer shall be required to clear the eligibility test and undergo training before being granted a license under this rule:

Provided that the policy guidelines containing syllabus and conduct of examination for accredited trainers may be specified by the Central Government by passing a general or special order in this regard.

(2)

Any person applying for grant of a license to be a master accredited trainer shall be required to possess the technical knowledge and expertise in handling various types of small arms and submit the documentary evidence to the

satisfaction of the licensing authority in this regard:

Provided that the policy guidelines for grant of licenses to master accredited trainers may be specified by the Central Government by passing a general or special order in this regard:

Provided further that master accredited trainers shall be entitled to impart training to the accredited trainers referred to in sub-rule (1).

(3)

Master accredited trainers and accredited trainers, having been granted a license under this rule shall be eligible to ?

(i)

impart training as specified in rule 10 to the applicants and licensees under these rules; and

(ii)

issue training certificates to different types of trainees on the successful completion of the stipulated training programme.

(4)

The norms for making available the shooting ranges for imparting training to accredited trainers may be specified by the Central Government by passing a general or special order in this regard.

(5)

The shooting ranges as referred to in sub-rule (4) shall include the Government shooting ranges owned or operated by Defense Forces, Central Armed Police Forces, State police departments; and the private shooting ranges owned and operated by shooting clubs or associations having been granted a license in Form V of these rules.

Explanation. - For the purposes of this rule, master accredited trainers refer to small arm experts having worked in Defense Forces, Central Armed Police Forces, State Police Forces; and international medalists and renowned shooters as defined under the Explanation to rule 40.

40.

Quantity of ammunition to sports persons, shooting associations, etc.

(1)

The quantity of ammunition allowed to various categories of sports persons for their personal consumption and shooting sport organizations shall be as per the limits laid down in the table given below, namely:-

S.No.

Persons or class of persons

Type of firearm

Quantity and description of each kind of ammunition

To be possessed at any one time

Purchasable during the year

1

Arjuna awardee

All

100000

for all types of firearms collectively

200000

for all types of firearms collectively

2

International medalist/ renowned shooter

Rifle/ Pistol .22 LR;

Center-fire rifle with caliber up

to 8 mm;

Revolver/ Pistol;

Shotgun of caliber up to 12 bore/ gauge

50000

for all types

of firearms collectively

100000

for all types
of firearms collectively
3
Junior target shooter
Rifle/ Pistol .22 LR;
Center-fire rifle with caliber up
to 8 mm;
Revolver/ Pistol;
Shotgun of caliber up to 12 bore/ gauge
10000

for all types
of firearms collectively
30000

for all types
of firearms collectively
4

Aspiring shooter
Rifle/ Pistol .22 LR;
Center-fire rifle with caliber up
to 8 mm;
Revolver/ Pistol;
Shotgun of caliber up to 12 bore/ gauge
15000

for all types
of firearms collectively
30000

for all types
of firearms collectively

[5
[Substituted by Notification No. G.S.R. 108(E), dated 12.2.2020 (w.e.f. 15.7.2016).]

Other shooters (not falling under Sl. No. 1 to 4 above) holding valid arms licences and who are also members of
National Rifle Association of India or affiliated State Rifle Association(s) of NRAI or shooting clubs/District Rifle
Association affiliated with State Rifle Association

.22 LR Rifle/ Pistol
Any other Pistol/ Revolver caliber
Shotgun caliberAny other Rifle

500
300
250200
5000
2000
5000500]

6
National Rifle Association of
India.
Affiliated State Rifle
Association(s) with NRAI.
Shooting clubs/
District Rifle Association(s)
affiliated with State Rifle Association.
All shooting clubs affiliated to

the State Rifle Association or the National Rifle Association of India.

All shooting ranges under the Sports Authority of India or the Sports Authority of the State Governments

Upper limit on the quantity of ammunition, to be decided by the licensing authority based on the recommendations of the Certifying body

Note:

Shotgun calibers of caliber up to 12 bore/ gauge, mean and include the lesser calibers of 16, 20, 28 and 410 bore etc.

(2)

For the purposes of this rule, certifying bodies and certification contents shall be as specified in the table given below, namely:-

Table

S.No.

Category of sports person

Certifying body

Certifying conditions

1

Arjuna Awardee

Government of India in the Department of Sports, Ministry of Youth Affairs and Sports

The certificate shall state that the award was conferred for excellence as a shooter

2

International medalists/ renowned shooters

National Rifle Association of India (NRAI)

The certificate shall state that the medal has been won by the international medalists in the international championships and in case of renowned shooters the merit certificate shall mention the qualifying score along with the Minimum Qualifying Score (MQS) for the event as specified by NRAI

3 and 4

Junior target shooter/ aspiring shooter

National Rifle Association of India or the approved or affiliated State Rifle Association(s) of NRAI

The certificate shall mention the qualifying score along with the Minimum Qualifying Score for the event as specified by NRAI or the State Rifle Association

5

Other shooters

National Rifle Association of India or affiliated State Rifle Association(s) of NRAI or Shooting Clubs/District Rifle Association affiliated with State Rifle Association.

The certificate shall state the membership and other details of the shooter

6

Shooting Clubs/ District Rifle Associations affiliated with State Rifle Associations or National Rifle Association of India
State Rifle Association or National Rifle Association of India as applicable

State Rifle Association

National Rifle Association of India

National Rifle Association of India

Ministry of Youth Affairs and Sports

Shooting Ranges

Sports Authority of India/Sports Authority of the State

Government/ National Rifle Association of India

Explanation. - For the purposes of this rule,

(a)

"international championship" means the Asian Games, the Asian Shooting Championship, the Asian Women or Asian Junior Shooting Championship, the Commonwealth Games, the Commonwealth Shooting Championships, the Olympic Games, the World Junior or Senior Shooting Championships and the World Cups in Senior as well as Junior events;

(b)

"international medalist" means a person who has won an individual or team medal in an international championship;

(c)

"renowned shooter" means a person who has participated in a National Shooting Championship in an Open Men's Event or Open Women's Event or Open Civilian's Event whether through qualifying tournament or wild card entry conducted in accordance with the rules of International Shooting Sports Federation (ISSF) and has attained the Minimum Qualifying Score prescribed by the National Rifle Association;

(d)

"junior target shooter" means a person who has completed the age of twelve years but is below the age of twenty-one years and has taken part in at least one State Championship (held once a year) or in the Zonal Championship or National Level Shooting Competition recognized by National Rifle Association and/or by respective State Rifle Association;

(e)

"aspiring shooter" means a person who has taken part in at least one State Championship (held once a year) or in the Zonal Championship or National Level Shooting Competition recognized by National Rifle Association and/or by respective State Rifle Association and attained the prescribed Minimum Qualifying Score specified by the National Rifle Association of India.

41.

License to museums.

(1)

Any museum applying for a license for display of arms and ammunition must possess due accreditation with the Ministry of Culture and registration under any of the Central or State Acts.

(2)

The application under sub-rule (1) shall be accompanied by?

(i)

a description of the display mechanisms that will be used to display the arms or ammunition;

(ii)

documentary proof that the display will be in an accredited museum;

(iii)

description and specifications of the security measures pertaining to storage, transport and safe custody of the arms or ammunition to be displayed;

(iv)

a description of the access control to the museum where the arms or ammunition will be displayed; and

(v)

a certificate that the museum will be open for public.

(3)

The arms and ammunition shall be displayed or stored under the control of the appointed curator of the museum or a person authorized thereto in writing by the curator, who shall ensure that necessary steps are taken to prevent any unauthorized access and the loss of the arms and ammunition.

(4)

The arms and ammunition shall only be used for the display and/or storage by the museum at the registered premises of the museum as mentioned in the license.

(5)

The licensee may display a firearm only if, -

(a)

the firearm is unloaded;

(b)

the firearm is secured by a chain or metal cable that is passed through the trigger guard with one end of the chain or cable attached to a wall or permanent fixture, in such a manner as to prevent the removal of the firearm by a person other than the curator or a person authorized by him;

(c)

the firearm is rendered inoperable by means of a secure locking device and displayed at a place and in a manner that is accessible only to the curator or a person authorized by him.

42.

License for arms and ammunition for theatrical, film or television productions.

(1)

A license for acquisition, possession, carry or use of arms and ammunition may be issued in Form III to the applicants for the following purposes, namely:-

(i)

theatrical performances and of rehearsals for such performances;

(ii)

in the production of films;

(iii)

in the production of television programmes;

(iv)

the organization and holding of historical re-enactments;

(v)

signaling for starting races or athletic meets.

(2)

The application for a license under this rule shall be submitted along with the following documents, namely: -

(i)

an undertaking confirming that the applicant shall not resort to conversion of firearms replica and blank firing firearms into firearms;

(ii)

proof to the satisfaction of the licensing authority that the applicant is an actual user or a contractor for providing such arms or ammunition on hire for the purposes specified in sub-rule (1);

(iii)

description of security measures pertaining to safe custody of arms or ammunition to be implemented by the applicant;

(iv)

an undertaking that the applicant or the person to whom the arms are given on hire, shall not use live ammunition;

(v)

details of the place where the records in respect of the issuance of arms or ammunition will be kept for inspection by the licensing authority or by any Police Officer not below the rank of an Inspector.

43.

Acquisition, possession and export of arms or ammunition by tourists visiting India.

(1)

A license in Form VI may be granted to any tourist, to acquire, possess (but not use) during the course of his stay in India, carrying and export out of India, of arms and ammunition specified in category III, category IV and category V of Schedule I:

Provided that every application for the grant of a license for export of arms specified in category IV of Schedule I shall be

accompanied by a certificate from the Director-General of Archeology of the Central Government to the effect that the arms intended to be exported do not fall within the definition of "antiquity" under the Antiquities and Art Treasures Act, 1972 (

52 of 1972

).

(2)

The licensee shall produce the arms or ammunition, at the time of leaving India and return his license to the passport checking authority, or other authority empowered by the district magistrate in this behalf, at the port or other place of departure from India.

(3)

The passport checking authority or other authority to whom the license is returned by the licensee, shall forward the same to the authority who issued it, with the remarks that the arms or ammunition have been duly exported.

44.

License to an International sports person for participation in shooting events in India.

(1)

An application may be made in Form A-5 by any sports person of any age group from any country who is eligible to participate in the shooting competition or event or series of competitions or series of events or for training being organized in India by any sports body recognized by the Ministry of Sports and Youth Affairs, Government of India during the period of the event or competition or training and at the venue fixed for the same, and a license may be granted to such applicant for arms and ammunition specified in category III of Schedule I so far as practicable, one month prior to the expected date of arrival of the sports person in India.

(2)

The license in the case of a group application may be issued in the name of the manager or the official accompanying the team or group and the details of the arms and ammunition may be given in an annexure attached to and forming part of the license by the issuing licensing authority.

(3)

Where a license is granted to an International sports person or persons under sub-rule (1), the license together with the passport and visa of such person, shall be presented to the licensing authority of the port of arrival, and the said authority shall after obtaining the undertaking in writing from the licensee that he shall not sell or transfer the arms or ammunition to anyone in India, endorse the license making it valid for a period of six months or till the validity of visa, whichever is earlier, from the date of endorsement and shall also make an entry in the passport or the visa giving full particulars of the arms and ammunition for which the license has been granted.

(4)

The licensee shall produce the arms or ammunition at the time of leaving India along with the consumption certificate of the ammunition issued by the authority under whose control the shooting competition or event or training was conducted and return his license to the passport checking authority, or other authority empowered by the district magistrate in this behalf, at the port or other place of departure from India.

(5)

The passport checking authority or other authority to whom the license is returned by the licensee under sub-rule (4), shall forward the same to the authority who issued it, with the remarks that the arms or unconsumed ammunition, have been duly re-exported.

45.

Other temporary categories of import/export licenses.

(1)

A license in Form VI may be granted of arms and ammunition specified in category III of Schedule I so far as practicable, six months prior to the expected date of arrival in India, to the following persons, namely: -

(a)

a foreign visitor, to display the arms and ammunition at a trade show or at a sport trade show;

(b)

an official of a foreign government or a distinguished foreign visitor or a foreign law enforcement officer, on an officially approved policing assignment, on the recommendations of the Government of India in the Ministry of External Affairs;

(c)

a person who, for other legitimate reasons, has received prior approval of the Government of India and where the applicant submits an undertaking to the effect that he -

(i)

has lawful possession of the arm;

(ii)

has knowledge of the safe handling, safe-storage and use of the arm in question and where applicable, its public display;

(iii)

has need to possess the arm and cannot reasonably satisfy that need by means other than the possession of an arm; and

(iv)

has attained the minimum age of twenty-one years.

(2)

The validity of the license so granted under sub-rule (1) shall commence only from the date of endorsement of the said license at the time of arrival at any port in India and the arms and ammunition covered by the license shall not be used till the date of endorsement of the license.

(3)

Where a license is granted to any person under sub-rule (1), the license together with the passport and the visa of the person, shall be presented to the licensing authority of the port of disembarkment, and the said authority shall after obtaining the undertaking in writing from the licensee that he shall not sell or transfer the arms or ammunition to any one in India, endorse the license making it valid for a period of six months from the date of endorsement or till the validity of visa, whichever is earlier and shall also make an entry in the passport or the visa giving full particulars of the arms and ammunition for which the license has been granted.

(4)

The passport checking authority or any other officer empowered by the district magistrate in this behalf at the port or other place of departure from India shall verify that the arms entered in the license are being taken out of India by the licensee and recover the license and forward the same to the authority who issued it with the remarks that the arms have been duly re-exported.

46.

License for firearm free zones.

(1)

The owner or lawful occupier of a premises may submit an application in Form A-14 along with supporting documents specified therein, to have the said premises declared a Firearm Free Zone, to the licensing authority of the place of jurisdiction of the applicant -

(i)

stating the reasons why the premises must be declared as Firearm Free Zone;

(ii)

giving proof of capacity to maintain the premises as a Firearm Free Zone;

(iii)

describing the medium of communication to inform the public that the premises is a Firearm Free Zone.

(2)

The obligations of the licensee shall include -

(i)

to clearly identify and demarcate the premises declared as a Firearm Free Zone;

(ii)

to ensure that notices be displayed at all the main entrances or at strategic places on the premises or category of premises both in English and local language declaring the premises as Firearm Free Zone;

(iii)

to ensure that the notices and signs are clearly visible and un-obscured at all times; and

(iv)

to notify the licensing authority of change, if any, in the information submitted at the time of application.

(3)

The licensing authority may issue a license in Form XV for the Firearm Free Zone to any educational institution including schools, colleges, universities; or religious places, hospitals, courts, Government establishments, entertainment or sports venues, restaurants, hotels, shopping malls, cinema halls or such other public places on an application for such license made under sub-rule (1).

(4)

The provisions of this rule for Firearm Free Zone shall not be applicable in the following cases -

(i)

to an individual who renders security and surveillance duty to a lawful owner or occupier of the Firearm Free Zone; and

(ii)

to a law enforcement officer acting in his official capacity.

Chapter IV

Deposit of arms and ammunition

47.

Deposit of arms and ammunition under section 21.

(1)

When a licensing authority decides to suspend or revoke a license or to refuse to renew it, he shall, communicate his decision in writing to the licensee, requiring him to deposit under section 21, within such time as may be specified in the order suspending, revoking or refusing to renew the license, the arms or ammunition covered by the license, either with the officer-in-charge of the nearest police station or with a dealer holding a license in Form VIII, or, in case he is a member of the armed forces of the Union, in the unit armory:

Provided that in case of death of a licensee, the arms or ammunition shall be deposited by the legal representative with the officer-in-charge of the nearest police station or with a dealer holding a license in Form VIII, within a period of three months of the death of the licensee.

(2)

Subject to the proviso to sub-section (2) of section 21, the licensee or, in the case of his death, his legal representative shall be entitled to sell or otherwise dispose of the arms or ammunition to any person lawfully entitled to possess the same and to receive the sale-proceeds, if any, during the period specified in column (3) of the Table in case of deposit of arms and ammunition mentioned in column (2) of the said table in sub-rule (6):

Provided that if the arms or ammunition have not been disposed of or their possession by the licensee or his legal representative, as the case may be, has not become lawful within the period so specified, then such arms or ammunition shall, subject to the proviso to sub-section (3) of section 21, be forfeited to the Government by an order of the district magistrate.

(3)

Where any arm or ammunition is deposited by an owner under sub-section (1) of section 21, in a police station or unit armory or with a dealer holding a license in Form VIII, the officer-in-charge of the police station or unit armory or the licensed dealer, as the case may be, shall attach to each article deposited, a card and issue a receipt to the depositor and send a copy to the authority who granted the license or renewed it last, containing the following particulars, namely:-

(i)

Description (No. etc.) of the article;

(ii)

Particulars of license or exemption (if any);

(iii)

Name and address of the depositor;

(iv)

Serial No. in register and date of deposit;

(v)

Date due for forfeiture or disposal;

(vi)

Signature of the depositor; and

(vii)

Signature of the dealer or officer-in-charge of police station or unit armory.

(4)

Any arms or ammunition deposited in a unit armory under sub-section (1) of section 21 may, unless returned or disposed of earlier, be transferred, after the expiry of a period of thirty days after such deposit, to the nearest police station.

(5)

Any arms or ammunition deposited in a police station under sub-section (1) of section 21, which have not been returned or disposed of ?

(i)

with-in thirty days of the deposit with it; and

(ii)

transferred from the unit armory under sub-rule (4)

may be transferred by the officer-in-charge of the police station for the sake of better maintenance or safety, to a police armory in the district/ taluqa headquarters or such other place as may be specified by the district magistrate, in accordance with such instructions as may be issued by the State Government for the purpose:

Provided that the district magistrate may, if he considers it necessary, extend the said period of thirty days up-to ninety days and intimation of such transfer shall be given to the depositor of the article and to the licensing authority who, granted or last renewed the license.

(6)

The depositor or his legal representative may exercise his rights to receive back or dispose of any arms or ammunition under sub-section (2) of section 21, within the period specified in column (3), in case of deposit of the arms or ammunition specified in column (2) of the table given below, namely:-

Table

S.No.

Reason of deposit of arms and ammunition

Effective date

(1)

(2)

(3)

1.

Due to contravention by the owner of any provisions of the Act, the rules or conditions of license

One year from the date of such deposit

2.

Due to suspension or revocation of license or for any other reason

One year from the date of the order of suspension or revocation

3.

Where the arms or ammunition are already deposited

One year from the date of the order of revocation, suspension or refusal to renew the license

4.

When a notification is issued under section 4

One year from the date of said notification

5.

Where an appeal is preferred by the owner under section 18

One year from the date of the final order

6.

Where the arms or ammunition are -

the subject of a legal suit or dispute; or

From the date of termination of the dispute or the date of final order; or

owned or inherited by a person who has not completed the age of twenty-one years

One year from the date of completion by that person of the age of twenty one years

7.

Where the owner is on active service outside India

from the date of his return to India

Note 1 - The period of one year may be extended by the district magistrate by another six months in case the depositor or owner is found unfit for any reasons to carry such arms or ammunition.

Note 2 - The State Government may further extend the said period beyond six months by another six months.

(7)

Any arms or ammunition not returned or disposed of before the expiry of the period specified under sub-rule (6) shall be transferred to the district malkhana or such other place, by order of the district magistrate, for the purpose of forfeiture under sub-section (3) of section 21:

Provided that the district magistrate shall, before making such order of forfeiture, serve a notice as required under sub-section (4) of section 21 in like manner as for service of summons under the Code of Criminal Procedure, 1973 (2 of 1974):

Provided further that in the case of the depositor being a member of the armed forces of the Union the notice, shall be served personally, through the Commanding Officer, of such member.

(8)

Charges for maintaining the articles deposited may be levied at such rates as may be fixed from time to time by the State Government.

48.

Deposit of arms and ammunition for safe custody (otherwise than under section 21).

(1)

(a)

A person lawfully possessing arms or ammunition may deposit them for safe custody with a dealer holding a license in Form VIII or in a police station or, if he is a member of the armed forces of the Union, in a unit armory.

(b)

Before accepting the arms or ammunition for deposit otherwise than under section 21, the dealer or officer-in-charge of a police station or unit armory shall satisfy himself that they are possessed under a valid license issued under the Act and these rules or under exemption from the need for such license.

(c)

Members of the armed forces of the Union may be allowed to keep their arms or ammunition in safe custody in a unit armory only during the tenure of their service.

(2)

Where the arms or ammunition have been deposited under sub-rule (1), the dealer or officer-in-charge of the police station or unit armory, as the case may be, shall attach to each article deposited, a card, easily distinguishable from that described in rule 47 and issue a receipt to the depositor and send a copy to the authority who granted the license or renewed it last, containing the following particulars, namely:-

(i)

Description (No. etc.) of the article;

(ii)

Name and address of the depositor;

(iii)

Particulars of license or exemption (if any);

(iv)

Serial No. in register and date of deposit;

(v)

Date of expiry of the license;

(vi)

Date up to which deposited;

(vii)

Signature of the depositor; and

(viii)

Signature of the dealer or officer-in-charge of police station or unit armory.

(3)

In the event of failure to get the license renewed, the arms or ammunition shall continue to be possessed by the dealer on the authority of his license in Form VIII or by the officer-in-charge of the police station or unit armory; but, if the license is not renewed, after its expiry, the dealer or the officer-in-charge of the police station or unit armory shall bring this to the notice of the district magistrate for such action as he may consider necessary:

Provided that the articles shall in no case be returned to the owner unless the license to possess them is renewed or a new license is obtained.

(4)

The depositor may be charged a fee for the custody of the articles deposited and maintenance thereof at the rates specified in the following table, namely:-

Table

1.

For each firearm

Two hundred rupees per month or portion thereof

2.

For every other arm or package of ammunition

One hundred rupees per month or portion thereof

(5)

Any extra charges for maintenance of the articles in good condition may be levied at such rates as may be fixed from time to time by the State Government.

(6)

The fee charged for depositing the arms or ammunition in the police station and unit armory shall be deposited in the treasury.

49.

Records and returns of articles deposited.

(1)

The dealer or the officer-in-charge of the police station or unit armory, shall maintain such registers as specified in rule 75.

(2)

A copy of the entries in the registers relating to the quarters ending on the last day of March, June, September and December, each year, certified as true copy under the signature of the dealer or officer-in-charge of the police station or unit armory, as the case may be, shall be forwarded, to the district magistrate as early as possible after the expiry of each quarter.

(3)

The licensed dealer or the officer-in-charge of the police station or unit armory or officer-in-charge of police armory in the district/ taluqa headquarters, where the arms or ammunition are kept, shall submit to the district magistrate by the 15th December each year, a report showing the particulars of arms or ammunition in their custody which have, or will become liable to forfeiture by the end of that year.

(4)

(a)

The licensed dealer, the officer-in-charge of the police station or unit armory or officer-in-charge of police armory in the district/ taluqa headquarters where the arms or ammunition are kept, shall establish an online electronic connectivity under his user-id with the NDAL system to provide for a weekly electronic online transfer of data regarding firearms and ammunition deposited for the week.

(b)

If any circumstances occur which prevent the authorities referred to in clause (a) to submit online returns on NDAL system by means of electronic network connectivity, the local licensing authority shall be informed immediately in order to establish alternative means to submit the weekly returns.

(c)

Weekly returns for the current week shall be submitted by the close of business hours on every Saturday.

50.

Inspection.

(1)

Arms and ammunition deposited in a police station or with a dealer and those transferred to the district malkhana and the register maintained for the purpose shall be inspected periodically by the district magistrate or other officer appointed by the State Government in this behalf in accordance with such procedure as may be prescribed by the State Government.

(2)

The arms or ammunition deposited in a unit armory and the register maintained for this purpose shall be inspected periodically by the officer commanding the unit or any other officer empowered by him in accordance with the procedure prescribed by the Government of the State, where the unit is for the time being located.

Chapter V

Manufacturers, Arms Dealers and Gunsmiths

Part I ? Manufacture and Proof Test of firearms

51.

License for manufacture and proof test.

(1)

The licensing authority while granting a license in Form VII shall show clearly in the license form the categories and description of the arms or ammunition allowed to be manufactured or proof tested or both, by the licensee as specified in these rules.

(2)

Proof-testing of firearms manufactured by a licensed manufacturer shall be carried out only in accordance with the provisions contained in rule 59 in this regard and no manufactured firearms shall be allowed to be sold which have not been duly proof tested.

(3)

A copy of every license granted in Form VII by the licensing authority shall forthwith be sent to the district magistrate of the place of manufacturing facility of the licensee and the Home Department of the State Government concerned.

[***]

[Omitted '(4) Entities granted fresh licenses under the provisions of these rules shall be known as new manufacturers whereas the entities or persons already holding manufacturing licenses under the Arms Rules, 1962 in Form IX shall be known as existing manufacturers.' by Notification No. G.S.R. 1342(E), dated 27.10.2017 (w.e.f. 15.7.2016).]

[(5) Single licence in Form VII may be issued to an applicant company applying for a multi-unit facility which may be set-up within the same State or in different States within the country, for the grant of a licence under these rules:

Provided that an applicant company may apply for a separate licence for each unit and in that case, separate licence shall be issued for each of the units.;

[Substituted by Notification No. G.S.R 1342(E), dated 27.10.2017 (w.e.f. 15.7.2016).]

(6)

A licensing committee within the Ministry of Home Affairs shall be constituted to review and process the applications for grant of licenses for manufacture of arms and ammunition's for the new manufacturers and for all matters related to existing manufacturers including applications for capacity revision by issuance of general or special order under these rules.

52.

Type of firearms for grant of a license in Form VII for manufacture and proof test.

- The licensing authority may grant a license in Form VII for the following types of arms for manufacture or proof test or both, namely:-

(i)

I - Small arms

(ii)

II - Light weapons

(iii)

III - Items configured for military use:

Provided that if any of the items falling under type I, II or III include any prohibited arms or ammunition, the licensing authority shall obtain prior permission of the Central Government under section 7 of the Act before grant of a license in Form VII.

53.

Applications for a license in Form VII.

(1)

Every manufacturer applying for a fresh license under these rules shall be an Indian company incorporated under the Companies Act, 2013 (

18 of 2013

): Provided that the applicant company is owned and controlled by resident Indian citizens or by Indian companies, owned and controlled by resident Indian citizens except in respect of a company having Foreign Direct Investment (FDI) beyond forty-nine percent:

Provided further that the Chief Executive of the company is a resident Indian and the management of the applicant company is in Indian hands with majority representation on the Board excluding nominee or independent directors except in respect of a company having Foreign Direct Investment (FDI) beyond forty-nine percent.

(2)

The company applying for a license in Form VII under these rules shall provide -

(a)

original or certified copies of the company's founding documents including Memorandum and Articles of Association, Certificate of Registration of the company under the Companies Act, 2013 (

18 of 2013

), CIN (Corporate Identification Number), proof of address of its registered office, Permanent Account Number (PAN) card and certified lists of directors and shareholders as on the date of application;

(b)

copy of Director Identification Number (DIN) of all the directors;

(c)

identification proof along with two recent photographs of all the directors and the responsible person as under:-

(i)

Aadhar Card; or

(ii)

in case the director or the responsible person does not have Aadhar Card, a written declaration in the form of an Affidavit to be submitted in this regard along with an alternative identification proof which may include Passport or Voter's Identification Card or Permanent Account Number (PAN) card or official Identity Card;

(d)

residence proof - in case the director or responsible person does not have Aadhar Card or Passport, alternative residence proof to be submitted which may include Voter's Identification Card or Electricity Bill or Landline Telephone Bill or Rent Deed or Lease Deed or Property documents or any other document to the satisfaction of the licensing authority;

(e)

copy of the latest balance sheet of the company and audited copy of the Net-worth certificate duly certified by a Chartered Accountant;

- (f) estimated project outlay and means of finance for funding the project duly certified by a Chartered Accountant;
- (g) certified copy of the board resolution for making an application under these rules along with full particulars of the responsible person authorized to sign the same;
- (h) details of foreign control and/or ownership in the applicant company, as applicable, duly certified by a Chartered Accountant;
- (i) complete details of the arms and/or ammunition intended to be manufactured or proof-tested or both, including their types and quantities;
- (j) a declaration with proof thereof to the effect that it has acquired the land for setting up the manufacturing plant or for setting up proof-test facility along with details of an access road to the proposed site, installation of electricity and water connection, particulars of land development carried out and any other information deemed necessary by the licensing authority.

54.

Procedure for grant of license in Form VII.

- (1) The license for manufacture or proof-test or both shall be granted by the licensing authority to an applicant who fulfills the eligibility criteria laid down in these rules provided that no adverse remarks are received from various government agencies entrusted for verifying the antecedents of the applicant company or its directors or responsible person, as the case may be.

(2)

[A licence granted in Form VII shall be valid for the life time of the licensee company:

Provided that the licensee shall be required to setup the facility for manufacture or proof test of arms and/or ammunition, recruit technical and administrative staff, develop and proof test proto-types of arms and ammunition, conduct trial runs and any other activity related to the setting up of the facility for the manufacture or proof-test of arms and ammunition, within a period of seven years from the date of grant of a licence:

Provided further that the licensing authority may extend the period of seven years by a further period of three years, on the basis of a written representation received from the licensee and after recording reasons for granting such an extension:

Provided also that if during the period of seven years or the extended period of three years, as the case may be, the licensee fails to setup the manufacturing or proof-test facility or is unable to take other operating steps required for starting commercial production, the licence shall be suspended or revoked.;

[Substituted by Notification No. G.S.R. 1342(E), dated 27.10.2017 (w.e.f. 15.7.2016).]

(3)

(a)

No manufacturing facility shall be set-up in the border areas, restricted areas or prohibited areas and any area declared as 'disturbed area' by the Central Government.

(b)

The manufacturer applicant may setup the facilities in Special Economic Zones (SEZ), Industrial Parks and other industrial areas in addition to any other location duly approved by the State Government concerned for this purpose.

(4)

The licensee shall make an application on its letter head for commencement of commercial production accompanied by

-

(i)

a declaration to the effect that the licensee has installed the plant and machinery, successfully carried out the trial run and is ready for commencement of commercial production of the items licensed for manufacture or proof-test;

(ii)

a declaration to the effect that the licensee has installed and applied the requisite quality control system for manufacture

or proof test of firearms or ammunition;

(iii)

a list of particulars of the key technical personnel employed by the licensee for carrying out manufacture or proof-test facility along with the proof of their professional expertise and training undergone and identification documents as specified for directors in rule 53;

(iv)

a declaration to the effect that the licensee has fully complied with the security guidelines as contained in the Security Manual prepared by the Ministry of Defense, Department of Defense Production, for licensed defense industries.

(5)

The licensing authority shall get conducted a security and appraisal audit to ensure that the applicant licensee has complied with the declaration specified in clause (iv) of sub-rule (4).

55.

Other requirements as to licenses granted in Form VII.

(1)

The licensee shall preferably be self-sufficient in areas of product design and development and have maintenance and life cycle support facility of the product to be manufactured and the items to be manufactured shall meet the International or Indian accredited quality standards and norms with special emphasis on indigenous designing:

Provided that no infringement of patents or copyrights, shall be permissible.

(2)

The licensee shall submit the standards and testing procedures for manufacture of firearms and ammunition to the Government nominated Quality Assurance Agency, which will inspect the finished product in the trial run and conduct audit of the Quality Assurance Procedures in respect of design, workmanship, aesthetics and other related parameters:

Provided that the quality specifications for manufacturing, shall be as specified by the Bureau of Indian Standards (BIS) and the Director General of Quality Assurance, Department of Defense Production or any other international quality assurance agency.

(3)

The manufactured products shall contain the warranty clause accompanied by service and safety manuals and listing of parts at the time of every sale.

(4)

Any restrictions under a joint venture agreement which may be imposed by the foreign partner shall have no legal consequence on the Indian entity that is granted a license under these rules.

(5)

The licensing authority may impose such additional restrictions in case of certain sensitive type of arms and ammunition, such as those configured for use by armed forces or not permitted to be possessed by civilians.

(6)

[The small arms and light weapons produced by the manufacturers may be allowed for export subject to the approval of the Ministry of Home Affairs in consultation with the Ministry of External Affairs, the Ministry of Defence and the Ministry of Commerce, on a case to case basis.;

[Substituted by Notification No. G.S.R 1342(E), dated 27.10.2017 (w.e.f. 15.7.2016).]

(7)

The permissible category of arms and ammunition specified in Schedule I may be permitted for sale to persons or dealers, holding a valid arms license under these rules, with the prior approval of the Central Government in the Ministry of Home Affairs.

(8)

Prior approval of the licensing authority shall be mandatory for any change in the directorship of the company or any change in the key managerial personnel as defined in clause (51) of section 2 of the Companies Act, 2013 (18 of 2013

) or any change in the responsible person of the company.

(9)

Prior approval of the licensing authority shall be mandatory for any change in control or ownership, either directly or indirectly, of the company or any change in shareholding resulting into dilution of promoters shareholding (both Indian

and foreign) or any change in shareholding of the company or any change in the beneficial interest in the shareholding of the company beyond five percent (5%).

(10)

(a)

A license granted in Form VII shall not be transferable from the licensee to another company, without the written authorization of the licensing authority.

(b)

An application for transfer shall be accompanied by complete documents and be subject to the same conditions as applicable at the time of initial grant of license specified in rule 53.

(c)

While considering an application for transfer of a manufacturing license, the licensing authority shall assess the eligibility of the company, to whom the license is to be transferred.

(11)

[A licensee company having a licence in Form VII shall be permitted to have enhanced annual production of firearms and/or ammunition upto fifteen per cent. of the quantity endorsed on his licence, by giving prior intimation to the licensing authority for which no further endorsement on the licence as to capacity shall be required.;]

[Inserted by Notification No. G.S.R. 1342(E), dated 27.10.2017 (w.e.f. 15.7.2016).]

56.

Obligations of licensees having licensee Form VII.

(1)

The validity of a license granted in Form VII shall be subject to the manufacturer's compliance with the conditions contained in these rules and in the license.

(2)

The licensee having a license in Form VII shall mark all firearms and ammunition that it manufactures in the manner as specified in rule 58.

(3)

The licensee company shall comply with the Foreign Direct Investment (FDI) policy of the Government of India and the regulations framed under the Foreign Exchange Management Act, 1999 (

42 of 1999

) as notified by the Reserve Bank of India in case of foreign direct investment in the said company.

(4)

The licensee shall comply with the security guidelines as contained in the Security Manual prepared by the Ministry of Defense, department of defense production, for licensed defense industries.

(5)

The licensee shall maintain records of all firearms, their parts, components and/or ammunition manufactured by it as specified in rule 65 in addition to the conditions specified or forming part of the license in Form VII.

(6)

The licensee shall store all firearms, their parts, components and/or ammunition manufactured by it as specified in Form VII.

(7)

The licensee shall permit, and shall cooperate fully with, inspections carried out by the licensing authority (or such other body as may be designated by it) of the licensee's facilities, particularly in respect to the safe and secure storage of firearms and ammunition.

(8)

The licensee shall immediately notify the licensing authority on occurrence of any theft, loss or unintentional destruction of firearms or ammunition stored at its premises.

(9)

The licensee shall notify the licensing authority within three working days on occurrence of any of the following events, namely:-

(i)

change of address of its registered office;

(ii)

change in the directors, in which case the licensee shall provide the licensing authority with the names and addresses of each new director, along with the particulars and documents specified in rule 53 for directors.

(10)

The licensee shall ensure that all employees who have access to completed manufactured firearms or ammunition within the manufacturing or proof-testing facility are technically competent to handle the same.

(11)

The work-in-progress and finished goods inventory for each type of firearm and ammunition at any given time shall not exceed two times of the total annual turnover in the last financial year or annual licensed capacity, whichever is lower: Provided that in case of a company having multi-unit facility, total of the annual licensed capacity or total turnover of the company shall be considered.

(12)

The licensee shall maintain complete database of inventory and distribution chain down to the dealer/end user for domestic distribution and end users in case of export.

(13)

The licensee shall carry out only batch production in a manufacturing cycle.

57.

Import of machinery for manufacturing arms and ammunition and other parts etc.

(1)

The licensee having a license in Form VII shall submit an application along with the complete list of machinery to be installed, to be procured locally or imported.

(2)

The license for acquisition, possession, import or transport of machinery shall be issued in Form I.

(3)

Import of arms specified in category II of Schedule I and raw material in the form of metal, alloy, fiber, polymers, wood and other allied items, for manufacturing of such arms, shall be allowed subject to the provisions of the Foreign Trade Policy notified under the Foreign Trade (Development and Regulation) Act 1992 (22 of 1992

) from time to time by the Directorate General of Foreign Trade (DGFT) and on the recommendations of the Ministry of External Affairs (MEA) taking into account international obligations and commitments.

(4)

The Ministry of Home Affairs may, on an application containing full technical details allow import of such parts of arms and ammunition which are not possible to be manufactured locally, after obtaining the opinion of the Department of Defense Production by grant of an authorization for such import in accordance with the procedure for import under these rules.

58.

Marking of firearms and ammunition at the time of manufacture.

(1)

All firearms shall have applied to them, at the time of their manufacture, unique markings containing the following information, namely:-

(i)

the country of manufacture;

(ii)

the name of the manufacturer;

(iii)

a serial number unique to the manufacturer;

(iv)

year of manufacture;

(this information may be incorporated into the serial number)

(v)

firearm type/ model;

(vi)

caliber;

(vii)

proof-marks; and

(viii)

such other additional information if the firearm is intended for an Indian domestic State entity viz. military, Central Armed Police Forces, Police etc.

(2)

Markings shall be expressed alphanumerically (i.e. they may consist of both letters and numbers) in the format given in the table below:-

Table

(1)

(2)

(3)

(4)

(5)

(6)

XX

XXXX

99

99

99999

99

Country of Manufacture

(2 digit ISO Country

Code)

IN for India

Manufacturer's Name or code

Year of manufacture (2 numbers)

Type/ Model/ Code

Serial Number

Caliber

(3)

Markings shall be applied to a component of the firearm that is essential to its operation, such as -

(i)

the frame/ receiver;

(ii)

barrel;

(iii)

slide, cylinder, bolt or breech block; and

(iv)

any other part or component essential to the operation of the firearm.

(4)

Markings shall be applied to an exposed surface of the firearm by using the stamping method at the time of their manufacture and stamped marking shall have a depth of at least 0.20 mm.

(5)

The applied marking shall be -

(i)

conspicuous without technical aids or tools;

(ii)

easily recognisable;

- (iii)
readable;
- (iv)
durable; and
- (v)
recoverable (as far as is technically possible).

(6)
The smallest packaging units of ammunition for firearms shall be marked containing the following information, namely:-

- (i)
country of manufacture;
- (ii)
name of the manufacturer;
- (iii)
lot or batch number unique to the manufacturer;
- (iv)
year of manufacture;
(this information may be incorporated into the lot or batch number),
- (v)
caliber; and
- (vi)
type.

(7)
Individual cartridges may also be marked, which may include the following information, namely: -

- (i)
country of manufacture;
- (ii)
name of the manufacturer;
- (iii)
lot or batch number unique to the manufacturer;
- (iv)
caliber; and
- (v)
type.

59.
Proof test of firearms.

(1)
A new manufacturer may set up a proof test facility for gun barrels or completed firearms.

(2)
The facility shall be located within its premises separately from its arms manufacturing unit.

(3)
A manufacturer who intends to set-up a proof testing facility shall make an application in Form A-6 along with the application for arms and ammunition manufacturing license.

(4)
The application under sub-rule (3) for proof-testing facility shall be examined by the Ministry of Home Affairs in consultation with the Directorate General of Quality Assurance (DGQA), Ministry of Defense and in accordance with the guidelines specified for manufacturing license.

(5)
The existing manufacturers shall get their barrels or completed firearms proof tested either from the ordnance factories or other proof houses having proof test facilities under these rules.

(6)
Every licensee having proof-testing facility shall be responsible for the security and disposal of waste such as rejected

barrels or completed firearms.

(7)

[Every licensee holding a licence in Form VII]

[Substituted 'Every licensee having a proof-test facility' by Notification No. G.S.R. 1342(E), dated 27.10.2017 (w.e.f. 15.7.2016).]

shall maintain a proof test register in the format of a secure electronic database in addition to the records specified in rule 65 for sale or disposal of completed arms and ammunition.

(8)

The record to be maintained by the licensee under sub-rule (7) shall include the following particulars, namely:-

(i)

Serial numbers of gun-barrels or completed firearms manufactured;

(ii)

Date, month and year of manufacture;

(iii)

Date of dispatch of gun-barrels or completed firearms to proof house;

(iv)

Number and date of license (Transport License in Form XIII) under which gun-barrels or completed firearms sent for proof test;

(v)

Date of receipt of gun-barrel or completed firearms after proof test;

(vi)

Result of proof test;

(vii)

Date of completion of gun if only the gun-barrel has been proved;

(viii)

Date on which completed firearm transferred to register for sale or transfer maintained under rule 65;

(ix)

Serial number in rectification register in case gun-barrel or completed firearm was not accepted in proof on initial submission;

(x)

Remarks of inspecting officer;

(9)

[Every licensee having a licence in Form VII]

[Substituted 'Every licensee under this rule' by Notification No. G.S.R. 1342(E), dated 27.10.2017 (w.e.f. 15.7.2016).]

shall maintain a rectification register containing details of the barrels or completed firearms not passed by proof house, which shall include the following particulars, namely:-

(i)

Serial number;

(ii)

Serial number stamped on gun-barrel or completed firearm to be rectified;

(iii)

Number and date of proof house communication indicating rectifications to be made;

(iv)

Date on which gun-barrel or completed firearm re-submitted for proof test after rectification;

(v)

Date of receipt of gun-barrel or completed firearm after proof test and the result of proof test;

(vi)

Date of completion of firearm if gun-barrel or completed firearm has been proved;

(vii)

Date on which completed firearm transferred to Register for sale and transfer maintained under rule 65;

(viii)

Remarks

(10)

The proof-test and the rectification records shall be inspected by the district magistrate of the area, or by an officer nominated by him in this behalf, during July and January every year and during one surprise inspection in a calendar year to verify the following, namely:-

(i)

serial numbers on gun-barrels or completed firearms are stamped in the strict order in which they are manufactured;

(ii)

entries of sale or transfer are made promptly and tally with record of such transactions under rule 65;

(iii)

the conditions of the license are strictly complied with.

(11)

A Transport license in Form XIII may be issued by the licensing authority on an application for transport of gun-barrels or completed firearms to proof house provided the license in Form VII is valid on the date of issuance of such Transport license.

(12)

Transport license issued under sub-rule (11) for transport of gun-barrels or completed firearms to proof houses shall indicate separately total quantity of gun-barrels or completed firearms to be dispatched for proof test for the first time and for rectification of defects.

(13)

The licensee shall be eligible to submit gun-barrels or completed firearms for proof test after rectification of defects without any limit on the number of occasions for such submission:

Provided that the licensee shall complete the necessary rectifications within a period of two years from the date of communication of first test results of the defects issued by the concerned proof house.

(14)

The gun-barrels or completed firearms for proof test which are unfit or beyond rectification, shall be mutilated by the proof house and the decision of the officer-in-charge of proof house concerned in this regard shall be final:

Provided that the mutilated parts that are capable of being utilized, shall be returned by the proof house to the licensee.

(15)

The sale or transfer of proof tested gun-barrels alone shall be prohibited and the gun-barrels after proof test shall be assembled as a complete gun only by the licensee authorized to manufacture it.

(16)

The gun-barrels or completed firearms manufactured during a calendar year shall be proof-tested within a period of eighteen months from the date of the manufacture, failing which, it shall be considered to have been manufactured during the calendar year of the proof-test.

60.

Capacity revision and applicability of new norms to existing manufacturers.

(1)

The existing manufacturers may apply for grant of a fresh license in Form VII in accordance with the procedure specified in rule 51.

(2)

The existing manufacturer may apply for enhancement or restoration or revision or re-fixation of its licensed capacity by an application made in this regard with the Government of India in the Ministry of Home Affairs with the recommendation of the State Government concerned, along with the following documents, namely:-

(i)

a copy of the existing manufacturing license;

(ii)

certified copies of the annual accounts of the licensee for the last five years duly certified by a Chartered Accountant;

(iii)

details of the plant and machinery and manufacturing facility;

(iv)

certified copies of the stock records, manufactured items and sales turnover for the last five years duly certified by a Chartered Accountant;

(v)

detailed proposal for enhancement of manufacturing capacity, project outlays, means of finance and justification for economic viability and market demand projections for enhancement in capacity production duly certified by a Chartered Accountant;

(vi)

track record and preparedness to comply with the security guidelines for manufacturers in Micro, Small and Medium Enterprise (MSME) sector;

(vii)

declaration to comply with the provisions contained in these rules.

(3)

Every application under sub-rule (2), shall be examined by the licensing committee referred to in sub-rule (6) of rule 51, which may allow the capacity revision provided the existing licensed capacity is fully utilized by the manufacturer.

(4)

[Every existing manufacturer shall be issued a fresh licence in Form VII, within a period of [three years]

[Substituted by Notification No. 1342(E), dated 27.10.2017 (w.e.f. 15.7.2016).]

of the notification of these rules, by the licensing authority and any permission or any exemption granted for procurement of raw materials to the existing manufacturers under the Arms Rules, 1962 or under the Industrial Development (Regulation) Act, 1951 or rules framed thereunder, shall be deemed to have been issued under the corresponding provisions of these rules.

(5)

Every fresh licence issued in Form VII under sub-rule (4) shall be valid for the life time of the licensee and such licensee shall be permitted to have enhanced annual production of firearms and/or ammunition upto fifteen per cent. of the quantity endorsed on his licence by giving prior intimation to the licensing authority and for which no further endorsement on the licence as to capacity, shall be required.;

61.

License in case of an individual or a sole proprietor.

(1)

In case the existing manufacturer having a license in Form IX under the Arms Rules, 1962 is an individual or a sole-proprietorship concern, the license shall expire ipso-facto on the death of the licensee.

(2)

The legal heirs of the licensee under this rule may prefer an application for grant of a fresh license in Form VII to the Central Government in the Ministry of Home Affairs, which may consider such application on case to case basis.

62.

Admission of partners in case of existing manufacturer.

(1)

In case the existing manufacturer having a license in Form IX under the Arms Rules, 1962 is a partnership firm, additional partners may be admitted in case of death of a partner wherein legal heirs of the deceased partner may be admitted as a partner or partners in the firm subject to prior approval of the Central Government in the Ministry of Home Affairs.

(2)

An existing partner, during his life time, may induct his legal heirs as an additional partner under this rule, on obtaining written consent of all other existing partners, if any, in the partnership firm subject to prior approval of the Central Government in the Ministry of Home Affairs.

63.

Conversion of partnership firm into a private limited company.

(1)

Any existing manufacturer, being a partnership firm, may make an application to the Central Government in the Ministry of Home Affairs with the recommendations of the State Government concerned for grant of permission to convert the firm into a private limited company and the Central Government may grant such permission provided that the

Memorandum and Articles of Association of the newly incorporated Company contain that?

(a)
only the existing partners or family members are on the Board of Directors of the company;

(b)
restriction on the directors to transfer shares, assets or profits of the company to any outside person and on submission of an undertaking to the effect that the applicant company has complied with the relevant provisions of the Companies Act, 2013 (18 of 2013) in this regard.

(2)
No sale or transfer of the factory premises, inventory, machinery or other assets of the private limited company, referred to in sub-rule (1) shall be permissible without the prior approval of the Central Government.

64.
Restoration of license of a discontinued business of an existing manufacturer.

- In case of a discontinued business, the legal heir of the deceased licensee, if he is a major, may make an application for the grant of a fresh license in Form VII to the Central Government in the Ministry of Home Affairs within twelve months of the death of the licensee and in case the legal heir is a minor, within twelve months from the date of his attaining majority.

65.
Record of transactions to be maintained by licensees holding license in Form VII.

(1)
The manufacturer shall keep a register in the format of a secure electronic database known as the 'Firearms Stock Register', wherein the following particulars shall be recorded: -

(a)
on the debit side, against a stock number, the date of manufacture, make, caliber, model and manufacturer's serial number; and

(b)
on the credit side, against the stock number referred to in sub-rule (a), -

(i)
the date of sale of firearm;

(ii)
the name and address and license number of the dealer to whom the firearm is sold;

(iii)
the particulars of the Government department to whom the firearm is sold;

(iv)
the particulars and address of the person to whom the firearm was exported together with the particulars of the export license issued under these rules by the licensing authority.

(2)
The manufacturer shall keep a register in the format of a secure electronic database known as 'the Ammunition Stock Register', wherein the following particulars shall be recorded:-

(a)
on the debit side,-

(i)
the caliber, make and quantity of all ammunition manufactured, purchased or acquired;

(A)
the person from whom it was purchased or acquired; and

(B)
the reason for the purchase or acquisition.

(ii)
the lot number and the date of manufacture or receipt; and

(iii)

in the case of the ammunition being purchased or acquired -

(b)

on the credit side, -

(i)

the lot number and the date of sale or use by the manufacturer of the ammunition;

(ii)

the caliber, make and quantity of ammunition sold or used by the manufacturer;

(iii)

the name, address and license number of the dealer to whom the ammunition is sold; or

(iv)

the particulars of the Government department to whom the ammunition is sold; or

(v)

the name and address of the person to whom the ammunition was exported together with the particulars of the export license issued under these rules by the licensing authority;

(vi)

the date of collection and the signature of the dealer or relevant Government official to whom the ammunition was delivered.

(3)

(a)

The manufacturer shall keep updated stock sheets of all manufactured firearms and main firearm components.

(b)

The registers referred to in sub-rules (1) and (2) shall be kept at the business premises specified in the license.

(c)

All particulars of firearms and ammunition shall be recorded immediately by the licensee on manufacture, receipt, transfer or use, as the case may be.

(4)

(a)

The manufacturer shall establish an online electronic connectivity under his user id with the NDAL system and shall provide for a weekly electronic online transfer of data regarding firearms manufactured and sold or transferred and ammunition manufactured and sold or transferred or consumed for the week, as recorded in the registers referred to in sub-rules (1) and (2) .

(b)

If any circumstances occur which prevent a licensee to submit online returns on NDAL system by means of electronic network connectivity, the local licensing authority shall be informed immediately in order to establish alternative means to submit the weekly returns.

(c)

Weekly returns for the current week shall be submitted by the close of business hours on every Saturday.

66.

Enforcement powers as to inspection and confiscation.

(1)

(a)

The licensing authority shall from time to time, conduct inspections of manufacturing facilities and records, in order to ensure compliance with the conditions of the license under the Act.

(b)

The inspection may include verification of inventory records, mechanism of marking of firearms, review of security norms, personnel records and any other areas of relevance deemed appropriate by the inspecting team or as per the instructions contained in the audit and inspection programme decided by the licensing authority.

(2)

Firearms, their parts, components or ammunition that have been illicitly manufactured shall be permanently confiscated by the enforcement agencies.

(3)

(a)

Firearms, their parts, components or ammunition that are suspected of having been illicitly manufactured may be seized temporarily in respect of the following cases, namely:-

(i)

if a manufacturing license is suspended, revoked or canceled, or if it expires; or

(ii)

the holder of a manufacturing license is convicted of an offense; or

(iii)

the licensing authority has grounds to believe that an offense has been or is about to be committed and that the items to be seized are either evidence of this or are themselves the subject matter of the offense involved.

(b)

Seized items that are found to have been illicitly manufactured shall be confiscated and the items that are found not to have been illicitly manufactured shall be promptly returned to their owner.

(4)

(a)

Firearms, their parts, components or ammunition that have been illicitly manufactured shall be promptly disposed of, preferably through destruction in accordance with these rules.

(b)

A method of disposal other than destruction may be used, provided that the firearms are first marked and registered, and the method of disposal is recorded.

Part II ? Manufacture of Replica of Firearms

67.

License to manufacture replica of firearms.

(1)

A license in Form VII-B may be granted to any person, to manufacture replicas of antique (muzzle loading) and contemporary (breech-loading) firearms for domestic market and export purposes.

(2)

The persons not holding any license or persons holding a license in Form I for possession of machinery, or in Form IX for manufacture of firearms, under the Arms Rules, 1962 shall apply for a new license in Form VII-B for manufacture and sale of replica of firearms within one year from the date of the notification of these rules.

68.

Inspection of samples of replica of firearms.

(1)

The manufacturers of replicas of firearms shall keep not more than fifty samples of each type of replicas at any given time.

(2)

The manufacturer of replica of firearms shall, before commencement of manufacture, cause inspection by Directorate of Inspection, Department of Defense Production, Ministry of Defense of sample of each type of replica at the cost to be borne by the manufacturer, by submitting to the Directorate of Inspection ?

(i)

three specimens of each type of replica proposed to be manufactured;

(ii)

five copies of photos or drawings of each type of replica describing its main parts; and

(iii)

the original and one copy of the license issued in Form VII-B.

(3)

After inspection, the Directorate of Inspection shall certify on the photos or drawings the innocuousness of the replicas and such certificates shall be sealed on each of the three specimens of replica submitted for inspection.

(4)

One sample of each type of replica inspected along with a certified copy of its photo or drawing shall be delivered to the Ministry of Home Affairs for retention.

(5)

The original license in Form VII-B along-with the remaining two samples of inspected replicas and two copies of certified photos or drawing shall be sealed and delivered to the manufacturer who shall deposit one inspected specimen, one certified copy of its photo or drawing with the district magistrate of the district in which the replicas are to be manufactured.

(6)

The third inspected specimen and one copy of the certified photo or drawing shall be retained by the manufacturer.

(7)

The Directorate of Inspection shall retain the copy of the license in Form VII-B and two copies of the certified photos or drawing.

69.

Markings of replicas of firearms.

(1)

The name of manufacturer shall be engraved on each replica manufactured for sale as below:

"Replica of fire-arm manufactured by Messrs

(Name of the firm and city) India".

(2)

The manufacturer shall also engrave on each replica -

(i)

type of replica;

(ii)

manufacturer's serial number; and

(iii)

date of the inspection of the specimen by the Directorate of Inspection.

Illustration:

If four different types are approved after inspection, the specimens will be described as A, B, C and D and the following shall be engraved on each replica in addition to the name of manufacturer vide sub-rule (1):-

"A/001 (DD-MM-YYYY)" where,-

'A' represents the type of approved replica;

'001' represents the serial number; and

the date within brackets indicates the date of certificate of inspection recorded by the Directorate of Inspection.

70.

Maintenance of records by manufacturer of replicas of firearms.

(1)

The manufacturer shall maintain records of manufacture and sale of replicas in the format given in the following table, namely:--

Table

Serial No. of firearm replica manufactured

Date of manufacture

Date of disposal

Name and address of purchaser if sold to

individual in India

Name and address of arms dealers to whom supplied

for sale or export

Particulars of export permission received if

exported directly

Particulars of certificate of innocuousness

Balance Stock in hand

(1)

(2)

(3)

- (4)
- (5)
- (6)
- (7)
- (8)
- (2)

The records shall be inspected by the licensing authority of the jurisdiction of the licensee.

- (3)

The replicas manufactured, which correspond to inspected samples shall be allowed to be sold in India or exported to foreign countries.

- (4)

- (a)

The licensee shall establish an online electronic connectivity under his user-id with the NDAL system and provide for a weekly electronic online transfer of data regarding replicas of firearms manufactured and sold for the week, as recorded in the register referred to in sub-rule (1).

- (b)

If any circumstances occur which prevent a licensee to submit online returns on NDAL system by means of electronic network connectivity, the local licensing authority shall be informed immediately in order to establish alternative means for submission of the weekly returns.

- (c)

Weekly returns for the current week shall be submitted by the close of business hours on every Saturday.

71.

Procedure for making replicas of firearms innocuous.

- The replicas of firearms may be made innocuous through any of the following methods, namely:-

- (i)

by cutting a slot of the size of 12 mm x 6 mm on the underside of the barrel at a distance of 25 mm from the breech end in case the barrels of replicas are made of the same metal which is used for manufacture of barrels of firearm; or

- (ii)

by manufacturing barrels of replicas with soft metals like brass; or

- (iii)

by eliminating channel in the barrel or by not linking the channel with fire mechanism or by eliminating firing mechanism; or

- (iv)

by providing a solid barrel or by making the rear portion of the barrel solid while the front portion of the barrel is given the shape of a normal barrel.

72.

Sale and export of replicas of firearms.

- (1)

The grant of licenses for export of firearms replica under these rules shall be subject to the provisions of the Foreign Trade (Development and Regulation) Act, 1992 (

22 of 1992

).

- (2)

Every transaction of sale or export shall be accompanied by a certificate from the manufacturer of firearm replica under his seal and stamp certifying that the replicas being sold or exported have been rendered innocuous as firearms and correspond to the sample inspected by the Directorate of Inspection, Department of Defense Production and shall contain the following particulars: -

- (i)

serial number of replica;

- (ii)

date of inspection of sample;

- (iii)
year of manufacture; and
- (iv)
name of the manufacturer.

(2)
(a)
The licensed capacity for the licenses granted for manufacture of replica of muzzle loading firearms shall be restricted to a minimum quantity of 250 pieces per month and a maximum quantity of 500 pieces per month.

(b)
The licensed capacity for the manufacture of replica of contemporary or modern firearms shall be as approved by the licensing authority as specified in column (5) of Schedule II.

Part III ? Arms and Ammunition Dealers

73.
Grant of licenses to arms and ammunition dealers.

(1)
An application for grant of a license in Form VIII for arms and ammunition dealers shall be made in Form A-8, along with the following documents, namely:-

(i)
a written declaration along with self-certified copies of drawings stating that the applicant has facilities available of a strong room for the safe custody of the firearms and ammunition;

(ii)
a written undertaking with specific reference to the steps taken in connection with the safe custody of the firearms and ammunition including provision for access control, close circuit television system, security guards, fire-fighting devices, etc.;

(iii)
verification forms containing the name and address of every person authorized to trade on behalf of the applicant at the premises, who must possess the requisite training for safe handling of firearms:

Provided that the Central Government may specify additional conditions on the conduct of business by the dealers having place of business in any area declared as a 'disturbed area' under the Armed Forces Special Powers Act, 1958 (AFSPA) (28 of 1958) or under section 24A or 24B of the Act, by passing a general or special order in this regard.

(2)
An application for renewal of license in Form VIII shall be made at least sixty days prior to the expiry of the said license with the licensing authority along with the documents mentioned in sub-rule (1).

(3)
The license granted in Form VIII shall be valid for a period of five years and it shall specify the types of arms and/or ammunition that may be sold or kept for sale and that may be deposited for safe custody under rule 48 or under Section 21.

74.
License for restricted category of firearms and ammunition to arms and ammunition dealers.

- The Central Government in the Ministry of Home Affairs may, by a license granted by it in Form VIII authorize selected dealers to buy, sell or keep for sale a specified amount of firearms and ammunition of category I(b) or I(c) specified in Schedule I and the said licensee shall not sell or transfer any firearms or ammunition of such category to any person, without obtaining a prior confirmation from the licensing authority of the jurisdiction of the holder of the license that the licensee has been issued the said license to possess such restricted firearm or ammunition.

75.
Records of transactions to be maintained by arms and ammunition dealers.

(1)
The licensee shall keep a register named as 'the Firearms Stock Register', containing the following particulars, namely:-

(a)
on the debit side, -

(i)

a stock number that must be clearly affixed by means of a temporary marking on the firearm;

(ii)

the make, type, caliber of the firearm, as well as every manufacturer's serial number or additional identification mark that is reflected on the firearm;

(iii)

the date of receipt of the firearm;

(iv)

in case of trade transfer, the full name, license number, period of validity of license, UIN and physical address of the manufacturer or dealer from whom the firearm was purchased or acquired along with the particulars of the purchase invoice, challan, transport documents and details of the transport license in Form XII, if applicable;

(v)

in case of private transfer, the full name, license number, period of validity of license, UIN, physical address of the licensee, the authorization to sell issued by the concerned licensing authority to the licensee or his legal heirs from whom the firearm was purchased or acquired and the signature of the person from whom the firearm was acquired.

(b)

on the credit side, against the stock number referred to in sub rule (1),-

(i)

the date of sale of firearm;

(ii)

in case of trade transfer, the full name, license number, period of validity of license, UIN and physical address of the dealer to whom the firearm was sold or transferred along with the particulars of the sale invoice, challan, transport documents and details of the transport license in Form XII, if applicable;

(iii)

in case of private transfer, the full name, license number, period of validity of license, UIN, physical address of the licensee, details of the authorization to purchase and the purchase period mentioned on license issued by the concerned licensing authority to the licensee to whom the firearm was sold or transferred along with the particulars of the sale invoice and the signature of the person to whom the firearm was sold;

(iv)

the signature of the person responsible for the transfer of the firearm shall be affixed to the recorded particulars mentioned in clauses (i) to (iii) as applicable.

(2)

The licensee shall keep a register named as 'the ammunition register', containing the following particulars, namely:-

(a)

on the debit side, -

(i)

the date of receipt of the ammunition;

(ii)

in case of trade transfer, the full name, license number, period of validity of license, UIN and physical address of the manufacturer or dealer from whom the ammunition was purchased or acquired along with particulars of the purchase invoice, challan, transport documents and details of the transport license in Form XII, if applicable;

(iii)

in case of private transfer, the full name, license number, period of validity of license, UIN, physical address of the licensee, and the signature of the person from whom the ammunition was acquired.

Note: Full details of the ammunition containing its caliber, make and quantity are required to be mentioned on all the documents and the register;

(b)

on the credit side, -

(i)

the date of sale of ammunition;

(ii)

in case of trade transfer, the full name, license number, period of validity of license, UIN and physical address of the

dealer to whom the ammunition was sold or transferred along with particulars of the sale invoice, challan, transport documents and details of the transport license in Form XII, if applicable;

(iii)

in case of private transfer, the full name, license number, period of validity of license, UIN, physical address of the licensee, details of the authorization to purchase and the purchase period mentioned on license issued by the concerned licensing authority to the licensee to whom the ammunition was sold or transferred along with particulars of the sale invoice and the signature of the person to whom the ammunition was sold;

(iv)

the signature of the person responsible for the transfer of the ammunition shall be affixed to the recorded particulars mentioned in clauses (i) to (iii) as applicable.

Note: Full details of the ammunition containing its caliber, make and quantity are required to be mentioned on all the documents and the register.

(3)

In case of trade transfers mentioned in sub-rule (1) and sub-rule (2), the dealer making such sale or transfer shall satisfy himself prior to entering into such transaction that the quantity of the firearms or ammunition to be sold or transferred does not exceed the total licensed quantity of the purchasing dealer as mentioned on his license on the date of sale or transfer.

(4)

No trade transfers of firearms and ammunition shall be made under this rule unless accompanied by a sales invoice.

(5)

The registers maintained under sub-rules (1) and (2) shall be kept at the business premises specified on the license and every page of such register shall be numbered in sequence with entry recorded in ink and any amendment effected by means of inter-lineations or crossing out in ink and not by way of erasure and be initialed by the person effecting it.

(6)

No person may remove or cause to be removed any page from any register contemplated in this rule and removal of any page there from shall be deemed, in the absence of evidence to the contrary, to have been removed by or on the authority of the licensee who is obliged to keep such register.

(7)

All particulars to be entered in a register under this rule, shall be recorded immediately on receipt, transfer or sale, as the case may be, of the firearm or ammunition concerned and in addition to the particulars specified in sub-rules (1) and (2) shall depict the daily balance of stock in hand of firearms and ammunition.

(8)

(a)

The licensee shall establish an online electronic connectivity under his user id with the NDAL system and shall provide for a weekly electronic online transfer of data of the transactions made regarding firearms and ammunition for the week, as recorded in the registers referred to in sub-rules (1) and (2).

(b)

If any circumstances occur which prevent a licensee to submit online returns on NDAL system by means of electronic network connectivity, the local licensing authority shall be informed immediately in order to establish alternative means for submission of the weekly returns.

(c)

Weekly returns for the current week shall be submitted by the close of business hours on every Saturday.

76.

License to keep in custody arms and ammunition.

(1)

The licensee in Form VIII shall not accept for deposit arms or ammunition under the provisions of section 21 of the Act and for safe custody under rule 48 without satisfying himself that there is no mala fide intention on the part of the depositor or any person on whose behalf the deposit is being made.

(2)

The licensee shall keep separate registers for arms and ammunition deposited under section 21 and for safe custody under rule 48.

(3)

The registers referred to in sub-rule (1) shall contain the following particulars, namely:-

(i)

the date of receipt of firearm;

(ii)

the full name and address of the person from whom the arms or ammunition were acquired;

(iii)

the make, type, caliber of the firearm, as well as, every manufacturer's serial number or additional identification mark that is reflected on the firearm;

(iv)

the number, date of issue, validity period of the license and UIN of the licensee and signature of the person from whom the firearm was acquired;

(v)

the date of return, transfer or disposal of the arms or ammunition; and

(vi)

the signature of the person to whom the arms or ammunition were returned, transferred or disposed.

(4)

The registers under sub-rule (2) shall be kept at the business premises specified on the license and every page of such register shall be numbered in sequence with entry recorded in ink and any amendment effected by means of inter-lineations or crossing out in ink and not by way of erasure and initialed by the person effecting it.

(5)

No person may remove or cause to be removed any page from any register contemplated in this rule and if any page is removed there from, it shall be deemed, in the absence of evidence to the contrary, to have been removed by or on the authority of the licensee who is obliged to keep such register.

(6)

All particulars that must be entered in a register under this rule shall be recorded immediately on receipt, return or disposal, as the case may be, of the firearm or ammunition concerned and in addition to the particulars specified in sub-rule (3) depict the daily balance of stock in hand of firearms and ammunition kept under deposit.

(7)

(a)

The licensee shall establish an online electronic connectivity under his user-id with the NDAL system and shall provide for a weekly electronic online transfer of data regarding firearms and ammunition deposited or released during the week, as recorded in the registers referred to in sub-rule (2).

(b)

If any circumstances occur which prevent a licensee to submit online returns on NDAL system by means of electronic network connectivity, the local licensing authority shall be informed immediately in order to establish alternative means for submission of the weekly returns.

(c)

Weekly returns for the current week shall be submitted by the close of business hours on every Saturday.

Part IV ? Accredited Gunsmiths

77.

License for carrying out minor repairs.

(1)

A license in Form IX-A entitles the licensee gunsmith to carry out minor repairs to firearms and accept and store such firearms.

(2)

The license also entitles the gunsmith to acquire and keep in stock ammunition to test firearms.

78.

License for carrying out major repairs, conversion, etc.

(1)

Where a license is granted in Form IX for conversion or carrying out major repair, of any category of firearms or

ammunition, it entitles the licensee gunsmith to fabricate components or parts, for the purpose of conversion or major repair of such firearms but not to manufacture such components or parts to be utilized for assembling into complete firearms or ammunition of any category.

(2)

The license also allows the licensee for deactivation and storage of firearms.

(3)

The applicant applying for a license in Form IX must possess professional technical expertise to act as a gunsmith from a national or international institute or body legally recognized for imparting the professional or technical training.

(4)

The Central Government in the Ministry of Home Affairs shall notify the technical course contents and institutions recognized for imparting the training and expertise referred to in sub-rule (3) by passing a general or special order in this regard.

(5)

Where a license is granted in Form IX to shorten a firearm, the license shall specifically state that the licensee is permitted to shorten a firearm:

Provided that the licensee, shall not be permitted to shorten the barrel length of any shotgun or rifle, to less than 20 inches.

(6)

Where such a license is granted for conversion of ammunition, it shall not entitle the licensee to convert blank cartridges or any ammunition having no projectile into single or multiple projectile ammunition or to load or re-load any ammunition.

(7)

The licensee having a license in Form IX is entitled to accept and store a firearm and keep in stock any part of a firearm, including a main frame component, for the purpose of performing his work.

(8)

The license also entitles the gunsmith to acquire and keep in stock ammunition to test firearms.

(9)

The licensee shall not alter or re-engrave or remove the serial number or any other identification mark of a firearm without the prior written permission of the licensing authority.

(10)

Firearms and ammunition may only be test-fired by the licensee at an accredited shooting range or test bench or cabinet, only in such manner and subject to such conditions, as are specifically mentioned in his license.

(11)

The licensee gun smith who carries out alteration of the mechanism, caliber or barrel length of a firearm, before the conclusion of the work, shall notify the licensing authority in writing of -

(i)

the particulars of the firearm, including the type, name, caliber and manufacturer's serial number or additional identification number;

(ii)

the name and address of the licensee along with his UIN, license number and date of the issue of the license in respect of the firearm;

(iii)

the particulars of the work performed on the firearm.

(12)

The licensee holding a license in Form IX may deactivate a firearm only with the prior permission of the licensing authority.

79.

Other conditions for licenses issued in Form IX and IX-A.

- The validity of the license granted in Form IX or Form IX-A shall be for a period of five years and shall specify the types of arms that may be converted, repaired (major or minor), tested (other than proof test) or to be kept for conversion, shortening, repairing (major or minor) or test (other than proof test) along with the description of ammunition allowed to be possessed for testing the repaired firearms or the description of ammunition allowed to be converted, as per the type

of license granted under this category.

80.

Unserviceable or defective and deactivated firearm.

(1)

No firearm shall be categorized as unserviceable or defective or deactivated firearm unless it is certified by the licensing authority in writing in this regard.

(2)

Any licensee who wishes to get his firearm declared as unserviceable or defective or deactivated may make an application to the licensing authority for grant of permission for declaring it as unserviceable or defective or carrying out deactivation of the firearm and the licensing authority may grant the permission for declaring such firearm as unserviceable or defective or carrying out deactivation of the firearm.

(3)

A firearm shall only be deactivated by a gunsmith and in the manner specified under rule 81.

(4)

Where the gunsmith declares a firearm to be un-serviceable or defective or deactivates a firearm, he shall issue a certificate in this regard to the licensee indicating therein the reasons for declaring such firearm to be un-serviceable or defective and in case of deactivation of the firearm, shall certify that the procedure for deactivation specified under rule 81 has been complied with and shall forthwith inform the licensing authority within seven days along with copy of the certificate.

(5)

The licensee on receipt of the certificate referred to in sub-rule (4) shall within seven days of the receipt thereof, submit the said certificate along with the firearm for inspection to the licensing authority:

Provided that the licensing authority shall forward the firearm for ballistic testing wherever required.

(6)

The licensing authority on being satisfied after having inspected the firearm declared as unserviceable or defective or deactivated firearm and on the basis of the certificate and the ballistic report submitted to him, shall pass orders for destruction of unserviceable or defective firearms in the manner specified in rule 104 and shall pass orders for deletion from the license of the firearms so ordered for being destroyed or deactivated.

81.

Technical procedure for deactivation of firearms.

(1)

A firearm shall be deactivated in the following manner, namely:-

(i)

Barrel and chamber: A tight fitting metal plug to be inserted from the rear end and welded in place to prevent chambering of a cartridge or loading of a powder charge;

(ii)

Revolver cylinder: A tight fitting metal plug to be inserted from the rear end and welded in place to prevent chambering of a cartridge or loading of a powder charge;

(iii)

Firing pin: To be shortened and the firing pin hole in the breech face to be closed by welding;

(iv)

Breech face: 75% or more to be removed at an angle of 45°.

Explanation. - In the case of a revolver, "breech face" refers to the area supporting the base of the cartridge in line with the barrel;

(v)

Slide, bolt or breech-block: 75% or more of the locking surfaces to be removed at an angle of 45°;

(vi)

Frame or receiver: 75% or more of the feed-ramp, locking shoulders and supports to be removed and a metal obstruction welded in place to prevent a standard slide, bolt or breech-block from being fitted;

(vii)

Any other manner as approved in writing by the licensing authority based on the technical opinion of the person holding

a license in Form IX.

(2)

Firearms deactivated prior to the notification of these rules shall be deemed to have been deactivated according to these rules.

82.

Records of transactions to be maintained by gunsmiths holding a license in Form IX or IX-A.

(1)

The licensee shall keep a register known as 'the Firearms Repair Register', wherein the following particulars shall be recorded, namely: -

(a)

In respect of every firearm received for minor or major repair,?

(i)

a stock number that must be clearly affixed by means of a temporary marking on the firearm;

(ii)

the make, type, caliber of the firearm, as well as, every manufacturer's serial number or additional identification mark that is reflected on the firearm;

(iii)

the date of receipt of the firearm;

(iv)

the name, address and UIN of the licensee from whom the firearm was acquired;

(v)

the number, date and validity period of the arms license, permit or authorization of the person from whom the firearm was acquired;

(vi)

nature of repair done on the firearm or any other work performed; and

(vii)

the date of collection and signature of the holder of the license, permit or authorization issued in respect of the license.

(b)

For licenses granted in Form IX, in respect of main firearm components, received in stock,-

(i)

the date of receipt of the main firearm components;

(ii)

the purpose of such receipt;

(iii)

the name, address and UIN of the licensee from whom the main firearm components were acquired;

(iv)

the transfer or disposal of the main firearm components including the name, address and UIN of the licensee to whom these were supplied; and

(v)

the signature of the person who received it.

(2)

The licensee shall keep a register known as 'the Ammunition Stock Register', wherein the following particulars shall be recorded, namely: -

(a)

on the debit side, -

(i)

the caliber, make and quantity of all ammunition purchased or acquired;

(ii)

the date of receipt; and

(iii)

the number, date and UIN of the license of the person from whom the ammunition was purchased or acquired.

(b)

on the credit side, -

(i)

the caliber, make and quantity of all ammunition consumed or used;

(ii)

the date and reason of disposal of the ammunition and the signature of the licensee confirming the entries as correct.

(3)

The registers maintained under sub-rules (1) and (2) shall be kept at the business premises specified on the license and every page of such register shall be numbered in sequence with every entry written in ink and any amendment thereof effected by means of inter-lineations or crossing out in ink and not by way of erasure and must be initialed by the person, effecting it.

(4)

No person may remove or cause to be removed any page from any register contemplated in this rule and removal of any page there from shall be deemed, in the absence of evidence to the contrary to have been removed by or on the authority of the licensee who is obliged to keep such register.

(5)

All particulars to be entered in a register under this rule, shall be recorded immediately on receipt, transfer, use or disposal, as the case may be, of the firearm, main firearm component or ammunition and in addition to the particulars specified in sub-rules (1) and (2), shall depict the daily balance of stock in hand of firearms, main firearm components and ammunition kept for repair or testing.

(6)

(a)

The licensee shall establish an online electronic connectivity under his user-id with the NDAL system and shall provide for a weekly electronic online transfer of data of transactions regarding firearms and ammunition for the week, as recorded in the registers referred to in sub-rules (1) and (2).

(b)

If any circumstances occur which prevent a licensee to submit online returns on NDAL system by means of electronic network connectivity, the local licensing authority shall be informed immediately in order to establish alternative means for submission of the weekly returns.

(c)

Weekly returns for the current week shall be submitted by the close of business hours on every Saturday.

Part V ? Common provisions for manufacturers, arms dealers and gunsmiths

83.

Inspection of premises, stock and record.

- Every magistrate and any police officer not below the rank of Inspector, or, if the Central Government so directs, of Sub-Inspector, acting within the local limits of his authority, or any officer of the Central Government specially empowered in this behalf may, -

(i)

enter and inspect the premises in which arms or ammunition are manufactured or proof-tested or repaired or in which arms or ammunition are kept by a manufacturer of or dealer in or gunsmith of such arms or ammunition; and

(ii)

examine the stock and accounts of receipts and disposals of arms and ammunition or any other register or document.

84.

Manufacture and sale of air weapons including paintball markers or guns.

(1)

Notwithstanding anything contained in the foregoing provisions of these rules, -

(a)

Manufacture or proof test or both, transfer, sale, keeping for sale or transfer of all types of air weapons by a manufacturer, including air rifles, air guns and paintball markers or guns irrespective of the muzzle energy or caliber or bore shall be subject to licensing requirements under these rules:

Provided that an existing manufacturer shall, within a period of one year from the date of notification of these rules in the

Official Gazette, apply to the licensing authority for grant of a license for the manufacture of such weapons and the licensing authority may grant a license in Form VII-C to such manufacturer.

(b)

All air weapons including air rifles and air guns, having muzzle energy more than 20 joules or 15 ft. lbs. and/ or bore more than 0.177" or 4.5 mm, shall be subject to markings as specified in rule 58.

(2)

Sale, transfer and keeping for sale or transfer of all types of air weapons including air rifles, air guns and paintball markers or guns irrespective of the muzzle energy or caliber or bore shall be only through the authorized arms and ammunition dealers or the air weapon dealers licensed under these rules:

Provided that any existing air weapon dealer shall, within a period of one year from the date of notification of these rules in the Official Gazette, apply to the licensing authority for grant of a license for sale, transfer and keeping for sale or transfer of such weapons and the licensing authority may grant a license in Form VIII-A to such dealer:

Provided further that the sale or transfer of air weapons including air rifles and air guns having muzzle energy more than 20 joules or 15 ft. lbs. and/or bore more than 0.177" or 4.5 mm and paintball markers or guns having muzzle energy not exceeding 90 m/s or 300 ft/s (300 fsp), shall be made only through an authorized arms and ammunition dealer to a valid arms license holder.

(3)

Sale or transfer by the authorized arms and ammunition dealer or the air weapon dealer of air weapons including air rifles and air guns having muzzle energy less than 20 joules or 15 ft. lbs. and/or bore less than 0.177" or 4.5 mm shall be made against obtaining of an identification and residence proof from the buyer thereof and against issuance of an invoice containing the said particulars at the time of sale.

Explanation. - For the purpose of these rules, "air weapon dealer" means a dealer, who buys, sells, transfers or keeps for sale or transfer air weapons having muzzle energy less than 20 joules or 15 ft. lbs. and/or bore less than 0.177" or 4.5 mm and having been granted a license in Form VIII-A by the licensing authority.

85.

Obligations of air weapon dealers.

(1)

The air weapon dealer shall keep a register namely, the 'Air Weapon Stock Register', wherein on the debit side, all the receipts of air-weapons against an invoice issued by manufacturers or dealers as the case may be; or in case of other person with details of name and address of such person, shall be recorded with the date of such receipt and on the credit side, all the sales or transfers of air weapons against sales invoice to be issued shall be recorded with the date of such sale or transfer containing full details of the name and address of the buyer:

Provided that the licensee shall obtain and keep in his records proof of identification and proof of residence of the buyer and also of the seller at the time of purchase except in case of a trade transfer.

(2)

The air weapon dealers shall ensure that they have the capacity to store the air weapons as per the safe storage requirements as specified in rule 10.

(3)

Every air weapon dealer shall obtain a UIN to get himself registered on the NDAL database through the licensing authority of his jurisdiction and allotted a separate user-id and password for log in purposes and the licensing authority may require such dealer to upload the complete details of his transactions on the NDAL database on weekly basis for the week in addition to the register specified under sub-rule (1):

Provided that the weekly returns for the current week shall be submitted by the close of business hours on every Saturday.

86.

Powers of Central Government in certain cases.

(1)

Where no license is required for the manufacture, sale, import, export or transport of any category or description of arms or ammunition by or through a manufacturer or dealer, the manufacturer or the dealer, may be asked to register his name and address and place of business in such manner and at such place as the Central Government may prescribe by issuance of a general or special order in this behalf and the manufacturer or the dealer shall maintain such registers

and furnish such information to the Central Government as it may require in respect of the arms or ammunition, so manufactured, sold, imported, exported, or transported.

(2)

Every manufacturer or a dealer referred to in sub-rule (1) shall obtain a UIN to get himself registered on the NDAL database through the licensing authority of his jurisdiction and allotted a separate user-id and password for log in purposes and the licensing authority may require manufacturer or dealer to upload the complete details of his transactions on the NDAL database on weekly basis for the week in addition to the registers specified under sub-rule (1):

Provided that the weekly returns for the current week shall be submitted by the close of business hours on every Saturday.

Chapter VI

Import and Export of Arms and Ammunition

87.

Licenses for import and export of arms and ammunition.

- The grant of licenses for import and export of arms and ammunition under these rules shall be subject to the provisions of the Foreign Trade (Development and Regulation) Act, 1992 (22 of 1992

). The persons bringing into India the arms and ammunition as a part of their personal baggage shall be governed by the Customs Act, 1962 (52 of 1962) and the rules made there under:

Provided that a license shall not be granted for the import or export for re-import of any arms or ammunition through the medium of post office.

88.

Import of arms and ammunition.

(1)

Arms or ammunition shall be deemed to have been brought into India by a person, when such arms or ammunition are imported through an agent and are either consigned to such person direct, or consigned to the said agent, if the agent possesses a certificate from the said person that the arms or ammunition are bonafide his property and the agent only clears the arms or ammunition from the Indian customs and forwards the same.

(2)

The dealer or manufacturer, who wants to import a firearm or parts of firearms or ammunition shall file an application for grant of a license in Form X at least twenty-one days before the shipment of the firearm or ammunition to India or on good cause shown, such shorter period, as the licensing authority in his opinion deem fit and shall not arrange for the shipment of the firearm or ammunition prior to the issuance of the import license.

(3)

The licensing authority granting the license shall forthwith send a copy of the license to the licensing authority having jurisdiction at the port of import.

(4)

The dealer or manufacturer shall immediately on the arrival of the shipment of firearms or parts of firearms or ammunition in India, notify the licensing authority as well as the licensing authority for the port of entry where the shipment has arrived, in writing of the arrival and provide the particulars of the container or consignment and place where the shipment can be inspected and the importer licensee shall not open the container or the consignment of firearms or ammunition before an inspection is conducted by the licensing authority of the port in presence of the Indian customs authority at the port of entry in India.

(5)

The dealer or manufacturer shall within seventy-two hours of the arrival of the firearms or ammunition in India, -

(a)

arrange with the licensing authority of the port of entry to physically inspect the firearms or ammunition; and

(b)

on finalization of the physical inspection, certify in writing to the licensing authority, who issued the import license, that the imported firearms or ammunition corresponding with the import license, have arrived in India.

(6)

Any delay in carrying out the inspection referred to in sub-rule (5) within seventy-two hours resulting in any additional charges or demurrage shall be attributed to the licensing authority at the port of entry and the customs authority and not the importer licensee.

89.

Import of certain type of arms.

(1)

Import of replicas of contemporary or modern firearms shall be subject to submission of certificate of innocuousness from the manufacturing company of the country of export and an undertaking from the importer that the replicas of the firearms to be imported are incapable, even with modification, of expelling or launching a shot, bullet or projectile by the action of an explosive charge or compressed air or any other gas.

(2)

Import of paintball markers or paintball guns shall be subject to submission of certificate from the manufacturing company of the country of export that the muzzle energy of the paintball markers or guns does not exceed 90 m/s or 300 ft./s (300 fsp) and an undertaking from the importer that the paintball markers or paintball guns shall be sold only through an authorized arms and ammunition dealer registered under these rules.

(3)

(a)

Import of electronic disabling devices (EDD) shall be subject to submission of medical research reports on the technology used in such products, at the time of submitting application for import to the licensing authority, which shall include -

(i)

physiological effect of prolonged discharge on intoxicated adults;

(ii)

echo-cardiography evaluation of probes deployed into the chests of human volunteers;

(iii)

implanted pacemaker;

(iv)

repeated or long duration exposure: Acidemia and lack of respiration;

(v)

cardiovascular effects;

(vi)

physiological effects of exposure after exercise;

(vii)

lactate and pH evaluation in exhausted humans;

(viii)

non-impairment of basic respiratory parameters during fifteen second device application.

(b)

an undertaking from the importer that all types of electronic disabling devices (EDD) irrespective of their range shall be sold only through authorized arms and ammunition dealers having a license under these rules.

90.

Export of arms and ammunition.

(1)

The authority granting a license in [Form X-A]

[Substituted 'Form X' by Notification No. G.S.R. 1079(E), dated 1.11.2018 (w.e.f. 15.7.2016).]

for export of arms or ammunition from any customs port in India to any port in a foreign territory shall send a copy of such license to the agent or master of the vessel or to the air carrier or the railway authority by which the arms or ammunition covered by the license are intended to be taken out of India and shall forthwith send a copy of the license to the licensing authority of the place, wherefrom the goods are to leave the Indian territory [further the export licence shall also be governed by the extant standard operating procedure issued by Department of Defence Production in the Ministry of Defence, from time to time]

[Inserted by Notification No. G.S.R. 1079(E), dated 1.11.2018 (w.e.f. 15.7.2016).]

(2)

Every application for the grant of a license for export of arms specified in category IV of the Schedule I, shall be accompanied by a certificate from the Director-General of Archeology of the Central Government to the effect that the arms intended to be exported do not fall within the definition of "antiquity" under the Antiquities and Art Treasures Act, 1972 (

52 of 1972

).

(3)

The district magistrate having jurisdiction over the area out of which the goods to be exported are to cross the frontier of India may, in his discretion, require the licensee to produce the arms or ammunition for his inspection before allowing them to leave the area.

(4)

An export license in [Form X-A]

[Substituted 'Form X' by Notification No. G.S.R. 1079(E), dated 1.11.2018 (w.e.f. 15.7.2016).]

shall be non-transferable and issued in three original copies.

(5)

(a)

The first copy of the export license shall be returned to the issuing licensing authority within ten days of the date of export and which date must be duly certified by the Indian customs authorities;

(b)

The second copy shall be returned to the issuing licensing authority within a period of ninety days after the export date stated on the export license, which must bear the signature, an official date and name stamp of the end user, to serve as a delivery verification certificate:

Provided that failure to comply with conditions specified in clause (a) and clause (b) shall result in suspension of all pending and future export transactions of the exporter till the time the said conditions are duly complied with.

(6)

A one-time extension of validity of export license, for a period not exceeding three months, may be granted by the licensing authority if for any genuine reasons stated in the application, the export transaction could not be carried out within the stipulated time of the validity of the export license.

(7)

Where the licensee fails to export within the validity of the export license, he shall return all the three copies of the export license in original to the issuing licensing authority along with the reasons for noncompliance of the said transaction.

(8)

On completion of the export transaction, the exporter shall retain one original copy of the export license, bill of lading or airway bill, packing lists and export invoice pertaining to the firearms or ammunition so exported and shall produce the said documents whenever required to do so by the issuing licensing authority.

91.

Export and re-import of arms and ammunition.

(1)

A license in [Form X-A]

[Substituted 'Form X' by Notification No. G.S.R. 1079(E), dated 1.11.2018 (w.e.f. 15.7.2016).]

may be granted for export of arms or ammunition from one place in India and its re-import into another place in India by the Central Government in the Ministry of Home Affairs or any other officer, specially empowered by it, if the arms or ammunition are taken across intervening territory not forming part of India.

(2)

A copy of every license granted under sub-rule (1) shall forthwith be sent by the Central Government both to the licensing authority of the place of dispatch and place of destination of the articles in India.

(3)

Arms and ammunition exported from India for the purpose of exhibitions, evaluations and demonstrations shall be returned to India within a period of six months after the date of export reflected on the export license issued in [Form

X-A]

[Substituted 'Form X' by Notification No. G.S.R. 1079(E), dated 1.11.2018 (w.e.f. 15.7.2016).]

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92.

In-transit license of arms and ammunition.

(1)

No person shall, import, transport and re-export any arms or ammunition unless he holds in this behalf an in-transit license in Form X [and Form X-A]

[Inserted by Notification No. G.S.R. 1079(E), dated 1.11.2018 (w.e.f. 15.7.2016).]

issued by the Central Government in the Ministry of Home Affairs.

(2)

The application for grant of in-transit license shall be accompanied by ?

(i)

a proof of authority to export the arms and ammunition from the country of origin and a documentary proof of authority of import from the country of final destination that the arms or ammunition may lawfully be imported into the said country;

(ii)

the particulars of the intended transport route and mode of transport and the proposed port of entry and exit and likely date of the entry and exit along with a certified copy of the license, permit, authorization or any proof acceptable to the licensing authority, confirming the lawful possession of the firearm and ammunition in transit through the Indian territory;

(iii)

complete lists of the firearms and ammunition indicating the quantity, type of action, manufacturer's serial number, model and caliber of the firearms and quantity, type and caliber of ammunition forming part of consignment along with a consignment note to be carried in-transit through Indian territory.

(3)

The licensee shall immediately on the arrival of the arms or ammunition in India, in writing notify the issuing licensing authority referred to in sub-rule (1) as well as the licensing authority for the area where the shipment has arrived and provide the particulars of the container or consignment and place where it can be inspected and shall further ensure that the consignment is stored in a bonded warehouse under the jurisdiction of Indian customs authority and shall not open the container or consignment unless an inspection has been conducted by the licensing authority for the area and the customs authority.

(4)

The licensing authority may lay down conditions for transportation and route thereof, of the container or consignment through the Indian territory and all incidental expenses related to the security measures from the port of import to the port of re-export through Indian territory shall be borne by the licensee.

(5)

Storage of arms or ammunition for any period not exceeding one month in India, shall be granted in exceptional circumstances by the licensing authority with the prior consent of the local police authority and subject to such conditions of safe storage as the licensing authority may prescribe:

Provided that the arms and ammunition, shall be under the direct supervision of the licensee and the local police authority.

(6)

Arms or ammunition under an in-transit license shall not for whatever reasons be sold, transferred or used in India.

(7)

It shall be the duty of the licensing authority granting an in-transit license in Form X [and Form X-A]

[Inserted by Notification No. G.S.R. 1079(E), dated 1.11.2018 (w.e.f. 15.7.2016).]

to send a copy of the license to the district magistrate having jurisdiction over the last port through which the consignment is to cross the frontier of India.

93.

Vessels entering the territorial waters of India.

- Arms or ammunition carried by a vessel entering the territorial waters of India or leaving such waters, shall be deemed to be imported or exported, as the case may be, irrespective of whether the vessel carrying, the arms or ammunition

does or does not berth.

94.

Arms or ammunition to be delivered to Indian customs authority in certain cases.

- Where a vessel or aircraft, bound for a port other than a port in India, calls at any port in India in the course of its voyage, and remains there for a period exceeding forty-eight hours, any arms or ammunition in the possession of any passenger not exempted from liability to take out a license in respect of such possession shall be delivered by him to the Indian customs authority, to be detained until the departure by sea or air, as the case may be, of such passenger, and it shall not be necessary for such passenger to take out any license in respect of the arms or ammunition so delivered and detained.

95.

Scrutiny by authorities of consignments containing arms and ammunition.

(1)

The license issued under Chapter VI of these rules shall be produced wherever applicable, to the authorities involved in the import or export transactions such as Indian customs authority, licensing authority of the port under the Act, railway authority, shipping agent, master of the vessel, air-carrier, transporter and any other authority directly or indirectly related with such transactions and the said authorities shall ensure that the consignment containing arms or ammunition correspond with the details contained in the license.

(2)

Where in any case referred to in sub-rule (1), the original license is not produced by the importer or the exporter or the consignee or the agent, or the original or attested copy of the license does not accompany the consignment, as the case may be, or the license is not identical in substance with the copy sent to the authority, or the arms or ammunition do not correspond with the description given in such license, the authority shall not receive the consignment for dispatch or allow it to proceed further or deliver the consignment, as the case may be, and shall, in case he is not a district magistrate, forthwith inform the nearest magistrate.

Chapter VII

Part I

Transport of Arms and Ammunition

96.

Prohibition of transport of arms and ammunition.

(1)

Save as herein otherwise provided, no person shall transport over India or any part thereof any arms or ammunition or any arms specified in category V of Schedule I, except under, and in accordance with the conditions of, a license in Form XII granted under these rules.

(2)

Nothing in sub-rule (1) or in section 12 of the Act shall be deemed to apply to arms or ammunition -

(a)

transported personally or as personal luggage, in reasonable quantities for his own use, by a person lawfully entitled to possess or carry such arms or ammunition;

(b)

transported by a person licensed to manufacture such articles, for proof-testing, in a case or package legibly addressed to a Government establishment or an establishment licensed under these rules, or re-transported by such establishment to such person;

(c)

of category V arms specified in Schedule I, transported through an area where the Central Government has, by notification in the Official Gazette, applied section 4, or from such area to an area where section 4 does not apply, provided that the arms are properly packed and labeled, showing clearly the description of these articles and the name and address of the consignee;

(d)

transported by a licensed manufacturer or dealer for export or after import, in accordance with a license for their export or import, -

(i)

from the place of dispatch to the port or other place of export, or

(ii)

from the port or other place of import to the place of destination, or

(iii)

by transshipment in the port of import for re-export;

(e)

transported -

(i)

by a person lawfully entitled to possess such articles, in reasonable quantities for his own use from the premises of a licensed manufacturer or dealer, or for purposes of examination or repair or test to or from any such premises, or to the address of any other person lawfully entitled to possess such articles; or

(ii)

by a licensed manufacturer or a dealer, in a case or package legibly addressed to a person lawfully entitled to possess such articles, in compliance with an order given by such person for the supply of such articles, in reasonable quantities, for his own use or after carrying out necessary repairs thereto;

(iii)

by a dealer to another dealer under trade transfer, within the same State against a sale invoice;

(f)

being chlorates, transported for bona fide industrial, agricultural or medicinal purposes:

Provided that-

(i)

transport of arms or ammunition under clause (d), sub-clauses (i) and (ii) of clause (e) or clause (f), shall be subject to obtaining a certificate of no objection from the licensing authority at the destination of the articles as provided for in rule 98;

(ii)

transport of arms or ammunition personally for any of the purposes stated in sub-clause (i) of clause (e) without using them through any area outside the area of validity of his possession license, shall be subject to his obtaining a license in Form XII from the licensing authority at the starting place of transport; and

(iii)

prior intimation of the transport of arms specified in category V of Schedule I under clause (c) or of chlorates under clause (f) shall be given to the officer-in-charge of the nearest police station or a magistrate having jurisdiction over the place of dispatch.

(3)

The officer or magistrate receiving prior intimation under clause (iii) of the proviso to sub-rule (2) shall immediately inform the district magistrate, and if the articles are transported by rail, the Superintendent of railway police having jurisdiction,-

(i)

over the place of destination, in the case of transport of chlorates, and

(ii)

over the place of entry into the area where section 4 applies, in the case of transport of arms specified in category V of Schedule I.

Explanation. - For the purposes of these rules, 'transport' includes movement of arms or ammunition across any part of the country, but does not include movement of arms or ammunition by a licensed manufacturer or dealer from a warehouse, godown or any other similar place to his factory, shop or other place of business within the same village, town or city.

97.

Transport of arms or ammunition.

(1)

A copy of license granted in Form XII for transport of arms or ammunition beyond the local limits of the jurisdiction of the authority granting it shall forthwith be sent to the district magistrate having jurisdiction over the area where the place to which the articles consigned is situated.

(2)

A copy of every such license granted by a district magistrate for transport within the limits of his jurisdiction shall forthwith be sent to the subordinate magistrate (if any) having jurisdiction over the place to which the arms or ammunition are consigned.

(3)

Where arms or ammunition are transported by rail, a copy of such license or a copy of the no objection certificate referred to in rule 98, shall be attached to the way-bill or invoice, as the case may be, and advice of every such consignment shall be sent by the railway authorities from the forwarding to the receiving station.

(4)

A transporter having a license in Form XIV for transport of arms or ammunition by road shall comply with the conditions specified in sub-rule (3) of rule 101 in accordance with the procedure for transporter license specified in rule 102.

(5)

A license for the transport of arms or ammunition shall not, save for special reasons to be recorded by the authority granting it, be granted for a period longer than three months:

Provided that a license for a longer period, not exceeding six months, may be granted in connection with industrial purposes for transporting ingredients of ammunition in installments from the godown to the factory of the licensee situated within the same district but not in the same locality:

Provided further that such licensee, gives prior intimation to the nearest magistrate or officer-in-charge of the police station and makes necessary entries promptly in the stock registers maintained for the purpose at both the godown and the factory.

98.

Previous consent in certain cases.

(1)

A license having effect beyond the local limits of the authority of the officer granting it shall not be granted for the transport or export or re-import of any arms or ammunition to a place, without ascertaining that there is no objection to the grant of such license on the part of the district magistrate having jurisdiction over the area in which such place is situated.

(2)

For the purposes of sub-rule (1), either -

(i)

a certificate of "no objection" may be obtained by the applicant for the license; or

(ii)

an enquiry may be made by the authority to whom application for grant of such license is made.

99.

Carriage of arms and ammunition by air.

(1)

No licensee holding a valid license under these rules or a journey license in Form XI [or import licence in Form X or export licence in Form X-A]

[Substituted 'or import and export license in Form X' by Notification No. G.S.R. 1079(E), dated 1.11.2018 (w.e.f. 15.7.2016).]

or holding a transport license in Form XII, may carry or cause or permit to be carried, arms and ammunition endorsed on his license by air, except with the prior permission of the Director General of Civil Aviation (DGCA) in accordance with the Aircraft Rules, 1937 framed under the Aircraft Act, 1934 (22 of 1934).

(2)

The arms and ammunition granted permission under sub-rule (1) shall be so packed, protected and secured as to avoid any possibility of their being a source of danger and the packages shall be clearly and conspicuously marked on the outside.

100.

Packaging of arms and ammunition during transportation.

- The licensee holding a license in Form XII, during transportation of firearms and ammunition shall ensure that -

(i)

firearms are packed separately from ammunition, and all ammunition shall be removed from firearms in a safe manner, before transportation;

(ii)

large consignments of firearms and ammunition be transported in an appropriately locked metal container, and packed to ensure maximum safety and minimum exposure;

(iii)

small consignments of firearms be transported in an appropriately locked metal container or strong wooden boxes or wrapped in hessian cloth tightened with iron strips; and

(iv)

direct continuous supervision and control of arms and ammunition being transported is strictly maintained for large shipments.

Part II ? Transporters License

101.

License for transporter.

(1)

Any person applying for a transporters license in Form XIV shall in addition to the requirements laid down in rule 11, submit -

(i)

proof that a proper functioning two way secure communication system between the vehicle transporting the arms or ammunition and the applicant is in operation;

(ii)

a detailed description of the safety measures fitted to the vehicle including GPS navigation system; and

(iii)

a detailed description of security precautions to be followed during transportation.

(2)

The transporter holding a license in Form XIV shall before undertaking transport of arms and ammunition, obtain from the consignor a copy of his transport license in Form XII in respect of the arms and ammunition to be transported.

(3)

The transporter using road transport shall provide to the person in charge of transportation, a typed list or computer printout on his letterhead of persons who will be directly involved in the transportation of the consignment of the arms and ammunition, containing their names and identity numbers and such list shall be attached to a certified copy of the license in Form XIV:

Provided that the transporter shall get the police verification of the antecedents of his employees before assigning them any duty related to such transportation of arms or ammunition.

(4)

It shall be the duty of the licensing authority to ensure, before grant of license to a transporter in Form XIV, that the applicant has made arrangements for the receipt, carriage and delivery of the arms and ammunition, the safe and efficient transportation thereof, the mode of transport by which the transportation is to take place, including the type and construction of the vehicle to be used, as well as the containers, persons to be involved and communication facilities, etc., for the safe and secure transport and storage of the arms and ammunition.

(5)

The license granted to a transporter in Form XIV shall be valid for a period of five years.

(6)

The license in Form XIV shall specify, the categories of arms and/or ammunition, maximum quantity during a calendar year, maximum quantity in a single consignment and maximum quantity in multiple consignments under a single shipment that may be allowed to be transported.

(7)

(a)

The transporter license in Form XIV shall be applicable for bulk transportation's exceeding one hundred firearms or ammunition exceeding fifty thousand cartridges in a single consignment or multiple consignments forming part of a single shipment.

(b)

The transport of arms and ammunition other than bulk transportation may be carried out by ISO 9001 certified transport companies.

102.

Procedural requirements for transporters license.

(1)

An arms or ammunition transporter holding a license in Form XIV shall possess at all times during such transport, -

(a)

a consignment note containing the following particulars:-

(i)

the name, address, license and UIN of the transporter;

(ii)

the name, address, license number and UIN of the consignor and of the consignee in respect of arms and ammunition to be transported;

(iii)

the quantity, type of action, manufacturer's serial number, make and caliber of the firearms and quantity, make and caliber of ammunition; and

(iv)

the physical address wherefrom the firearms and ammunition were collected and the physical address of their final destination.

(b)

copy of the license in Form XII authorizing the transportation of such firearms and ammunition;

(c)

any other document which under these rules or any other law may be required.

(2)

A transporter holding a license in Form XIV who is obliged to store the firearms or ammunition for any period of time after its receipt and before delivery, shall comply with the safe custody and storage requirements under rule 10.

(3)

The licensee shall ensure direct supervision by him or through his personnel of an en-route consignment of arms or ammunition.

(4)

The transporter holding a license in Form XIV shall obtain from the consignee a written confirmation for the consignment of arms and ammunition, which shall contain the following information, namely:-

(i)

the name and surname of the recipient;

(ii)

the recipient's address;

(iii)

the telephone number, mobile number and email address of the recipient;

(iv)

the date and time of delivery;

(v)

the description of the arms and ammunition received; and

(vi)

the signature of the recipient confirming the deliverance.

(5)

A copy of the written confirmation from the consignee shall be submitted by the transporter to the licensing authority issuing transport license in Form XII.

(6)

The transporter holding a license in Form XIV shall immediately notify in writing the police and licensing authority in the event of non-delivery, loss or theft of the arms or ammunition.

(7)

In the event of the consignment under transportation being misused by, or stolen or lost due to the gross negligence of the transporter holding a license in Form XIV or by any of its employees entrusted with such transportation, the license of the transporter shall be liable to be revoked.

Chapter VIII

Disposal and Destruction of Firearms and Ammunition

103.

Confiscation, capture or seizure of firearms and ammunition.

(1)

The firearm bureaus under the Central Government or the State Governments shall maintain inventory for different categories of confiscated, captured, seized, recovered or surrendered arms and ammunition.

(2)

The firearm bureaus referred to in sub-rule (1) shall be granted UIN by the Central Government and allotted separate user-id and password under the NDAL system.

(3)

The arms and ammunition confiscated, captured, seized, recovered or surrendered shall, on registration of a First Information Report at the nearest police station, be taken on charge of memo of seizures to be signed by the person(s) involved in confiscation or capture or seizure or recovery or surrender, and handed over to the empowered officer of the Central or the State Government along with history sheet of each firearm containing details of the make, type, manufacturer's serial number, caliber and nature of the firearm.

(4)

The empowered officer of the Central or the State Government referred to in sub-rule (2) shall handover the said arms and ammunition to the concerned Central or the State firearm bureau and the firearm bureau shall make an entry in the receipt column of its stock register.

(5)

The Central or the State firearm bureau shall get firearms and ammunition examined from a gunsmith holding a license in Form IX or an officer of the Central Armed Police Force or State police department, authorized to examine.

(6)

On submission of the report by the examiner of the firearm, the firearm may be declared as serviceable or unserviceable or beyond economical repair (BER) and all such serviceable firearms shall be entered in the active firearm stock register and the details shall be uploaded on NDAL system against the UIN allotted to the firearm bureau.

(7)

The serviceable firearms may be, on receipt of the orders of the competent court, allotted to the eligible applicants under these rules by the firearm bureau against a valid arms license in Form III, for the particular category of firearm against a sale voucher or invoice to be issued by the firearm bureau and the details of such sale or transfer shall be recorded in the register to be maintained by it and uploaded on the NDAL system.

Explanation. - For the purposes of this rule, firearm bureau means a unit working under the Central Government or State Home departments or under the State police department for deposit and disposal of confiscated, captured, seized, recovered or surrendered arms and ammunition.

104.

Destruction of firearms and ammunition.

(1)

Any obsolete or obsolescent, condemned or unserviceable firearm or any confiscated, captured, seized, recovered or surrendered firearm that does not bear the manufacturer's serial number or additional identification mark shall be marked forthwith by the concerned Central or the State firearm bureau in accordance with the procedure laid down in rule 34 and rule 58 and details of such firearm be recorded in a separate register and uploaded on the NDAL system under a distinct category.

(2)

The firearm bureau shall submit to the local licensing authority an application containing the details of firearm to be destroyed, giving particulars regarding the make, type, caliber of the firearm as well as the manufacturer's serial number or additional identification mark and the licensing authority shall after verifying the particulars recorded in the list

supplied to it by the firearm bureau, grant permission for destruction of firearm.

(3)

The firearms under this rule may be destroyed, only by melting, pressing or in any other manner determined by the licensing authority and ensuring that the original intent, design and purpose of the firearm or any part thereof is permanently or irrevocably destroyed:

Provided that a firearm or ammunition, shall be destroyed only in the presence of a designated officer deputed by the local licensing authority.

(4)

A list of firearms or ammunition destroyed under sub-rule (3) with the particulars of such firearms referred to in sub-rule (2) shall be submitted to the licensing authority within fourteen days of such destruction.

Chapter IX

Appeals under Arms Act

105.

Appellate authorities.

(1)

The appellate authority to whom an appeal shall lie against an order of the licensing or other authority specified in column (1) of the table below, shall be that specified in the corresponding entry in column (2) thereof :

Table

Authority

Appellate Authority

(1)

(2)

(a)

District Magistrate

Commissioner of the Division or any other equivalent post or in any State in which there is no post of Commissioner of a Division, the State Government

(b)

Commissioner of Police

State Government

(c)

Officer empowered by the Central Government in a Union Territory

Administrator/ Lt. Governor of the Union Territory

(d)

Head of Indian Mission

Central Government

(e)

Other specially empowered officer

Authority that empowered

(2)

For the purpose of sub-section (6) of section 17, the licensing authority shall be deemed to be subordinate to the appellate authority.

(3)

All licensing authorities shall work under the direction and control of their respective appellate authorities.

106.

Reasons to be communicated to appellate authority in certain cases.

- Where a licensing authority is of opinion that it will not be in the public interest to furnish reasons for the refusal, renewal, variation of conditions, revocation or suspension, of a license, to the applicant, the recorded reasons therefor and the facts of the case shall be communicated by him to the appellate authority.

107.

Appeal against order of licensing authority or an authority suspending or revoking a license under subsection (6) of section 17 of the Act.

- In any case, in which an authority issues an order ?

(i)

refusing to grant or renew a license or to give a "no objection certificate" for such grant or renewal; or

(ii)

varying any condition of a license or suspending or revoking a license under sub-section (1), or subsection (3) or sub-section (6) of section 17, the person aggrieved by such order may, within thirty days from the date of issue of the order, and subject to the proviso to sub-section (2) of section 18, prefer an appeal against that order, to the concerned appellate authority.

108.

Procedure to be followed by appellate authority.

- On receipt of an appeal, the appellate authority may call for the records of the case from the authority who passed the order appealed against and after giving the appellant a reasonable opportunity of being heard, pass final orders within sixty days of receipt of the appeal.

109.

Fee payable on a petition for appeal made under sub-section (1) of section 18 of the Act.

- Every petition for appeal under sub-section (1) of section 18, shall be accompanied by a fee of rupees one thousand.

Chapter X

Provisions relating to Nepal

110.

Import, transport and export of arms and ammunition for Government of Nepal.

(1)

Where arms or ammunition are imported into India for dispatch to the Government of Nepal, the customs authority at the port of disembarkation, or the licensing authority in other places, shall check the consignment against the list of arms or ammunition received from the Central Government and the packages shall be sealed thereafter in the presence of a Customs Examiner or any other authority appointed for the purpose by the Central Government.

(2)

(a)

Where arms or ammunition imported into, or acquired in, India are to be dispatched to Nepal for the Government of Nepal, they shall be accompanied by a certificate from the Indian customs authority or the licensing authority of the area concerned to that effect containing a description of the marks on each package or case sufficient to enable it to be readily identified and a general statement of the contents of such package or case;

(b)

on receipt of requisition from the clearing agents or the firm concerned, as the case may be, the district magistrate shall arrange for necessary escort up to the railway station;

(c)

the railway authority shall, not receive for dispatch any package or case containing, arms or ammunition unless accompanied by a certificate as required under clause (a).

(3)

Where in any case -

(i)

the list referred to in sub-rule (1), is not received from the Central Government, or

(ii)

the arms or ammunition imported into, or intended to be dispatched from India do not correspond with the description given in such list, the authorities concerned shall not allow the consignment to be dispatched to Nepal and shall forthwith inform the Central Government.

111.

Transport of arms from any place in Nepal to any other place in Nepal through Indian territory.

(1)

Notwithstanding anything contained in rule 6 and rule 87, the Ambassador of India in Nepal, on an application made by

the Government of Nepal, and subject to confirmation by the Central Government, may grant a license in Form XV for the import into, possession in, transport across, or export out of, India from any place in the territory of Nepal to any other place in that territory across the frontiers of India, of arms or ammunition specified in categories I and II of Schedule I or any other category of Schedule I by Nepal Government's troops or police, as the case may be.

(2)

Where under the authority of a license granted under sub-rule(1), arms or ammunition are to pass across Indian Territory,?

(a)

if entirely by rail, a copy of the license shall forthwith be sent by the Ambassador to the district magistrates having jurisdiction over the areas through which the arms or ammunition shall pass across the frontiers of India and also to the railway authorities of the place in the Indian territory through which the consignment shall pass;

(b)

if by road or river, a copy of the license shall forthwith be sent to the district magistrates having jurisdiction over the areas through which the arms or ammunition shall pass to Nepal across the frontiers of India.

(3)

The Central Government, or the Ambassador of India in Nepal with the approval of the Central Government, may make any order regulating the safe transit to Nepal across the frontiers of India of the arms or ammunition mentioned in this rule.

Chapter XI

Miscellaneous

112.

Common conditions applicable to all types of licenses.

(1)

The licensee shall -

(a)

not possess Government arms and ammunition as defined in clause (22) of rule 2:

Provided that the above condition may be canceled by the authority granting the license empowered to do so by the Central Government, and an endorsement added showing the Government arms or ammunition which the licensee is authorized to possess.

(b)

on demand by an authorized officer produce the firearms possessed under his license;

(c)

not sell or transfer any firearms or ammunition or any part thereof covered by his license to any person not lawfully entitled to possess them;

(d)

forthwith give information at the nearest police station of the loss or theft of any arms or ammunition covered by his license.

(2)

The authority granting or renewing the license has the right to enquire at any time during the currency of the license, whether the arms or ammunition for which it has been granted, is still in the possession of the licensee, and may require the production of the arms or ammunition for the purpose of such an enquiry.

(3)

Save where he is specially authorized in this behalf by the district magistrate concerned, the licensee shall not carry any arms covered by the license within the campus or precincts of any educational institution or a firearm free zone declared under these rules.

113.

Security and precautionary conditions for storage of ingredients of ammunition specified in category VI of Schedule I.

(a)

Chlorates shall be kept in a building constructed of nonflammable materials only and separated from any dwelling house, other building, highway, street, public thoroughfare or public place by a distance of not less than ten feet:

Provided that where the total quantity stored does not exceed one hundred kilograms, chlorates may be kept exclusively

in a closed and secured receptacle placed in a building used for the keeping of other articles not being of an explosive or highly inflammable nature.

(b)

Sulphur shall not be kept in the same room with saltpeter in the premises specified in the license:

Provided that when the quantity of each does not exceed one hundred kilograms, sulphur and saltpeter may be kept in separate closed receptacles in the same room.

(c)

No person shall smoke and no open fires shall be allowed at any time in the premises specified in the license or in the vicinity of the receptacles mentioned in the provisos to clauses (a) and (b).

(d)

Where any building used for storage of such materials is fitted with electric lighting or power, the licensee shall get these installations tested at least once a year or once during the currency of the license, by an electrical inspector appointed under the Electricity Act, 2003 (

36 of 2003

).

(e)

Any accident, fire or explosion occurring within the premises specified in the license which is attended with loss of human life or serious injury to person or property shall be reported at once by the licensee to the officer-in-charge of the nearest police station having jurisdiction over the place of his business or factory as well as to the inspector of explosives of the circle concerned.

(f)

The conversion into explosives of sulphur in admixture with chlorates shall be permitted for the following purposes only (and for no other purposes), namely:-

(i)

in small quantities for scientific purposes; or

(ii)

for the purposes of manufacturing heads of matches; or

(iii)

for use in toy amorces (paper caps for toy pistols).

Schedule I

(See rule 3)

Part A

Category

Arms

Ammunition

(1)

(2)

(3)

I

(a)

Prohibited arms

(i) Prohibited arms as defined in section 2(1)(i) of the Act;

(ii) Items configured for military use;

(iii) Light weapons;

(iv) Small arms including automatic and selective fire other than those defined in category I(b), I(c) and III

Prohibited ammunition

(i) Prohibited ammunition as defined in Section 2 (1)(h) of the Act;

- (ii) ammunition for items configured for military use;
- (iii) ammunition for light weapons;
- (iv) ammunition for small arms including automatic and selective fire other than those defined in category I(b), I(c) and III
- (b)
Restricted arms
Semi-automatic firearms which cannot be converted into automatic firearms and other than those defined in category III(a), III(c) and III(d);
Smooth bore guns having barrel of less than 20 inches in length;
Centrefire rifles of any barrel length (semiautomatic);
Electronic disabling devices having firing range of more than fifteen feet
Restricted ammunition
Ammunition for arms of category I (b).
- (c)
Restricted arms
Restricted ammunition
Category of arm
Caliber/chamber specification
Ammunition for arms of category I (c).
- (i)
Rifles other than those mentioned in category I(b), III(b) and III(c)
7.62mm (7.62mm NATO/7.62 x 51mm NATO)
5.56mm (5.56mm NATO/5.56 x 45mm NATO)
7.62mm x 39mm
.303 British or
7.7 x 56mmR
- (ii)
Pistols
9mm Parabellum (9 x 19mm/9mm Luger/9mm Parabellum Plus /9mm Parabellum)
- (iii)
Revolvers
.38 Revolver MkIIz also
.38/200 x 20R, .380/200 Revolver
Mk-II
.455 WebleyR
- II
Machinery for manufacture or proof testing of firearms
Machinery for manufacturing ammunition
- III
Permissible arms
Arms other than those defined in categories I, II and IV,

namely:

Permissible ammunition

Ammunition for arms other than those in categories I, II and

IV, namely:

(a)

Handguns (revolvers and pistols) including semi-automatic

Ammunition for arms of category III (a)

(b)

Breech loading Centrefire rifles (not semi-automatic)

Ammunition for arms of category III (b)

(c)

.22 bore Rimfire rifles (including semi-automatic)

Ammunition for arms of category III (c)

(d)

Smooth bore breech loading shotguns (including semi-automatic)

Ammunition for arms of category III (d)

(e)

Muzzle-loading guns

Ammunition for arms of category III (e)

(f)

Air weapons including air rifles and air guns

(i)

having muzzle energy exceeding 20 joules or 15 ft. lbs. and/or

bore exceeding 0.177" or 4.5 mm

Ammunition for arms of category III (f) (i)

(ii)

having muzzle energy less than 20 joules or 15 ft. lbs. and

/or bore less than 0.177" or 4.5 mm

Ammunition for arms of category III (f) (ii)

(g)

Firearm replicas -

(i)

of modern or contemporary firearms

Nil

(ii)

of muzzle loading antique weapons

Nil

(h)

Electronic disabling devices having firing range of less than

fifteen feet

Ammunition for arms of category III (h)

(i)

Paintball markers or paintball guns having muzzle energy

exceeding 90 m/s or 300 ft./s (300 fps)

Nil

(j)

Blank-firing firearms

Ammunition for arms of category III (j)

(k)

Accessories for any firearms designed or adapted to diminish

the noise or flash caused by the firing thereof

Nil

IV

Curios and historical weapons, other than those excluded under section 45(c) of the Act

Curios and historical ammunition.

V

Arms other than firearms:

Sharp-edged and deadly weapons, namely: Swords (including sword-sticks), daggers, bayonets, spears (including; lances and javelins), battle-axes, knives (including Kirpans and Khukries) and other such weapons with blades longer than 9" or wider than 2" other than those designed for domestic, agricultural, scientific or industrial purposes, steel baton, "Zipo" and other such weapons called 'life preservers', machinery for making arms, other than category II, and any other arms which the Central Government may notify under Section 4 of the Act.

Nil

Part B

Ingredients of ammunition and other items

Category

Items

VI

(a)

(b)

Articles containing explosives or fulminating material: fuses and friction tubes other than blank fire cartridges

Ingredients as defined in section 2(1)(b)(vii) of the Act including ?

(i) lead, sulphur, saltpeter and sodium azide;

(ii) chlorates and per chlorates;

(iii) fissionable material; and

(iv) asphyxiating, poisonous, irritant or other gases and analogous liquid, materials or devices which are not used in any bonafide industrial process in India

Schedule II(See rule 5)

Licensing Authorities Etc.

Item No.

Purpose

Categories of arms/ ammunition as defined in

Schedule I

Place/ Class of persons

Licensing Authority

Area for which License can be granted

Renewing Authority

Form No.

Conditions

1

2

3
4
5
6
7
8
9
1

Acquisition/ Possession/ Import and Transport

I(a),II

Whole of India

Central Government in the Ministry of Home Affairs

Whole of India or any specified area

Central Government in the Ministry of Home Affairs

I

-

2

Acquisition/ possession and use

III(b),III(c),III(d),III(e),V, VI

District

District Magistrate

Throughout the district

District Magistrate

II

-

3

Acquisition/ possession/ carrying and use for protection/
sport/target practice/ display

(i)I(b)I(c)

Whole of India

Central Government in the Ministry of Home Affairs.

Whole of India or any specified part thereof

District Magistrate

III

-

(ii)III[except (f)(ii) and (g) (ii)],V, VI

(i) District

District Magistrate

Throughout the district or his area of jurisdiction

District Magistrate

III/V

-

III[except (f)(ii) and (g) (ii)],V, VI

(ii) State

District Magistrate

Whole of the State

District Magistrate

III/V

-

III[except (f)(ii), and (g) (ii)],V, VI

(iii) Whole of India

State Government

Whole of India

District Magistrate

III/V

For the categories of licensees mentioned in sub-rule (2) of rule 19 district magistrate is empowered to grant licenses for whole of India

(iii)I(b),I(c)

In case of retainers of exemptees

Central Government in the Ministry of Home Affairs.

India or any specified part thereof

State Govt. or any officer specially empowered by the State

Government in this behalf.

III-A

-

III[except (f)(ii) and (g) (ii)],V, VI

(i) District

District Magistrate

Throughout the District

District Magistrate

III-A

-

(ii) State

District Magistrate

Whole of the State

District Magistrate

III-A

-

(iii)Whole of India

State Government

Whole of India

District Magistrate

III-A

-

4.

Acquisition/ possession/ carrying and use for destruction of wild animals, which do injury to human beings or cattle and damage to crops

III(b),III(c),III(d),III(e),V.

District

District Magistrate or any officer specially empowered by the State Government in this behalf.

Throughout the district

Same as licensing Authority.

IV

-

5(a)

Import into, possession, carrying and use of arms or ammunition by the International sports persons visiting India for participation in tournament/ event or series of tournaments/ events or for training

III[except (f)(ii) and (g) (ii)]

Whole of India

Head of the Indian High Commission or Indian Embassy of the country to which the sports person belongs, or the District Magistrate at the port of entry/arrival in India or any other officer specially empowered by the Central Government

India or any specified part thereof

No renewal

VI

The license shall be valid for a maximum period of six months or validity of visa whichever is earlier and granted only for the purpose of shooting sport.

5(b)

Acquiring, possessing during the course of his stay in (but not use) and carrying in, and export out of India by a tourist

III[except (f)(ii) and (g) (ii)]IV, V(made in India only)

-

District Magistrate or any officer specially empowered by the State Government

-

No renewal

VI

The license shall be valid for a maximum period of six months or validity of visa, whichever is earlier and granted for weapons made in India only.

5(c)

Other temporary categories of Import/ Export licenses

III

Whole of India

Head of the Indian High Commission or Indian Embassy of the country to which the person defined in rule 45(1) belongs, or the District Magistrate at the port of entry/arrival in India or any other officer specially empowered by the Central Government

India or any specified part thereof

The license shall be valid for a maximum period of six months or validity of visa whichever is earlier and granted only for the defined purpose as mentioned in rule 45(1)

6(a)

Manufacture or Proof Test or both, transfer, sale, keeping for sale, or transfer

All [except III(f)]

Throughout India

Central Government in the Ministry of Home Affairs

Within the premises to be specified in the license.

Central Government in the Ministry of Home Affairs

VII

For existing manufacturers holding license in Form IX, the Renewing Authority shall be the State Government.

III(f)

Throughout India

State Government

Within the premises to be specified in the license.

District Magistrate

VII C

All existing manufacturers of all types of air weapons to obtain manufacturing licenses within one year of the notification of these rules

6(b)

Manufacture transfer, sale, keeping for sale, or transfer

V

State

District Magistrate

Within the premises to be specified in the license.

District Magistrate

VII-A

-

6(c)

Manufacture transfer, sale, keeping for sale, or transfer replicas of firearms

III(g)

State

District Magistrate

Within the premises to be specified in the license.

District Magistrate

VII-B

All existing manufacturers of replicas of firearms including of antique weapons to obtain new manufacturing licenses within one year of the notification of these rules

7(a)

Sale, transfer or test (other than proof test), and keeping for sale, transfer or test.

I(b)I(c)

State

State Government

Within the premises to be specified in the license

State Government

VIII

-

IIIIV, VI

State

State Government

Within the premises to be specified in the license.

District Magistrate

VIII

-

7(b)

Keeping for safe custody

For the categories of arms and ammunition in the license issued under S.No. 7(a)

I(b),I(c)III,V,

VI

State

State Government

Within the premises to be specified in the license.

District Magistrate

VIII

-

7(c)

Sale, transfer, and keeping for sale, transfer

III(f)(ii)

State

District Magistrate

Within the premises to be specified in the license.

District Magistrate

VIII-A

All existing dealers of air weapons of category III(f)(ii) to obtain air weapon dealer license within one year of the notification of these rules

8(a)

License to gunsmiths to convert, shorten, repair (major) or test (other than proof-test) or keeping for conversion, repair (major) or test (other than proof test) of firearms

I(b),I(c),III, VI(b)

State

State Government

Within the premises to be specified in the license.

District Magistrate

IX

Other than that of category I(a) and II

8(b)

License to gunsmiths to repair (minor) or test (other than proof test) or keeping for repair (minor) or test (other than proof test) of firearms

I(b),I(c),III

State

District Magistrate

Within the premises to be specified in the license.

District Magistrate

IX-A

Other than that of category I(a) and II

9(a)

Import of arms and ammunition into India

(i)I(b)I(c)

(i) At any customs port in India.

(a) Central Govt. in the Ministry of Home Affairs

-

No renewal

I

-

(ii)III

(ii) At any customs port in India.

(b) Central Government in the Ministry of Home Affairs.

- No renewal

X

-

(iii) Ammunition imported by the arms dealers for the obsolete bores and not manufacture d in IndiaIV, V, VI

(iii) At any customs port in India.

(c) District Magistrate of the place at which importer is located or in whose jurisdiction the port of import lies

-

No renewal

X

-

(iv) Sulphur

(iv) At ports of Kakinada, Tuticorin and Cochin.

(c) State Government in Andhra Pradesh, Tamil Nadu or Kerala.

-

No renewal

X

In reasonable quantities for medicinal, agricultural or industrial purpose.

9(b)

Export to a foreign territory

(i) All

(i) From any customs port in India to a port in a Foreign Territory.

(i) Central Government in the Ministry of Home Affairs or any officer specially empowered by the Central Government in the Ministry of Home Affairs

-

No renewal

[X-A]

[Substituted 'X' by Notification No. G.S.R. 1079(E), dated 1.11.2018 (w.e.f. 15.7.2016).]

-

(ii)III(g) (i),IV, V, VI

(ii) From any customs port in India to a port in a foreign territory.

(ii) Government of the State in which the exporter is located

-

No renewal

[X-A]

[Substituted 'X' by Notification No. G.S.R. 1079(E), dated 1.11.2018 (w.e.f. 15.7.2016).]

-

9(c)

In-transit license and license for export and re-import

(i) All

(a) Between one port of India to another

(a) Central Government in the Ministry of Home Affairs or any officer specially empowered for the purpose by the Central Government in the Ministry of Home Affairs

-

No renewal

[X-A]

[Substituted 'X' by Notification No. G.S.R. 1079(E), dated 1.11.2018 (w.e.f. 15.7.2016).]

-

(ii) III, IV, V, VI

(b) From any place in Nepal

(b) Ambassador of India in Nepal

-

No renewal

[X-A]

[Substituted 'X' by Notification No. G.S.R. 1079(E), dated 1.11.2018 (w.e.f. 15.7.2016).]

-

10

Carrying on journey in or through any port in India

All [except III(f)(ii), III(g) (ii)]

Throughout India

District Magistrate

India or any specified part thereof.

No renewal.

XI

-

11

Transport

I(b), I(c), III [except (f)(ii) and (g)]

(ii) IV, V, VI.

Throughout India

District Magistrate

-

No renewal

XII

-

12

Transport license for dispatch of gun-barrels/ completed
firearms for proof-test

III

Throughout India

District Magistrate

-

No renewal

XIII

-

13

License to Transporter

I(b), I(c), III [except (f)(ii) and (g)]

(ii) IV, V, VI

Throughout India

State Government

India or any specified part thereof

District Magistrate

XIV

-

14

Import into, possession and transport out of India by Nepal
Govt's forces and Police.

All

Nepal

Ambassador of India in Nepal

-

No renewal

XV

Subject to the confirmation by Central Government in the
Ministry of Home Affairs

15

Firearm Free Zone

All

District

District Magistrate

Within the premises to be specified in the license.

District Magistrate

XVI

III

Part - I License Forms

Form - I

License for -

(A)

Acquisition/ Possession/ Import and Transport of firearms or ammunition of categories I (a) and II of Schedule I; and

(B)

Import of firearms and ammunition of Categories I(b) and I(c) of Schedule I

UIN _____

Name, description and residence of licensee and

(agent if any)

Number of packages

Description with specification of caliber of
artillery or other articles

Number of articles

Columns to be Filled in Case of Import or

Transport

Period for which the license is valid

Use to which the articles are to be put

Place of dispatch and route

Place of destination

Name, description and residence of consignee

1

2

3

4

5

6

7

8

9

The of 20.....

Date on which a copy is sent vide rule (7) to -

The District Magistrate ofdistrict

The of 20.....

(Signature)

{|

|-

|

| Secretary/

Joint Secretary

|-

|

| to

the Government of India

|-

| (SEAL)

| Ministry

of Home Affairs

|-

|

| or

|-

|

| Signature and designation of the officer specially

|-

|

| empowered

to sign the license under Rule 5

|}

Form of Renewal of the License

Date and year of

renewal

Date on which renewed license expires

Signature and designation of renewing authority

SEAL

1

2

3

4

Conditions

In addition to the common conditions contained in rule 112 of these rules, this license shall be subject to the following additional conditions -

1. This license is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 2016.

2. It covers only the arms and ammunition specified in columns 2, 3 and 4 and for the purposes shown in column 9.

3. In case of import or transport -

(a)

an account of the contents of each package shall be legibly written thereon;

(b)

bulk shall not be broken before the articles reach the place of destination;

(c)

the articles shall be delivered only to a person lawfully entitled to receive them.

4. The licensee shall give prior intimation to the licensing authority concerned of his intention to break up or dispose of any firearms or ammunition or any part thereof; failing which proof of the articles having been broken up or disposed of,

will have to be furnished to the satisfaction of the licensing authority.

Form II

License for acquisition, possession and use of arms or ammunition of categories III (b), III (c), III (d), III (e), V or VI of Schedule I

UIN _____

Name, description and residence of licensee and agent (if any)

Number and description of arms

Ammunition

Place (with description) where articles are to be kept

Period for which the license is valid

Description

Quantity

1

2

3

4

5

6

The of 20

(Signature)

Licensing Authority

SEAL

Designation

Place

.....

Form of

Renewal of the License

Date and year of renewal

Date on which renewed license expires

Signature and designation of renewing authority

SEAL

1

2

3

4

Conditions

In addition to the common conditions contained in rule 112 and specific safety conditions related to ingredients of ammunition contained in rule 113 of these rules, this license shall be subject to the following additional conditions -

1. This license is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 2016.

2. It covers only the arms or ammunition specified in columns 2, 3 and 4, so long as they are kept in the place described in column 5, but does not authorise the licensee-

(i)

to carry arms;

(ii)

to keep Government arms or ammunition.

3. Where a license in this form is granted for the possession of Potassium Chlorate by an educational institution, the following further conditions shall apply:

(a)

The quantity of chlorate stored should be the minimum required for laboratory purposes as certified by the Head of the

Institution to the licensing authority;

(b)

The stock of chlorate possessed should be kept in a well-made cupboard or almirah under lock and key under the control and supervision of a responsible member of the staff and the place where the chemicals are kept should be adequately secured.;

(c)

Accounts of issues and balances of chlorate possessed should be kept and checked with the actual stock at frequent intervals by a responsible member of the staff. The account book should be available for inspection on demand by any Magistrate or any Police Officer of a rank not below that of Inspector.

Form III

License for the acquisition, possession, carrying and use of arms or ammunition for sport/ target practice/ protection/ display of categories I(b), I(c), III, V, VI of Schedule I

UIN

Serial No. of license

Name, date of birth and residence of licensee

Arms and ammunition that the licensee is entitled to possess

Brief description of each weapon with details

e.g. identification marks, manufacturer's serial number etc.

Quantity and description of each kind of ammunition

to be possessed at any one time

purchasable during the year

1

2

3

4

5

6

Area within which the license is valid

Date on which the license expires

Date on which the license or the arms or both

shall be produced for inspection before licensing authority under rule 18

7

8

9

The of 2000

Name (in capital)/ Signature of the Licensing Authority

Designation

.....

Place

.....

SEAL

Or

Signature of the officer specially empowered to sign the

license under rule 5

Designation

.....

Place

.....

Retainer

Particulars (in case of companies)

1.

Name of the retainer

2.

Father's name

3.

Date of birth

4.

Permanent address and nearest police station

Note:- Photograph of the retainer to be affixed on the license
duly stamped and signed by the licensing authority

Form of Renewal of License

Date and year of renewal

Date on which the renewed license expires

Name (in capital)/ signature and designation of
the renewing authority

Signature and designation of the officer

specially empowered to sign the license under rule 5

SEAL

1

2

3

4

5

Conditions

In addition to the common conditions contained in rule 112 of these rules, this license shall be subject to the following additional conditions -

(1)

This license is granted subject to all the provisions of the Arms Act, 1959, and of the Arms Rules, 2016.

(2)

It covers only the person named, and the arms or ammunition described therein.

(3)

The licensee shall acquire and produce the arms together with the license, within the time limit granted or extended as specified in column 9, before the licensing authority. If within the period so specified or extended the licensee fails to acquire the arms and to produce the license or the arms or both, as the case may be, the license shall cease to be in force.

(4)

The licensee, at the time of purchasing any arms or ammunition shall cause the following particulars to be endorsed upon his license under the vendor's signature, namely -

(a)

the name, description and residence of the person who takes delivery of the articles purchased;

(b)

the nature and quantity of the articles purchased; and

(c)

the date of purchase,

and if the arms or ammunition are purchased from any person other than a licensed dealer, shall also cause the particulars specified in clauses (b) and (c) to be furnished in writing to the authority who granted this license within such period as may be prescribed for this purpose by such authority.

(5)

The licensee shall not purchase ammunition of any kind in excess of the maximum prescribed both for the amount purchasable in a year and for the amount that may be possessed at any one time as laid down in rule 23. If, however, a licensee exhausts the total quantity of ammunition purchasable in a year earlier than the close of the year, he may for good and sufficient reasons be given a temporary increase in the total quantity purchasable at the discretion of the licensing authority:

Provided that a licensee may be permitted, to purchase ammunition from any authorized arms and ammunition dealer of a neighbouring State, by the concerned licensing authority for any reasons deemed appropriate by it and endorsement to this effect shall be made on the license by such licensing authority.

(6)

Without prejudice to the voidance of this license for breach of any of the foregoing conditions, it shall be void if-

(a)

the licensee dies, or

(b)

any weapon-covered thereby-

(i)

is sold or transferred; or

(ii)

is attached in execution of a decree;

Provided that where a weapon is sold or transferred, the licensing authority may permit the holder of the license to acquire a fresh weapon of the same description within such period as may be specified by him in this behalf and subject to fulfillment of condition (3) mentioned above.

(7)

The licensee shall not carry any firearm to a firearm free zone licensed under these rules. Further, the licensee shall not carry a firearm in a public place unless the firearm is carried -

(a)

in the case of a handgun -

(i)

in a holster or similar holder designed, manufactured or adapted for the carrying of a handgun and attached to his person; or

(ii)

in a rucksack or similar holder; or

(b)

in the case of another firearm, in a holder designed, manufactured or adapted for the carrying of a firearm.

Further the firearm must be completely covered and the person carrying the firearm must be able to exercise effective control over such firearm.

(8)

The licensee shall not resort to brandishing of firearms in public place nor shall he carry or discharge a firearm in a built up area or any public place on the occasion of marriage, public assembly, fair or procession or any public event.

(9)

The licensee shall not point out any firearm, whether or not it is loaded or capable of being discharged, at any other person, without a good reason to do so.

(10)

The licensee shall ensure to keep his firearm in his possession at a secured place under lock and key when such firearm is not carried on his person or not under his direct control, however, he shall not deposit any firearm or ammunition in any bank locker.

(11)

The licensee shall in the event of any loss, theft or destruction of the arms license or firearm shall report about such an event to the nearest police station within 24 hours after having become aware of the loss, theft or destruction of the license or firearm.

(12)

The licensee shall submit the application for renewal of license minimum sixty days prior to expiry of the validity period of his license with the concerned licensing authority along with the payment of fees as applicable under Schedule IV.

(13)

Permission to possess Government arms or ammunition may be given by the licensing authority if empowered to do so by the Central Government by making an endorsement on the license showing the Government arms or ammunition, which the licensee is authorized to possess.

Conditions for additional licenses under rule 20

(14)

Additional licensee at the time of making an application for grant of an additional license shall not hold any individual license in his name. Further the additional licensee is not eligible to apply for an individual license during the period he is an additional licensee.

(15)

The additional licensee is prohibited to acquire or purchase, sell or transfer, any arms and ammunition on his additional license. Only the arms and ammunition endorsed on the parent license may be got endorsed on the additional license.

(16)

The period of validity and the area validity of the additional license shall rank pari-passu with that of the parent license. The validity of additional license shall lapse with the parent license and if in any eventuality the parent license is suspended, revoked or cancelled, the additional license shall also be subject to the same consequence.

(17)

In case the holder of additional license shifts temporarily or permanently from the premises of the parent licensee, the additional license shall automatically

Form III-A

License for possession and carrying by a retainer of an Exemptee of arms or ammunition for the purpose of sport/ protection/ display

UIN

Serial No. of license

Name, description and residence of the person

exempted under Section 41 of the Act, who has nominated the licensee

Name and residence of the licensee

Name and residence of parent of the licensee

Arms or ammunition that licensee is entitled to possess and carry

Area of validity of license, i.e. throughout

India, State or District

Date on which license expires, or the date on

which the person specified in column 3 ceases to be exempted under section 41 of the Act, (whichever is earlier)

Brief description of each weapon with details, e.g. identification marks, manufacturer's serial No. etc.

Quantity and description of each kind of ammunition

1

2

3

4

5

6

7

8

9

The of 2000

Name (in capital)/ Signature of the Licensing

Authority

Designation

.....

Place

.....

SEAL

Or

Signature of the officer specially empowered to
sign the

license under rule 5

Designation

.....

Place

.....

Form of Renewal of License

Date and year of renewal

Date on which renewed license expired

Name (in capital)/ signature and designation of
renewing authority

Signature and designation of the officer

specially empowered to sign the license under rule 5

SEAL

1

2

3

4

5

Conditions

In addition to the common conditions contained in rule 112 of these rules, this license shall be subject to the following additional conditions -

1. This license is granted subject to all the provisions of the Arms Act, 1959, and of the Arms Rules, 2016.

2. It covers only the person named in column 4 of this license and the arms or ammunition described in columns 6 and 7.

3. This license shall only be granted to a person nominated in that behalf and certified to be his own retainer by a person exempted under section 41 of the Act, and it shall only be granted in respect of the arms or ammunition specified in this behalf by, and being the property of, such exempted person.

4. The grant/renewal of this license is subject to the condition that it shall expire on the date on which the person specified in column 3 of this license ceases to be exempted under section 41 of the Act where such date is earlier than the date on which it would otherwise expire in the normal course.

5. The licensee shall not carry any arms covered by this license otherwise than in good faith for the purpose of sport/ protection/ display.

Form III-BPermitto Retainers of

Companies

Passport size photograph of the retainer to be
attested by the company

Licensee Particulars

1.

Name of the company

2.

Address as appearing on the license

3.

License Number and UIN

4.

Period of validity of the license

DD/MM/YYYY

5.

Area validity of the License

6.

Name of the responsible person with designation

The person whose particulars are detailed below is hereby appointed to be an armed retainer of the company entitling him to possess, carry and use, for all lawful orders issued by me, as a responsible person of the company, the arms or ammunition mentioned in column 10 and 11, covered by the license of the company as mentioned in column 3.

Retainer Particulars

7.

Name of the retainer

8.

Father's Name

9.

Address of the retainer and nearest police station

10.

Details of the weapon entrusted to the retainer

Type

Caliber/ Bore

Weapon Number

11.

Quantity of Ammunition entrusted to the retainer

12.

Validity of the Permit up to

DD/MM/YYYY

13.

Signatures of the retainer

The retainer mentioned in column 7 shall carry this permit with him when carrying the arms or ammunition and shall not carry the arms or ammunition to an area not covered by the license

{

Stamp and Seal of the Licensing Authority

| _____

|-

| Signature with stamp of the responsible person

|-

| signing on behalf of the company

|}

Form IV

Composite license for acquisition/ possession/ carrying and use of arms or ammunition for destruction of wild animals which do injury to human beings or cattle and damage to crops

UIN

License Number

Name, description and residence of the licensee

Arms and ammunition

Place or area within which the license is valid

Period for which the license is valid

Date on which the license or the arms or both

shall be produced for inspection before the licensing authority

under rule 18

Brief description of each weapon with details

e.g., manufacturer's serial no. and identification marks, if any

Quantity and description of each kind of

ammunition

Maximum to be possessed at any one time

Maximum purchasable during the year

1

2

3

4

5

6

7

8

9

In case of destruction of wild animals which do injury to

human beings or cattle

In case of protection against damage to crops

Specification of the wild beasts which are permitted to be

destroyed under this license as per the permit granted under the

Wild life (Protection) Act, 1972 (

53 of 1972

) to the licensee

Title and residence of Magistrate to whom the license and the

weapon(s) must be shown between the 15th November and 31st

December of each year

10

11

The of 20....

SEAL

(Signature)

Licensing Authority

Designation

Place

Form of

Renewal of License

Date and year of renewal

Date on which renewed license expired

Signature and designation of renewing authority

SEAL

1

2

3

4

Conditions

In addition to the common conditions contained in rule 112 of these rules, this license shall be subject to the following additional conditions -

1. This license is granted subject to -

(a)

all the provisions of the Arms Act, 1959, and of the Arms Rules, 2016;

(b)

the provisions of sections 11 and 39 of the Wild Life (Protection) Act, 1972 (53 of 1972

), or other relevant sections, as the case may be, in respect of the State and Union Territory where the said Act is applicable.

2. The licensee shall not carry any arms covered by this license otherwise than in good faith for destruction of wild animals which do injury to human beings or cattle and damage to crops beyond the place or area entered in column 7.

3. The licensee shall not purchase or possess ammunition of any kind in excess of the maximum allowed under columns 5 and 6 of the license subject to the maximum limits laid down in rule 23.

4. At the time of purchasing any arms or ammunition the licensee shall cause the following particulars to be endorsed upon his license under the vendor's signature namely:

(a)

the name, description and residence of the person who takes delivery of the articles purchased;

(b)

the nature and quantity of the articles purchased; and

(c)

the date of purchase;

and if the arms are purchased from any person other than a licensed dealer, he shall also cause the particulars specified in clauses (b) and (c) to be furnished, in writing, to the authority who granted this license within such period as may be prescribed for this purpose by such authority.

5. The licensee shall acquire and produce the arms together with the license, within the time limit granted or extended as specified in column 9, before the licensing authority. If within the period so specified or extended the licensee fails to acquire the arms and to produce the license or the arms or both, as the case may be, the license shall cease to be in force.

6. For license granted for destruction of wild animals which do injury to human beings or cattle and damage to crops, the licensee shall produce this license and every weapon covered thereby before the magistrate referred to in column 11, once every year, between the 15th November and the 31st December.

7. Further,

(a)

The licensee shall not lend any arms or ammunition covered by this license to any person;

(b)

Where, after the end of any harvest season, the State Government considers it expedient that for the protection of wild life in any area, any firearm or ammunition licensed in this form should be deposited in a police station or with a licensed dealer, it may, by order, require any licensee to so deposit such firearm or ammunition for such period as the arms are not required for protection of crops and as may be specified therein, and thereupon the licensee shall be bound to comply with such order.

8. Without prejudice to the voidance of this license for breach of any of the foregoing conditions, it shall be void if-

(a)

the licensee dies; or

(b)

any weapon-covered thereby-

(i)

is sold or transferred, or

(ii)

is attached in execution of a decree:

Provided that where a weapon is sold or transferred, the licensing authority may permit the holder of the license to acquire a fresh weapon of the same description within such period as may be specified by him in this behalf.

Form V

License for acquisition, possession and use, for the purpose of sport/target practice, of firearms or ammunition

UIN

Serial Number of the license

Name description and location of the mess, club

or association or firing range

Arms and ammunition that the licensee is entitled

to possess

Place within which the license is valid

Date on which the license expires

Date on which the license or the arms or both

shall be produced for inspection before the licensing authority

under rule 18

Maximum to be possessed at any one time

Maximum purchasable during the year

1

2

3

4

5

6

7

8

The of 200

Name (in capital)/ signature of the Licensing Authority

Designation

Place

SEAL

Or

Signature of the officer specially empowered to sign the
license under Rule 5

Designation

Place

Form of

Renewal of License

Date and year of renewal

Date on which renewed license expired

Name (in capital)/ signature and designation of
renewing authority

Signature and designation of the officer

specially empowered to sign the license under rule 5

SEAL

1

2

3

4

5

Conditions

In addition to the common conditions contained in rule 112 of these rules, this license shall be subject to the following

additional conditions -

1. This license is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 2016.
2. It covers only the mess, club, association or firing range named and the arms and ammunition described therein.
3. The licensee shall acquire and produce the arms together with the license, within the time limit granted or extended as specified in column 8, before the licensing authority. If within the period so specified or extended the licensee fails to acquire the arms and to produce the license or the arms or both, as the case may be, the license shall cease to be in force.
4. The licensee shall, at the time of purchasing any arms or ammunition, cause the following particulars to be endorsed upon its license under the vendor's signature, namely:
 - (a)
the name, description and residence of the person who takes delivery of the articles purchased on behalf of the mess, club or association;
 - (b)
the nature and quantity of the articles purchased; and
 - (c)
the date of purchase;and if the arms or ammunition are purchased from any person other than a licensed dealer, shall also cause the particulars specified in clauses (b) and (c) to be furnished in writing to the authority who granted this license within such period as may be prescribed by that authority for this purpose.
5. No purchase of ammunition shall, however, be permitted except on a written certificate from the licensee certifying that with the amount proposed to be purchased, the total quantity of ammunition in his possession will not exceed the maximum which he is entitled to possess at any one time, or his total allowance for the year.
6. The mess, club, association or firing range shall not purchase or possess ammunition in excess of the quantities allowed under columns 4 and 5 of the license or the maximum, which may, from time to time, be fixed by the Central Government for the amount purchasable in a year and for the amount that may be possessed at any one time. Proper inventory of ammunition acquired and consumed shall be maintained to include ammunition consumed for its own use and consumed by the registered members of such mess, club, association or firing range.

Form V - A

Authorisation

Letter

[to be issued by the lender under rule 36(4)]

Particulars of the Lender

1.

Name of the lender dedicated sports person

2.

UIN

3.

License number

4.

Period of validity of license

5.

Address as mentioned in the license

6.

Telephone/ Mobile Number

Particulars of the Borrower

1.

Name of the borrower dedicated sports person

2.

Parent/ Spouse Name

3.

Membership Number

(in case borrower is a registered member of rifle club or association)

4.

Residence address

5.

Telephone/Mobile Number

6.

Purpose of grant of Authorization

(Training/ Target-practice/ Sporting event)

7.

Period for which the Authorisation
is being issued

(maximum period: 3 months)

8.

Area within which the Authorization is valid

9.

Name and address of the shooting range where the firearms and
ammunition are to be carried

Details of Arms and Ammunition which the

Borrower is entitled to carry and use for training/target
practice

Particulars

Firearm 1

Firearm 2

Firearm 3

Detail of

Firearms

Type

Bore

Number

Ammunition

Number of

cartridges

Accessories

(Name and Signature of the lender)

Form V - B

Pass to Member of Rifle Club/association

(to be issued on the printed letter head of
club/association)

Licensee particulars

1.

Name of the rifle club/ association

2.

UIN

3.

License number

4.

Name of the responsible person

5.

Registered address

6.

Telephone/Mobile Number

Particulars of the Member to whom the Pass is
being issued

1.

Name of the Member

2.

Parent/Spouse Name

3.

Membership Number

4.

Residence address

5.

Telephone/Mobile Number

6.

Purpose of grant of Pass

(Repair/Training/ Target Practice/Sporting Event)

7.

Period for which the Pass is being issued

8.

Area within which the Pass is valid

9.

Name and address of the gun-smith or the shooting range where
the firearms and ammunition are to be carried

Details of Arms and Ammunition which the
Borrower is entitled to carry and use for training/target
practice

Particulars

Firearm 1

Firearm 2

Firearm 3

Detail of

Firearms

Type

Bore

Number

Ammunition

Number of

cartridges

Accessories

To be signed/stamped by the responsible person on behalf of the shooting club/association

Form VI

Temporary Import/ Export License

License Number _____

*Category of licensee as applicable

Name and description of licensee, nationality and
passport number of the licensee or group leader or manager of the
sporting team/ group

Arms or ammunition that the licensee of category
mentioned in column (1) is entitled to possess and carry

Place of arrival in India

Place of departure from India

Period for which the license is valid

Brief description of each weapon

Quantity and description of each kind of
ammunition

1

2

3

4

5

6

7

The of 20.....

(SEAL)

(Signature)

Licensing

Authority

Designation

.....

Place

.....

*Categories of licensees as per column 1 above

Category

Type of license

Category of arms specified in Schedule I

(a)

that sports person (s) is/are entitled to import into,
possession, use (for shooting sport events), journey in,
transport across and export out of India for the duration of the
shooting sport event or till the validity of visa, whichever is
earlier

III

(b)

that tourist is entitled to acquire/ possess (but not use)
during the course of his stay in/ carrying in/ export out of
India

III, IV, V(Made in India)

(c)

that a foreign visitor is entitled to import into, possession,
display at a trade or sport show and export out of India

III

(d)

that an official of a foreign government or a distinguished
foreign visitor or a foreign law enforcement officer with the
prior approval of MEA is entitled to import into, possess, carry
and export out of India

III

(e)

that a legitimate person with the prior approval of Central
Government is entitled to import into, possess, carry and export
out of India

III

Conditions

1. This license is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 2016.
 2. It covers only the persons named, and the arms or ammunition described therein.
 3. On arrival at any Indian port, the license together with the passport/visa, shall be presented to the licensing authority of the port of arrival, along with an undertaking from the licensee that the arms or ammunition endorsed on the license shall not be sold or transferred to any person during his stay in India, wherein an entry to this effect shall also be made by the licensing authority in the passport/visa giving full particulars of the arms and ammunition for which the license has been granted.
 4. The licensee shall not, unless specially empowered in this behalf by the authority granting the license, carry arms or ammunition to a fair, religious procession or other public assemblage or within the campus or precincts of any educational institution or any firearm free zone while and during his stay in India.
 5. The licensee shall -
 - (a) on demand by any magistrate, police officer or any authorized officer produce the firearms covered by this license;
 - (b) forthwith give information at the nearest police station of the loss or theft of any arms or ammunition covered by the license.
- The licensee, while in India, is prohibited to sell or transfer any arms or ammunition or part thereof covered by this license, to any person.
6. The licensee shall produce the firearm at the time of leaving India and return his license to the passport checking authority or other officer empowered by the district magistrate in this behalf at the port or other place of departure from India.
 7. Export of category IV arms shall be allowed only if the application is accompanied by a certificate from the Director-General of Archeology of the Central Government to the effect that the arms intended to be exported do not fall within the definition of "antiquity" under the Antiquities and Art Treasures Act, 1972 (52 of 1972).

Form VII

License

for

Manufacture

{|

| Proof Test

|

| Manufacture and Proof Test

|

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|

|

|

|

| of

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|

| Firearms/ Ammunition

|

|}

UIN _____ License Number _____

Name, description
and business address of licensee
Description of firearms allowed to be
manufactured
Description of ammunition allowed to be
manufactured
Categories of firearms allowed to be proof-tested
Name of range or other place where allowed to
test
Date on which the license expires
Category
Annual production (Number)
Category
Annual production (Number or Weight in Kgs.)

1
2
3
4
5
6
7
8

The of20.....

Date on which a copy is sent vide rule 7(2) to -

The District Magistrate of district

The State Government of

The of20.....

(Signature)

Secretary/ Joint Secretary
to the Government of India

(SEAL)

Ministry of Home Affairs

or

Signature and designation of the officer specially empowered
to sign the license under Rule 5

Form of

Renewal of License

Date and year of renewal

Date on which the renewed license expires

Signature and designation of renewing authority

SEAL

1
2
3
4

[Explanation.

[Inserted by Notification No. G.S.R. 1079(E), dated 1.11.2018 (w.e.f. 15.7.2016).]

- This Form shall apply to firearms and their following parts, namely: -

(a)

Barrel;

(b)

Cylinder;

(c)

Bolt;

(d)

Breech Block;

(e)

Slide;

(f)

Firing Pin;

(g)

Frame or Receiver;

(h)

Extractor;

(i)

Hammer/Striker.]

Conditions

1. (a) This license is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 2016.

(b)

This license entitles the licensee to manufacture or proof-test firearms or ammunition as specified in column 3 and 5 respectively.

2. The licensee shall be required to construct the factory premises, set-up plant and machinery within 7 years of the grant of license.

3. The licensee is permitted to conduct trial runs and develop proto-types within the initial validity period of license.

4. The licensee should preferably be self-sufficient in areas of product design and development and should have maintenance and life cycle support facility of the product to be manufactured or proof-tested.

5. The standards and testing procedures for firearms and ammunition to be produced under license from foreign collaborators or from indigenous research and development shall be provided by the licensee to the Government nominated Quality Assurance Agency, which will inspect the finished product in the trial run and conduct surveillance and audit of the Quality Assurance Procedures before the licensee applies for permission for commencement of commercial production.

6. The licensee setting up a new manufacturing or proof test facility shall fully comply with the security conditions contained in the Security Manual prepared by the Department of Defense Production, Ministry of Defense before filing intimation for commencement of commercial production for manufacture of firearms and ammunition.

(a)

This license entitles the licensee to take any arms or ammunition for testing to an accredited shooting range with prior permission of the licensing authority.

(b)

This license is valid only so long as the licensee carries on the manufacture and/or proof-test in the premises shown in column 1 thereof, and will ipso facto lapse if the business is discontinued for a continuous period exceeding six months.

(c)

The licensee shall not enter into any partnership connected with this license without the approval of the licensing authority.

7. The licensee shall maintain registers of all arms manufactured or proof-tested, of all ammunition manufactured, or transferred, of all stock in hand, and of all sales, showing the particulars in such forms as prescribed in the rules. Further, the licensee shall carry on the work of proof testing and stamp proof-marks on the firearms, which are proved, in accordance with rule 59 of these rules.

8. The licensee shall make available for inspection his stock and his registers on the demand of any magistrate or any police officer of a rank not below that of Inspector, or, if the Central Government so directs, of Sub-Inspector.

9. The licensee shall affix on a conspicuous part of his place of business and factory a signboard on which shall be painted in large letters in English/ Hindi and in the language of the district his name and the words "Licensed to manufacture and/or proof test Firearms and Ammunition".

10. The licensee shall not manufacture firearms and ammunition of any category or description other than those allowed to be manufactured under column 2 and 4; nor expand his business, except with the prior permission of the Central Government and subject to such conditions as may be prescribed by the Central Government.

11. The licensee shall not sell to anyone any firearm manufactured by him unless such firearm -

(a)

is duly proof-tested at a Government establishment or a proof house licensed under these rules or in case of a composite license proof-tested in house;

(b)

bears proof-mark; and

(c)

bears identification marks required by rule 58.

12. The licensee shall not sell firearms or ammunition elsewhere than at the place of business or factory specified in column 1.

13. The licensee shall at the time of sale or transfer of a firearm enter in his register the manufacturer's serial number and other identification marks, if any, stamped on the fire-arm at the time of manufacture or otherwise.

14. The licensee shall give information of all sales or transfers of arms and ammunition, to such persons and in such manner as the Central Government may direct.

15. The licensee shall not sell or transfer any quantity of ammunition to any person licensed to possess or carry arms or ammunition without his first obtaining a written certificate from such person to the effect that, with the quantity of ammunition proposed to be purchased by him, the total quantity in his possession will not exceed the maximum quantity which he is entitled to possess at any one time or his total allowance for the year:

Provided that he shall not, in any case, sell or transfer to any person any quantity of ammunition in excess of the maximum which may be fixed by the Central Government for such person or which is endorsed on such person's license.

16. The licensee shall, at the time of sale or transfer of any arms or ammunition to a person holding a license in Form III, Form IV or Form V endorse on the license -

(a)

the name, description and residence of the person who takes delivery of the articles sold or transferred,

(b)

the nature and quantity of the articles sold or transferred, and

(c)

the date of sale or transfer; and

shall sign the endorsement (and affix his seal).

17. The licensee shall not sell firearms and ammunition to an officer, non-commissioned officer or soldier of the armed forces of the Union, unless such person produces a written pass or permit signed by his Commanding Officer, and then only to the extent and on the conditions specified in such pass or permit.

Conditions related to Inventory Management System as per rule 56(5)

1.1

Separation of powers. - Checks and balances should be put in place to ensure that personnel involved in the management of manufacturing of arms and ammunition facility do not simultaneously hold responsibilities that would make it easier for them to steal or otherwise divert firearms while hiding their malfeasance from view.

For example, -

(a)

the same personnel should not be responsible simultaneously for conducting store-keeping, accounting and auditing functions;

(b)

personnel responsible for physically verifying the transfer of firearms should not be responsible for compiling the physical records of the firearm transfers;

(c)

Personnel responsible for firearms accounting should not participate in stock checks without the direct supervision of storage personnel;

(d)

Regular external audits of firearms stocks should be carried out by independent bodies.

1.2

Firearms Account. - An account shall be maintained at each manufacturing facility that records the following information for each firearm in storage:

(a)

make;

(b)

model;

(c)

caliber;

(d)

serial number;

(e)

date entered into finished stock;

(f)

date transferred/sold/exported;

(g)

record of modifications and/or repairs; and

(h)

overall quantity of firearms, disaggregated by type.

The firearms account should be in electronic form and shall be 'backed up'. Backups should be in both electronic and hard copy, but may be only in hard copy. In addition uploading of data on NDAL for the current week transactions is mandatory by the close of business hours on every Saturday. Whatever form the backups take, they shall be stored separately from the original and from each other in order to prevent the loss of all data in the event of theft, fire, etc. at the weapons accounting office. Firearms accounts should be kept indefinitely.

1.3

Issue of firearms. - Only authorized officials shall remove firearms and ammunition from manufacturing unit's storage areas. A system to positively identify and authenticate persons authorized to remove firearms from storage areas shall be developed and implemented.

Such a system should include a register or log, which can be easily cross-referenced with the firearms account that records at least the following information:

(a)

name and signature of individual removing firearm(s);

(b)

date and time of issue and return of firearm(s);

(c)

make, model and serial number of firearm(s) removed and returned; and

(d)

purpose of removal of firearm(s).

1.4

Stock checks. - The contents of firearms stock shall be verified on a regular basis against the firearm account, specifically, -

(a)

a physical stock check by quantity and type of firearms should be conducted -

- every day in the case of smaller volume manufacturing unit;

- every week in the case of larger volume manufacturing unit.

(b)

a physical stock check by serial number should be conducted on at least 10% of the firearms in stock -

- every week in the case of smaller volume manufacturing unit, and

- every month in the case of larger volume manufacturing unit

(c)
a 100% physical stock check by quantity, type and serial number should be conducted -

- every six months, regardless of the quantity of firearms in storage, and
- whenever the custody of keys is permanently transferred between an in-coming and outgoing key custodian.

1.5

Reporting of losses and investigations. - Any suspected loss or theft of a firearm shall immediately be reported to the appropriate authority, which should immediately instigate an independent investigation by an individual or organization unconnected with the firearms management system.

An investigation report should be compiled, including the following information:

(a)

identity of the firearm, including its

(1)

make,

(2)

model,

(3)

caliber,

(4)

serial number

(b)

date, location and unit involved;

(c)

summary of circumstances of loss;

(d)

explanation of loss (e.g. negligence, theft, etc.);

(e)

disciplinary and/or criminal action taken;

(f)

recommendations to prevent a re-occurrence;

(g)

date and location of recovery of the firearm(s) (if applicable);

(h)

summary of circumstances of recovery (if applicable)

The identity of lost or stolen firearms, as set out in (a) above, shall be recorded and retained in NDAL system in order to facilitate their timely identification upon recovery.

When processing inventory adjustments, no firearm loss shall be attributed to an accounting or inventory discrepancy unless an investigation has determined that the loss was not a result of theft.

1.6

Determination of surplus stocks. - It is the prerogative of the manufacturing units to review the types and numbers of firearms with a view to determining the types and numbers of firearms that have become surplus to national/international requirements.

Surplus stocks are understood as functioning firearms (including their parts, components and ammunition) that are no longer required by the armed services of the State in order to ensure internal and external security nor could be exported to legitimate buyers. Firearms determined to be surplus should be -

(a)

officially declared as surplus;

(b)

recorded as surplus in the firearms account;

(c)

taken out of service;

(d)

stored separately; and

(e)

destroyed in accordance with the guidelines

Form VII-A

License to manufacture, sale, transfer, keeping for sale, transfer arms and ammunition of category V of Schedule I

UIN

License number

Name, description and business address of licensee

Description of arms allowed to be manufactured (category V only)

Date on which the license expires

Category of arms

Annual production (Number)

1

2

3

4

5

6

The of 20 (SEAL)

(Signature)

Licensing Authority _____ or

Specially empowered officer to sign the license under rule

(5)

Designation _____

Place _____

Form of

Renewal of License

Date and year of renewal

Date on which the renewed license expires

Signature and designation of the renewing authority

SEAL

1

2

3

4

Conditions

1. (a) This license is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 2016.

(b)

This license is valid only so long as the licensee carries on the trade or business in the premises shown in column (3) thereof, and will ipso facto lapse if the business is discontinued for a continuous period exceeding six months.

(c)

The licensee shall not enter into any partnership connected with this license without the approval of the licensing authority.

2. The licensee shall not sell or transfer any arms of category V to a person residing in an area to which section 4 of the Act applies, unless the said person produces a license, or is exempted from the obligation to take out a license, to acquire, possess or carry such arms in that area.

3. The licensee shall maintain registers of all arms and ammunition manufactured, or transferred, of all stock in hand, and of all sales, showing the particulars in such forms as may be prescribed for the purpose by the Central Government

under rule 86.

4. The licensee shall make available for inspection his stock and his registers on the demand of any magistrate or any police officer of a rank not below that of Inspector, or, if the Central Government so directs, of Sub-Inspector.

5. The licensee shall affix on a conspicuous part of his place of business, factory or shop a signboard on which shall be painted in large letters in English/ Hindi and in the language of the district his name and the words "Licensed to manufacture/ transfer/ sell arms or ammunition of Category V".

6. The licensee shall not manufacture arms of any category or description other than those allowed to be manufactured under column (4).

Form VII-B

License to manufacture, sale, transfer, keeping for sale, transfer replicas of firearms

UIN

License number

Name, description and business address of licensee

Description of replicas of firearms allowed to be manufactured

Date on which the license expires

Category of arms

Annual production (Number)

1

2

3

4

5

6

The of 20 (SEAL)

(Signature)

Licensing Authority _____ or

Specially empowered officer to sign the license under rule (5)

Designation _____

Place _____

Form of

Renewal of License

Date and year of renewal

Date on which the renewed license expires

Signature and designation of the renewing authority

SEAL

1

2

3

4

Conditions

1. (a) This license is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 2016.

(b)

This license is valid only so long as the licensee carries on the trade or business in the premises shown in column (3) thereof, and will ipso facto lapse if the business is discontinued for a continuous period exceeding six months.

(c)

The licensee shall not enter into any partnership connected with this license without the approval of the licensing

authority.

2. The licensee shall maintain registers of all arms and ammunition manufactured, or transferred, of all stock in hand, and of all sales, showing the particulars in such forms as prescribed under rule 70.

3. The licensee shall make available for inspection his stock and his registers on the demand of any magistrate or any police officer of a rank not below that of Inspector, or, if the Central Government so directs, of Sub-Inspector.

4. The licensee shall affix on a conspicuous part of his place of business, factory or shop a signboard on which shall be painted in large letters in English/ Hindi and in the language of the district his name and the words "Licensed to manufacture /transfer/ sell replicas of firearms".

5. The licensee shall not manufacture replicas of arms of any category or description other than those allowed to be manufactured under column (4).

Form VII - C

License to manufacture, sale, transfer, keeping for sale, transfer air weapons including air rifles and air pistols

UIN

License number

Name, description and business address of licensee

Description of replicas of firearms allowed to be manufactured

Date on which the license expires

Types of air weapons with muzzle energy and calibers

Annual production (Number)

1

2

3

4

5

6

The of 20 (SEAL)

(Signature)

Licensing Authority _____ or

Specially empowered officer to sign the license under rule (5)

Designation _____

Place _____

Form of

Renewal of License

Date and year of renewal

Date on which the renewed license expires

Signature and designation of the renewing authority

SEAL

1

2

3

4

Conditions

1. (a) This license is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 2016.

(b)

This license is valid only so long as the licensee carries on the trade or business in the premises shown in column (3) thereof, and will ipso facto lapse if the business is discontinued for a continuous period exceeding six months.

(c)

The licensee shall not enter into any partnership connected with this license without the approval of the licensing authority.

2. The licensee shall not sell or transfer any air weapons including air rifles and air guns having muzzle energy more than 20 joules or 15 ft-lbs and/or bore more than 0.177" or 4.5 mm to a person, unless the said person produces a license, or is exempted from the obligation to take out a license, to acquire, possess or carry such air weapons.

3. The licensee shall not sell or transfer any air weapons including air rifles and air guns having muzzle energy less than 20 joules or 15 ft-lbs and/or bore less than 0.177" or 4.5 mm to a person, without first obtaining an identification proof and residence proof from the said buyer thereof.

4. The licensee shall maintain registers of all air weapons manufactured, or transferred, of all stock in hand, and of all sales, showing the particulars in such forms as specified in rule 65.

5. The licensee shall make available for inspection his stock and his registers on the demand of any magistrate or any police officer of a rank not below that of Inspector, or, if the Central Government so directs, of Sub-Inspector.

6. The licensee shall affix on a conspicuous part of his place of business, factory or shop a signboard on which shall be painted in large letters in English/ Hindi and in the language of the district his name and the words "Licensed to manufacture /transfer/ sell air weapons".

7. The licensee shall not manufacture air weapons of any type or description other than those allowed to be manufactured under column (4).

Form VIII

Composite license for arms and ammunition dealers

Dealer Licenses

{

| Deposit of Arms

|

}

Serial No. of license _____ UIN _____

Date and year on which the license expires ____/____/____

Name, description and business address of the licensee

Description and number of arms

Description and quantity of ammunition

Name of the accredited shooting range where allowed to test

To be sold or kept for sale etc.

To be deposited for safe custody under rule 48 or under section 21

To be sold or kept for sale etc.

To be deposited for safe custody under rule 48 or under section 21

1

2

3

4

5

6

The of 20 (SEAL)

(Signature)

Licensing Authority _____ or

Specially empowered officer to sign the license under rule

(5)

Designation _____

Place _____

Form of

Renewal of License

Date and year of renewal

Date on which the renewed license expires

Signature and designation of the renewing
authority or specially empowered officer

SEAL

1

2

3

4

Conditions

1. (a) This license is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 2016;

(b)

This license entitles the dealer to take any arms or ammunition for testing or firing for demonstration to an accredited shooting range only after obtaining prior permission of the licensing authority;

(c)

This license is valid only so long as he carries on the trade or business at the premises shown in column 1 thereof, and will ipso facto lapse if the business is discontinued for a continuous period exceeding six months.

2. The licensee shall maintain registers of all arms and ammunition in stock and deposit; and of all sales showing the particulars in such manner and forms as laid down in the rule 75.

3. The licensee shall make available for inspection his stock and his registers on the demand of any magistrate or any police officer of a rank not below that of Inspector, or, if the Central Government so directs, of Sub-Inspector.

4. The licensee shall affix on a conspicuous part of his place of business or shop, a signboard, on which shall be painted in large letters in English/Hindi and in the local language his name and the words "Licensed to sell/transfer arms and ammunition as per the category of the license granted".

5. The licensee shall not sell the arms or ammunition covered by the license, elsewhere than at the place of business specified in column 1.

6. The licensee shall at the time of sale or transfer of any arms or ammunition to a person holding a license in Form II, Form III, Form IV and Form V endorse on the license-

(a)

the name, description and residence of the person who takes delivery of the articles sold or transferred;

(b)

the nature and quantity of the articles sold or transferred; and

(c)

the date of sale or transfer;

and shall sign the endorsement and affix his seal.

7. The licensee shall at the time of sale or transfer of a weapon enter in his register, the manufacturer's serial number and other identification marks, if any, stamped on the firearm at the time of manufacture or otherwise.

8. The licensee shall give information of all sales or transfers of arms and ammunition, to such person and in such manner as the Central Government may direct.

9. The licensee shall not sell or transfer ammunition to any person, licensed to possess or carry arms, without his first obtaining a written certificate from such person to the effect that, with the quantity of ammunition proposed to be acquired by him, the total quantity of ammunition in his possession shall not exceed the maximum quantity which he is entitled to possess at any one time or his total allowance for the year:

Provided that he shall not in any case sell or transfer to any person any quantity of ammunition in excess of the maximum which may be fixed by the Central Government for such person or which is endorsed on such person's license.

10. Subject to the other conditions contained herein, no licensee shall, without reasonable cause, refuse to sell arms or ammunition to any person who is entitled to purchase or acquire such arms or ammunition under the provisions of the

Arms Act, 1959 or the Arms Rules, 2016.

11. During any period when the licensed premises are closed for business purposes, all firearms and ammunition, which are on the premises, must be locked in a strong room or safe, for safe custody of firearms.

12. During any period when the licensed premises are open for business or any other purpose, firearms and ammunition which are not displayed must be locked in a strong room or safe for safe custody of firearms.

13. The licensee may display firearms or ammunition during the business hours, however displayed firearms must be unloaded and in the case of handguns, locked in a display counter or cabinet that prevents the unauthorized access to the handguns displayed therein and in the case of other firearms excluding handguns, must be rendered inoperable by means of a secure locking device or securely attached with a metal attachment to a non-portable structure in such a manner that it cannot readily be removed. Further the firearm shall not be displayed with ammunition that can be discharged from it.

14. The dealer may not at any time display or exhibit any firearms, and ammunition in any showcase or showwindow which directly goes out on or overlooks any public street, road, thoroughway or public place where to the general public has access, or permit it to be displayed or exhibited or cause it to be so displayed or exhibited.

15. The dealer and all persons employed by the dealer must be conversant with the provisions of the Arms Act, 1959 and the Arms Rules, 2016 and shall undergo the prescribed training for weapon handling and safe storage as mentioned in rule 10 and will ensure that -

- (i) during business hours proper control is, at all times, exercised over all the firearms and ammunition;
- (ii) the prescribed registers are properly maintained;
- (iii) every reasonable precaution is taken against the loss or theft of the firearms and ammunition.

Conditions applicable on arms and ammunition kept for safe custody and under section 21

16. It covers only arms or ammunition of the description given in column 3 and 5 so long as they are kept in place described in column 1, but does not authorise the licensee to carry arms.

17. The licensee shall maintain separate registers of all arms or ammunition deposited with him under this license -

- (i) under Section 21 of the Act, and
- (ii) for safe custody otherwise than under Section 21 of the Act, showing particulars in such forms and manner as laid down in sub-rule (3) of rule 76 of these rules.

18. The licensee shall not receive for deposit arms or ammunition without verifying -

- (a) that they are not being deposited with any mala fide intention; and
- (b) in case they are being deposited otherwise than under Section 21 of the Act, that they are covered by a valid license issued under these rules.

19. On the expiry of the period prescribed for forfeiture of the arms or ammunition deposited, the licensee shall deposit them in the malkhana of the district or such other place as may be specified by the State Government for the purpose.

Form VIII-A

License for air weapon dealers

Serial No. of the license

U.I.N.

Name, description and business address of the licensee

Description and number of air weapons to be sold or kept for sale

Description and quantity of ammunition for air weapons to be sold or kept for sale

Date and year on which the license expires

1
2
3
4
5
6

The of 20 (SEAL)

(Signature)

Licensing Authority _____ or

Specially empowered officer to sign the license under rule

(5)

Designation _____

Place _____

Form of

Renewal of License

Date and year of renewal

Date on which the renewed license expires

Signature and designation of the renewing
authority or specially empowered officer

SEAL

1
2
3
4

Conditions

1. (a) This license is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 2016;

(b)

This license is valid only so long as the licensee carries on the trade or business at the premises shown in column (3) thereof, and will ipso facto lapse if the business is discontinued for a continuous period exceeding six months.

2. The licensee shall maintain registers of all arms and ammunition in stock and deposit; and of all sales showing the particulars in such manner and forms as laid down in the rule 85.

3. The licensee shall make available for inspection his stock and his registers on the demand of any magistrate or any police officer of a rank not below that of Inspector, or, if the Central Government so directs, of Sub-Inspector.

4. The licensee shall affix on a conspicuous part of his place of business or shop, a signboard, on which shall be painted in large letters in English/ Hindi and in the local language his name and the words "Licensed to sell/ transfer air weapons".

5. The licensee shall not sell the arms or ammunition covered by the license, elsewhere than at the place of business specified in column (3).

6. The licensee shall not sell or transfer any air weapons including air rifles and air guns having muzzle energy less than 20 joules or 15 ft-lbs and/or bore less than 0.177" or 4.5 mm to a person, without first obtaining an identification proof and residence proof from the said buyer thereof.

7. The licensee shall at the time of sale or transfer of an air weapon enter in his register, the manufacturer's serial number and other identification marks, if any, stamped on the air weapon at the time of manufacture or otherwise.

8. The licensee shall give information of all sales or transfers of air weapons, to such person and in such manner as the Central Government may direct.

9. Subject to the other conditions contained herein, no licensee shall, without reasonable cause, refuse to sell air weapons or their ammunition to any person who is entitled to purchase or acquire such air weapons or ammunition under the provisions of the Arms Act, 1959 or the Arms Rules, 2016.

10. During any period when the licensed premises are closed for business purposes, all air weapons and ammunition, which are on the premises, must be locked under lock and key or a safe, for safe custody of firearms.

11. During any period when the licensed premises are open for business or any other purpose, air weapons and ammunition which are not displayed must be locked under lock and key or a safe for safe custody.

12. The licensee may display air weapons or ammunition during the business hours, however displayed air weapons must be unloaded and in the case of air pistols, locked in a display counter or cabinet that prevents the unauthorized access to the air pistols displayed therein and in the case of other air weapons excluding air pistols, must be rendered inoperable by means of a secure locking device or securely attached with a metal attachment to a non-portable structure in such a manner that it cannot readily be removed. Further the air weapons shall not be displayed with ammunition that can be discharged from it.

Form IX

License to gunsmiths to convert, shorten, repair (major) or test (other than proof-test) or keeping for conversion, repair (major) or test (other than proof test) of firearms

UIN _____ License Number _____

Name, description and business address of licensee

Description of firearms allowed to be converted, shortened, repaired (major), tested (other than proof-test) or to be kept for conversion, shortening, repair (major) or test (other than proof-test)

Description of ammunition allowed to be possessed for testing the firearms repaired and Description of ammunition allowed to be converted

Date on which the license expires

Category

Quantity (Number)

Category

Quantity (Number or Weight in Kgs.)

1

2

3

4

5

6

The of 20 (SEAL)

(Signature)

Licensing Authority _____ or

Specially empowered officer to sign the license under rule (5)

Designation _____

Place _____

Form of

Renewal of License

Date and year of renewal

Date on which the renewed license expires

Signature and designation of the renewing authority

SEAL

1

2

3

4

Conditions

1. (a) This license is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 2016;

(b)

This license is valid only so long as he carries on the trade or business at the premises shown in column 1 thereof, and will ipso facto lapse if the business is discontinued for a continuous period exceeding six months.

(c)

The licensee shall not enter into any partnership connected with this license without the approval of the licensing authority.

2. The licensee shall maintain registers of all arms and ammunition converted or shortened or repaired (major) showing the particulars in such forms as prescribed under rule 82 of these rules.

3. The licensee shall make available for inspection his registers on the demand of any magistrate or any police officer of a rank not below that of Inspector, or, if the Central Government so directs, of Sub-Inspector.

4. The licensee shall affix on a conspicuous part of his place of business, factory or shop a signboard on which shall be painted in large letters in English / Hindi and in the language of the district his name and the words "Licensed to convert/shorten and repair (major) arms and ammunition".

5. The licensee shall not convert, shorten or repair (major) arms and/or ammunition of any category or description other than those allowed under column 2 and 4.

6. The licensee shall not convert/shorten/repair (major) arms or ammunition elsewhere than at the place of business or factory specified in column 1.

7. This license entitles the licensee to fabricate components and parts of firearms for the purpose of repair of firearms of the categories shown in column 2, but does not entitle him to manufacture such components or parts for the purpose of or utilised for assembling into complete arms or ammunition. Conversion of arms of restricted category [Category I(b) and I(c)] and of obsolete caliber weapons, which have gone out of production or for which no ammunition is readily available, into permissible category arms is allowed under this license subject to the prior permission of the licensing authority. Replacement of barrels of weapons falling under major repair is also permissible subject to condition 8.

8. The licensee shall not shorten the barrel of any firearm to less than 20 inches in any case.

9. This license does not entitle the licensee to convert blank cartridges or any ammunition having no projectile into single/multiple projectile ammunition or to load or re-load any ammunition.

10. During any period when the licensed premises are closed for business purposes, all firearms and ammunition, which are on the premises, shall be locked in a strong room or safe for safe custody of firearms.

11. During any period when the licensed premises are open for business or any other purpose, firearms and ammunition which are not displayed shall be locked in a strong room or safe for safe custody of firearms.

12. The licensee may display firearms on which he has performed work in accordance with the provisions of arms rules, in order to promote his craftsmanship, however displayed firearms must be unloaded and in the case of handguns, locked in a display counter or cabinet that prevents the unauthorized access to the handguns displayed therein.

13. The licensee may only deactivate a firearm with the prior consent of the licensing authority.

14. The licensee is allowed to employ a person as an apprentice if such person is registered for such an apprenticeship under the labour laws applicable in India and must exercise personal control or supervision over such apprentice who performs any work on a firearm.

15. The licensee shall ensure the establishment of the approved safe or strong-room before commencement of business under the license granted to him.

Form IX-A

License to gunsmiths to repair (minor) or test (other than proof-test) or keeping for repair (minor) or test (other than proof test) of firearms

UIN _____ License Number _____

Name, description and business address of licensee

Description of firearms allowed to be repaired

(minor) or to test (other than proof test) or keeping for repair

(minor) or test (other than proof test)

Description of ammunition allowed to be possessed

for testing the firearms repaired (minor)

Date on which the license expires

Category

Quantity (Number)

Category

Quantity (Number or Weight in Kgs.)

1

2

3

4

5

6

The of 20 (SEAL)

(Signature)

Licensing Authority _____ or

Specially empowered officer to sign the license under rule

(5)

Designation _____

Place _____

Form of

Renewal of License

Date and year of renewal

Date on which the renewed license expires

Signature and designation of the renewing

authority

SEAL

1

2

3

4

Conditions

1. (a) This license is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 2016.

(b)

This license is valid only so long as the licensee carries on the trade or business in the premises shown in column 1 thereof, and will ipso facto lapse if the business is discontinued for a continuous period exceeding six months.

(c)

The licensee shall not enter into any partnership connected with this license without the approval of the licensing authority.

2. The licensee shall maintain registers of all arms and ammunition repaired (minor) showing the particulars in such forms as prescribed under rule 82 of these rules.

3. The licensee shall make available for inspection his registers on the demand of any magistrate or any police officer of a rank not below that of Inspector, or, if the Central Government so directs, of Sub-Inspector.

4. The licensee shall affix on a conspicuous part of his place of business, factory or shop a signboard on which shall be painted in large letters in English / Hindi and in the language of the district his name and the words "Licensed to repair (minor) arms and ammunition".

5. The licensee shall not shorten the barrel of any firearm to less than 20 inches in any case.

6. During any period when the licensed premises are closed for business purposes, all firearms and ammunition, which are on the premises, shall be locked in a strong room or safe for safe custody of firearms.

7. During any period when the licensed premises are open for business or any other purpose, firearms and ammunition which are not displayed shall be locked in a strong room or safe for safe custody of firearms.

8. The licensee may display firearms on which he has performed work in accordance with the provisions of arms rules, in order to promote his craftsmanship, however displayed firearms must be unloaded and in the case of handguns, locked in a display counter or cabinet that prevents the unauthorized access to the handguns displayed therein.

9. The licensee is allowed to employ a person as an apprentice if such person is registered for such an apprenticeship under the labour laws applicable in India and must exercise personal control or supervision over such apprentice who performs any work on a firearm.

10. The licensee shall ensure the establishment of the approved safe or strong-room before commencement of business under the license granted to him.

Form X

[Composite Import Licence For Arms and Ammunition]

[Substituted by Notification No. G.S.R. 1079(E), dated 1.11.2018 (w.e.f. 15.7.2016).]

Import

In Transit

Import for Re-Export

Transport for Re-Export

Category of Item as per Schedule I - (please specify)

License No.

UIN

Port of Import

Port of Export

1.

Name, description and address of the licensee

2.

Name, description and address of agent (if any) authorized for the purpose of this consignment

3.

Number of packages

4.

ARMS

Description

Quantity

5.

AMMUNITION

Description

Weight (in Kgs) or Number

6.

Purpose for which required

7.

In case of Import, place where articles ported imported stored or deposited

8.

Place of despatch and route

9.

Place of destination

10.

Name, description and address of the consignee

11.

Period of validity of License

The of 20 (SEAL)

(Signature)

Licensing Authority _____

Designation _____

Place _____

Conditions

1. The license is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 2016.
2. An Account of the contents of each package shall be legibly written thereon and where the articles are conveyed by rail, each package shall be marked with the word "Arms" or "Ammunition", as the case may be, so as to be readily recognizable by the railway authorities.
3. The articles shall not be conveyed by any route other than that specified in column 8 and bulk shall not be broken nor shall the consignment be stopped, before the articles reach the place of destination.
4. In case of Import, the articles shall be either -
 - (a) deposited subject to the general or special sanction of the Central Government under section 34 of the Act, in a warehouse licensed under section 58 of the Customs Act, 1962 (52 of 1962), or
 - (b) forthwith dispatched to their place of destination.
5. The articles shall be delivered only to a person lawfully entitled to receive them.

[Form X-A]

[Inserted by Notification No. G.S.R. 1079(E), dated 1.11.2018 (w.e.f. 15.7.2016).]

Composite Export Licence for Arms and Ammunition

Export

Export for Re-Import

Transport for Re-Export

(1)

(2)

(3)

1.

Licence No. UIN

2.

Name, description and address of the

Licencee/Exporter

3.

Name, description and address of agent (if any)

authorised for the purpose of export/purchase order

4.

Arms

Description

ITC(HS) Code

Quantity

5.

Ammunition

Description

ITC(HS) Code

Quantity

6.

Purchase Order No.

7.

Purpose for which required

8.

Place of Destination and Route

9.

Period of validity of Licence

10.

FOB value

11.

Name of foreign buyer

12.

Name of Importer

13.

Port of Export

Port of Import

14.

Ultimate destination of export

15.

Name of End User

Explanation. - This Form shall apply to firearms and their following parts, namely: -

(j)

Barrel;

(k)

Cylinder;

(l)

Bolt;

(m)

Breech Block;

(n)

Slide;

(o)

Firing Pin;

(p)

Frame or Receiver;

(q)

Extractor;

(r)

Hammer/Striker.

Conditions

1. The licence is granted as per the extant provisions under the Arms Act, 1959 and the Arms Rules, 2016 subject to provisions of the Foreign Trade (Development and Regulation) Act, 1992.

2. An Account of the contents of each package shall be legibly written thereon and each package shall be marked with the word "Arms" or "Ammunition" or "Parts and Components" as the case may be, so as to be readily recognisable.

3. The articles shall not be conveyed by any route other than that specified in the licence and bulk shall not be broken nor shall the consignment be stopped, before the articles reach the place of destination.

4. The articles shall be delivered only to a person lawfully entitled to receive them.

5. That the item(s) exported should not be used for purposes other than those declared in End User Certificate.

6. The licence shall be non-transferrable and issued in three original copies.

7. (a) The first copy of the export licence shall be returned to the issuing licensing authority within ten days of the date of export and which date must be duly certified by the Indian customs authorities;

(b)

The second copy shall be returned to the issuing licensing authority within a period of ninety days after the export date stated on the export licence, which must bear the signature, an official date and name stamp of the end user, to serve as a delivery verification certificate:

Provided that failure to comply with conditions specified in clause (a) and clause (b) shall result in suspension of all pending and future export transactions of the exporter till the time the said conditions are duly complied with.

8. On completion of the export transaction, the exporter shall retain one original copy of the export licence, bill of lading or airway bill, packing lists and export invoice pertaining to the firearms or ammunition so exported and shall produce the said documents whenever required to do so by the issuing licensing authority.
9. That the item(s) should not be subsequently transferred (re-exported) without the prior authorisation of the original exporting Government.
10. That the item(s) should not be diverted, sold or transferred to any third party whatsoever except as indicated in End User Certificate.
11. If required to provide verification or certification that possession of the item(s) has occurred.
12. The item (s) should not be used for any purpose that relates to development of weapons of mass destruction and their delivery systems.
13. This Licence is further subject to compliance of Export and Import Policy of the Government of India, as amended from time to time.
14. This Licence is valid for a maximum period of two years or completion of the order, whichever is earlier and the validity of Licence may be extended from time to time, based on requirements and merits, by the Competent Authority.
15. The Firm is directed to submit a copy of the Licence duly endorsed (quantity of item exported) by concerned customs authority after export of each consignment.
16. This Licence is being issued for port of loading/port of shipment indicated in the application. If there is any change subsequently, endorsement from the Licensing Authority shall be required.
17. Upon execution of the export order, foreign buyer (as mentioned in the licence) shall intimate to the undersigned and to the Embassy or Mission abroad about the execution, without fail.

The of 20.....(Seal)

(Signature)

Licensing Authority _____ Designation _____

Place _____

Form XI

Journey License

(to be issued if firearms are already endorsed on the license)

UIN _____ License No. _____

1.

Name of the licensee

2.

Residential address of the licensee as endorsed on his arms license

3.

Arms and ammunition that the licensee is entitled to carry

4.

Brief description of each firearm with details, e.g. manufacturer's serial number and other identification marks

5.

Quantity and description of each kind of ammunition

6.

Place of departure

7.

Route of the journey

8.

Place of destination

9.

Period which the journey is likely to occupy

10.

Period for which the journey license is valid

The of 20

(SEAL)

(Signature)

Licensing Authority _____

Designation _____

Place _____

Conditions

1. This license is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 2016.

2. The licensee shall ?

(a)

on demand by any authorized officer, produce the weapons covered by this license;

(b)

forthwith give information at the nearest police station of the loss or theft of any arms or ammunition covered by the license; and

(c)

shall follow the route of journey as mentioned in column 7 of the license.

3. It covers only the person named in column 1 and the arms or ammunition mentioned in column 3.

Form XII

Transport License

(to be issued when firearms are not endorsed on the license or for transport by manufacturers or dealers)

UIN _____ License No. _____

1.

Name, description and residence address of licensee and agent

(if any) authorized for the purpose of this consignment

2.

Licensee's place of business (if any)

3.

Arms and ammunition to be transported

Number of packages

Brief description of arms and number

Brief description of ammunition and weight in kilograms or number

4.

Place of dispatch

5.

Route of transport

6.

Mode of transport

7.

Place of destination

8.

Name, description and address of consignee

9.

Period for which the License is valid[not exceeding three months as provided under rule 97(5)]

The of 20

(SEAL)

(Signature)

Licensing Authority _____

Designation _____

Place _____

Endorsement 1

Date on which certificate of 'No Objection' (NOC) is obtained

vide Rule 98 from

Authority

Place

Date

State Government

District Magistrate

Endorsement 2

Date on which a copy of Transport License is sent vide Rule 97(1) to

Authority

Place

Date

State Government

District Magistrate

Conditions

1. This license is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 2016.

2. The licensee shall-

(a)

on demand by any authorized officer, produce the weapons covered by this license; and

(b)

forthwith give information at the nearest police station of the loss or theft of any arms or ammunition covered by the license.

3. The articles shall not be conveyed by any route other than that specified in column 5; and bulk shall not be broken, nor shall the consignment be stopped before the articles reach the place of destination:

Provided that where the consignment is ready but could not be despatched in one bulk, for reasons beyond the control of the licensee, the articles may be sent in lots provided proper intimation is sent to the licensing authority who may extend the time-limit, if necessary.

4. An account of the contents of each package shall be legibly written thereon; and where the articles are conveyed by rail, each package shall be marked with the word "Arms" or "Ammunition", as the case may be, so as to be readily recognizable by the railway authorities.

5. The articles shall be delivered only to a person lawfully entitled to receive them as mentioned in column 8.

6. Where a license granted for industrial purposes has been made valid for a period longer than three months, necessary entries shall promptly be made in the stock-registers maintained by the manufacturer or the dealer for the purpose at the places, (viz., godown and factory).

Form XIII

Transport License for despatch of gun barrels or completed firearms for proof test

UIN _____ License No. _____

1.

Name of the licensee manufacturer

2.

Address of the licensee manufacturer

3.

Name and designation of the responsible person

4.

Manufacturer's license number in Form VII

5.

Validity Period of license in Form VII

6.

Number of firearms allowed to be manufactured per annum

7.

Total number of gun barrels/ completed firearms which have been despatched already to proof house for proof test for the first time

8.

Total quantity of gun-barrels/ completed firearms to be allowed to be despatched

Sr. No.

Type

Manufactured during the current year

Rectified

Total

(1)

(2)

(3)

(4)

a)

b)

c)

Total

9.

Total quantity of gun-barrels/ manufactured firearms to be despatched after rectification (Column 3 of item 8)

Sr. No.

Year of manufacture

Number and date of communication of proof house advising rectification

Serial No. of gun-barrels or completed firearms rectified

Total

(1)

(2)

(3)

(4)

1. Certified that on the date of issue of this license, the licensee has not been restrained from operation of any of the authorizations in his Form VII license, by the licensing authority or the renewing authority or the district Magistrate.

2. The licensee is hereby permitted to transport gun barrels/completed firearms vide item 8 to the establishment indicated in Col. 7 of his Form VII license. He is also permitted to bring back from that establishment the gun barrels/ completed firearms covered by this license after proof test in one or more installments.

(Seal and Signature)

(District Magistrate)

Place :

Date :

Note. - The total of figures in item 7 and Col. 2 in item 8 should not exceed the licensed capacity vide item 6.

Form XIV

Transporter's license for transport of arms and ammunition

UIN _____ License No. _____

Name, description and business address of licensee

Description of arms and ammunition allowed to be transported

Date on which the license expires

Category of arms and ammunition

Maximum quantity during a calendar year

Maximum quantity in a single consignment

Maximum quantity in multiple consignments under a single shipment

(1)

(2)

(3)

(4)

(5)

(6)

The of 20 (SEAL)

(Signature)

Licensing Authority _____

or

Specially empowered officer to sign the license under rule

(5)

Designation _____

Place _____

Form of

Renewal of License

Date and year of renewal

Date on which the renewed license expires

Signature and designation of the renewing authority

SEAL

1

2

3

4

Conditions

1. (a) This license is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 2016.

(b)

This license is valid only so long as the licensee carries on the trade or business in the premises shown in column (1) thereof, and will ipso facto lapse if the business is discontinued for a continuous period exceeding six months.

(c)

The licensee shall not enter into any partnership connected with this license without the approval of the licensing authority.

2. The licensee shall maintain registers of all arms and ammunition received for transportation, of all stock in hand, and of all transportations made showing the particulars in such forms as may be prescribed for the purpose by the Central Government.

3. The licensee shall make available for inspection his stock and his registers on the demand of any magistrate or any police officer of a rank not below that of Inspector, or, if the Central Government so directs, of Sub-Inspector.

4. The licensee shall affix on a conspicuous part of his place of business, factory or shop a signboard on which shall be painted in large letters in English/Hindi and in the language of the district his name and the words "Licensed to transport arms or ammunition".

5. The licensee shall not transport arms and/or ammunition of any category or description other than those allowed to be transported under column 2.

6. The licensee shall not keep arms or ammunition elsewhere than at the place of business specified in column (1) or at the branch offices and representative offices of the transporter declared at the time of making application for a license in Form XIV.

7. He shall not transport any quantity of arms and ammunition without his first obtaining a copy of the transport license in Form XII from the consignor and ascertaining the purpose for such transportation on the basis of a written declaration

and shall not handover the consignment to any consignee without first obtaining copy of arms license from him and proof of his bonafides to receive the consignment under the Act and these rules.

8. The transporter shall submit the following documents to the licensing authority -

(a)

proof that a proper functioning two way communication system between the vehicle transporting the arms or ammunition and the applicant is in operation;

(b)

a detailed description of the safety measures fitted to the vehicle that shall be used; and

(c)

a detailed description of security precautions that shall be in place during transportation.

9. The transporter using road transport shall provide to the person in charge of transportation, a typed list or computer printout on his letterhead of persons who will be directly involved in the transportation of the consignment of the arms and ammunition, containing their names and identity numbers and such list must be attached to a certified copy of the license in Form XIV.

10. An arms or ammunition transporter holding a license in Form XIV shall during the time of such transport, be in possession of -

a consignment note on which the following particulars must appear:

(i)

(a)

the full name, address, license and UIN of the transporter;

(b)

the names, addresses and UINs of the consignor and the consignee in respect of arms and ammunition to be transported;

(c)

the quantity, type of action, manufacturer's serial number, make and caliber of the firearms and quantity, make and caliber of ammunition; and

(d)

the physical address where from the firearms and ammunition were collected and the physical address of their final destination;

(ii)

the license in Form XII authorizing the transportation of such firearms and ammunition;

(iii)

any other document which may under these rules or any other law be required.

11. Wherein the licensee holding a license in Form XIV is obliged to store the firearms or ammunition for any period of time after receipt and before delivery, such storage shall comply with the requirements for safe custody and storage as specified in rule 10.

12. The licensee shall ensure direct supervision by him or through his personnel of an en-route consignment of arms or ammunition which shall be accompanied by at least two able bodied guards.

13. The firearm transporter shall obtain from the consignee a written confirmation of the taking of possession of the consignment of arms and ammunition and the confirmation shall contain the following information -

(i)

the name and surname of the recipient;

(ii)

the recipient's address;

(iii)

the date and time of delivery;

(iv)

the description of the arms and ammunition received; and

(v)

the signature of the recipient which serves as confirmation of the correct deliverance.

A copy of the written confirmation obtained above shall be delivered by the transporter to the licensing authority issuing

transport license in Form XII.

14. The licensee holding a license in Form XIV shall immediately notify in writing the police and licensing authority in the event of non-delivery, loss or theft of the arms or ammunition.

15. The vehicle carrying arms and ammunition shall not stop for a longer period than is reasonably required and shall avoid stops at places where public safety is likely to be in danger. Further the vehicle carrying arms and ammunition shall be adequately secured and provided with fire extinguishers at the expense of the licensee holding a license in Form XIV.

Form XV

License for the import into, possession for the duration of the journey in, transport across, and export out of India of arms or ammunition carried by Nepal Government troops or police, from one place in Nepal to another place in Nepal through Indian Territory

UIN _____ License Number _____

Description of licensee/ agent(s)

Number of retainers

Arms and ammunition that licensee is entitled to
import/ possess/ transport/ export

Place of entry in India

District (s) through which the arms or ammunition
shall pass

Place of departure from India

Period for which the license is valid

Brief description of the arms

Quantity and description of each kind of
ammunition

1

2

3

4

5

6

7

8

From the

To the

The of 20

Date on which copy is sent to
the District Magistrate of

The of 20

..... District

[vide Rule 111(2)]

(SEAL)

(Signature)

Ambassador of India in

Nepal

Conditions

1. This license is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 2016.

2. It covers only the person named, and the arms or ammunition described therein.

3. The licensee shall not, while in India, sell or transfer any arms or ammunition covered by this license.

Form XVI

License for firearm free zone

UIN

License Number

Name, description and business address of licensee

Demarcated Area declared as Firearm Free Zone as per the site plan enclosed (marked in red)

Date on which the license expires

(1)

(2)

(3)

(4)

(5)

The of the

SEAL

(Signature)

Licensing Authority

Designation

Place

Form of

Renewal of License

Date and year of renewal

Date on which the renewed license expires

Signature and designation of the renewing authority

SEAL

1

2

3

4

Conditions

1. This license is granted subject to all the provisions of the Arms Act, 1959 and of the Arms Rules, 2016.

2. It covers only the name of the owner of the premises declared as firearm free zone for the demarcated area as mentioned in column (4) of the license.

3. The licensee shall post notices at all the main entrances or at strategic places on the premises mentioned in column (4) both in English and local language declaring the premises as firearm free zone.

4. The notices and signs shall be clearly visible and unobscured at all times.

5. Any change in the information furnished at the time of filing of application for firearm free zone shall be intimated to the licensing authority within a period of seven working days.

III

Part II

Application Forms

Form A-1

(for individuals)

{|

Passport size photograph of the applicant

|-

|

| Form of application for an arms license

|-

|

| in Form II, III and IV

|-

|
| (See rule 11)
|}
Identity of the Applicant
1
Name
2
Parent/ Spouse Name
3
Sex
Male
Female
4
Place of birth (Nativity)
Country
State
District
5
Date of birth in Christian era
must be 21 years of age on the date of
application
in figures
DD/MM/YYYY
in words
6
Permanent Account No. (PAN)
7
Aadhar Card Number
8
Present address
District
State
(a)
Since when residing at the present address
DD/MM/YYYY
(b)
Telephone Number
Office
Residence
(c)
Mobile Number
(d)
*Nearest Police Station
9
Permanent Address
District
State
(a)
*Nearest Police Station
10
Occupation

*Note ?Nearest Police Station means the police station under whose jurisdiction the place given in the address comes

11

Office/ business address

12

Additional particulars if the license is required for crop protection under rule 35

Location (village)

Area of land under cultivation

Other Particulars of the Applicant

13

Whether the applicant has been ?

(a)

convicted

Y

N

If yes, details thereof ?

Offence

Sentence

Date of sentence

DD/MM/YYYY

(b)

ordered to execute a bond under Chapter VIII of Code of Criminal Procedure, 1973 (2 of 1974) for keeping the peace or for good behavior

Y

N

If yes, details thereof ?

Date

DD/MM/YYYY

Period for which bound

(c)

prohibited under the Arms Act, 1959, or any other law from having the arms or ammunition

Y

N

If yes, details thereof ?

Date

DD/MM/YYYY

Period for which prohibited

14

Whether -

(a)

the applicant applied for a license before - if so, when, to whom and with what result

Y

N

If yes, details thereof ?

Date applied for

DD/MM/YYYY

Name of the licensing authority

Result (pl. specify)

Approved/ Rejected/ Pending

(b)

the applicant's license was ever suspended or canceled/
revoked -

Y

N

If yes, details thereof ?

Name of the

licensing authority

Reasons

(c)

any other member of the applicant's family is in possession of
any arms license, if so, particulars thereof

Y

N

If yes, details thereof ?

Name

License No.

Weapons endorsed

1.

2.

3.

(d)

the applicant has a safe place to keep the arms and ammunition

Y

N

If yes, details thereof ?

(e)

the applicant has undergone training as specified under rule
10 (whenever made applicable by the Central Government)

Y

N

If yes, details thereof ?

Particulars of license being applied for

15

Need for license (see note 1 below)

16(a)

Description of arms for which
license is being sought

(Tick any one of the options)

Category - restricted/ permissible

Rifle

Shot Gun (BL/ML)

Hand Gun (Revolver/ Pistol)

Others _____

(b)

Description of ammunition or ingredients of ammunition for
which license is being sought

17

Area within which applicant wishes
to carry arms

(Tick any one of the options)

District

Throughout India

18

Claims for special consideration

for obtaining the license, if any

(attach documentary evidence)

Additional Information

19

Details for an application for license in Form IV

(a)

Place or area for which the license is sought

(b)

Specification of the wild beasts which are permitted to be
destroyed as per the permit granted under the Wild life

(Protection) Act, 1972 (

53 of 1972

) to the applicant

Declaration:

I hereby declare that the above particulars given in the application are true, complete and correct to the best of my knowledge and belief. I understand that in the event of any information being found false or incorrect at any stage, I am liable to be proceeded against and action taken under the relevant provisions of the Arms Act, 1959, the Arms Rules, 2016, and other central enactments or the law for the time being in force.

Place _____

Date _____

Signature/ Thumb - impression of applicant

Notes:

1. Against column 15, the applicant should clearly mention the purpose(s) for which the license is required - such as use, acquisition, possession, carrying, sport, display, destruction of wild animals which do injury to human beings or cattle and damage to crops etc. as per the category of license applied (Form II, III or IV).

2. The following documents under rule 11 are to be submitted along with the application -

(a)

four passport size copies of the latest photograph of the applicant (in white background);

(b)

proof of date of birth;

(c)

identification proof - Aadhar Card or in case the applicant does not have Aadhar Card, a written declaration to be submitted in the form of an Affidavit along with an alternative identification proof which may include ? Passport; Voter Identification Card, PAN Card or Identity card issued to the employees.

(d)

residence proof in case the applicant does not possess Aadhar Card or Passport - (Election Card or Electricity Bill or Landline Telephone Bill or Rent Deed or Lease Deed or Property documents or any other document to the satisfaction of the licensing authority);

(e)

firearm training certificate in Form S-1 (whenever made applicable by the Central Government by passing a general or special order);

(f)

safe use and storage of firearms undertaking in Form S-2 ;

(g)

self-attested copies of the educational and professional qualification certificates from professional category applicants as specified in clause (a) of sub-rule (3) of rule 12;

(h)

medical certificates about mental health and physical fitness in Form S-3;

(i)

in case of protection for destruction of wild animals which do injury to human beings or cattle and damage to crops, permit from the authority empowered under the Wild Life (Protection) Act, 1972 (

53 of 1972

);

3. Strike off the entries not relevant.

Warning:

Suppression of any factual information or furnishing of any false or wrong information in the application form in violation of arms rules will render the applicant liable for punishment under Section 30 of the Arms Act, 1959.

Form A-2

(for companies)

Form of application for an arms license in Form II, III and V

(See rule 11)

Identity of the Applicant

1.

Name of the applicant company

2.

Permanent Account Number (P.A.N.)

3.

Corporate Identification Number (C.I.N.)

2.

Name of the applicant branch or

representative office of the company

(if the application is being filed by such branch or

representative office)

3.

Constitution of the applicant

company

(see Note 1 below)

4.

Designation of the 'responsible

person' who will sign on behalf of the applicant company

(duly authorized in writing or by way of a board resolution

wherein required)

Name of the 'responsible person' signing the application

5.

Registered Office Address of the company

Telephone No. (Office)

Mobile Number of the responsible person

E-mail

*Nearest Police Station

6.

Address of the branch or representative office by which the

application is being filed

Telephone (office/ residence)

Mobile No.

E-mail

*Nearest Police Station

*Note - Nearest Police Station means the police station under whose jurisdiction the place given in the address comes

Other Particulars of the Applicant

7.

Whether the applicant or its office bearers or directors has/
have ever been ?

(a)

convicted

(attach details in a separate sheet, if the answer is in
affirmative)

Y

N

If yes, details thereof ?

Offence

Sentence

Date of sentence

DD/MM/YYYY

(b)

prohibited under the Arms Act, 1959, or any other law from
having the arms or ammunition

Y

N

If yes, details thereof ?

Date

DD/MM/YYYY

Period for which prohibited

8.

Whether -

(a)

the applicant applied for a license before - if so, when, to
whom and with what result

Y

N

If yes, details thereof ?

Date applied for

DD/MM/YYYY

Name of the licensing authority

Result (pl. specify)

Approved/ Rejected/ Pending

(b)

the applicant's license was ever suspended or canceled or
revoked -

Y

N

If yes, details thereof ?

Name of the

licensing authority

Reasons

(c)

any other arms license already held by the company or where
the applicant is a branch or representative office of such

company, held by such branch or representative office

Y

N

If yes, details thereof ?

Name

License No.

Weapons endorsed

1.

2.

3.

(d)

the applicant has a safe place to keep the arms and ammunition

Y

N

If yes, details thereof ?

(e)

the retainer or retainers to be employed by the applicant have

undergone training as specified in rule 10 (whenever made

applicable by the Central Government)

Particulars of license being applied for

9.

Need for license

(see Note 2 below)

10. (a)

Description of arms for which

license is being sought

(Tick any one of the options)

Category ? Restricted/

Permissible

Rifle

Shot Gun (BL/ ML)

Hand Gun (Revolver/ Pistol)

Others

(b)

Description of ammunition or ingredients of ammunition for

which license is being sought

11.

Number of firearms which applicant wishes to apply for

12.

Area within which applicant wishes

to carry arms

(Tick any one of the options)

District

State

Throughout India

13.

Claims for special consideration

for obtaining the license, if any

(attach documentary evidence)

Declaration:

I, _____, the responsible person, _____ (designation as mentioned in column 3)

of _____ (name of the company), hereby declare that the above particulars given in the application are true, complete and correct to the best of my knowledge and belief. I understand that in the event of any information being found false or incorrect at any stage, I, personally, as well as the company are liable to be proceeded against and action taken under the relevant provisions of the Arms Act, 1959, the Arms Rules, 2016, and other central enactments or the law for the time being in force.

Signature with stamp of the responsible person signing on behalf of the company

Notes:

1. Constitution of the company be mentioned -

Private Limited Company; Limited Company; Government Undertaking; Society: Co-operative Society; Institute; University; Partnership Firm; Association of Persons (AOPs) or any other body under any special act or otherwise etc.

2. Against column 9, the applicant should clearly mention the purpose(s) for which the license is required - such as use, acquisition, possession, carrying, protection, display, target practice or shooting, etc.

3. The applicant is required to submit the following documents along with the application -

(a)

written undertaking on the letter head of the company applicant duly signed by the responsible person appointed vide clause (44) of rule 2 for filing an application under the arms rules;

(b)

original copy of the board resolution passed or an authority letter confirming the appointment of responsible person referred to in clause (a) above;

(c)

certified copies of the founding documents of the Company including Memorandum and Articles of Association;

(d)

safe use and storage of firearms undertaking in Form S-2 as specified in rule 10;

Warning:

Suppression of any factual information or furnishing of any false or wrong information in the application form in violation of arms rules will render the applicant company and the responsible person liable for punishment under Section 30 of the Arms Act, 1959.

{|

Recent passportsize photograph of the licensee

| -

|

|

| -

|

| Form A-3

| -

|

| (for individuals)

| -

|

|

|}

Form of application for renewal of arms license(s) granted in Form II, III, IV

(See rule 24)

Identity of the Licensee

1.

UIN (16 digit)

2.

Name

3.

Parent/ Spouse Name

4.

Date of birth in Christian era

(a)

in figures

DD/MM/YYYY

(b)

in words

5.

Present Address

(a)

Telephone (Office/ Residence)

(b)

Mobile No.

(c)

E-mail

(d)

Nearest Police Station

6.

Occupation

7.

Office/ Business Address

License Particulars and Weapon Endorsements

8.

License Number

9.

Date of expiry

DD/MM/YYYY

10.

Area Validity

11.

Weapons Endorsed

Weapon 1

Weapon 2

Weapon 3

(a)

Type (Rifle/ Shotgun/ Handgun (Rev/ Pistol)

(b)

Bore/Caliber

(c)

Weapon Number

12.

Ammunition allowed

Cartridges Gun Powder/ Percussion Caps

Other Particulars of the Applicant

13.

License Particulars and Weapon Endorsements

(a)

convicted

Y

N

If yes, details thereof ?

Offence

Sentence

Date of sentence

DD/MM/YYYY

(b)

ordered to execute a bond under Chapter VIII of Code of Criminal Procedure, 1973 (2 of 1974) for keeping the peace or for good behavior

Y

N

If yes, details thereof ?

Date

DD/MM/YYYY

Period for which bound

(c)

prohibited under the Arms Act, 1959, or any other law from having the arms or ammunition

Y

N

If yes, details thereof ?

Date

DD/MM/YYYY

Period for which prohibited

14.

Whether -

(a)

the applicant's license since last renewal or issuance of license was ever suspended or cancelled/ revoked

Y

N

If yes, details thereof ?

Name of the

licensing authority

Reasons

(b)

any other member of the applicant's family is in possession of any arms license, if so, particulars thereof

Y

N

If yes, details thereof ?

Name

License No.

Weapons endorsed

1.

2.

3.

(c)

the applicant has a safe place to keep the arms and ammunition

Y

N

If yes, details thereof ?

(d)

the applicant has undergone

prescribed training as specified under rule 10

(whenever made applicable by the Central Government)

Y

N

If yes, details thereof ?

Declaration:

I hereby declare that the above particulars given in the application are true, complete and correct to the best of my knowledge and belief. I understand that in the event of any information being found false or incorrect at any stage, I am liable to be proceeded against and action taken under the relevant provisions of the Arms Act, 1959, the Arms Rules, 2016, and other central enactments or the law for the time being in force.

Signature/ Thumb-impression of applicant

Place

Date

Note:- The exemptee sports persons shall attach a list of the arms and ammunition held by them in a separate sheet against columns 11 and 12.

Warning:-

Suppression of any factual information or furnishing of any false or wrong information in the application form in violation of arms rules will render the applicant liable for punishment under Section 30 of the Arms Act, 1959.

Form A-4

(for companies)

Form of application for renewal of license(s) granted in Form II, III and V

(See rule 24)

Identity of the Licensee

1.

UIN (16 digit)

2.

Name of the licensee company (see Note 1)

3.

Constitution of the licensee company

P.A.N./ C.I.N.

4.

Name of the responsible person

5.

Address of the licensee company

Telephone No. (office)

Mobile Number of the responsible person

E-mail

*Nearest Police Station

License particulars and weapon endorsements

6.

License Number

7.

Date of expiry

DD/MM/YYYY

8.

Area Validity

9.

Total Number of Weapons Endorsed

10.

Details of Weapons

1

2

3

(a)

Type

(Rifle/ Shot gun/ Handgun)

(b)

Bore

(c)

Weapon Number

Separate list be attached for more than three weapons

11.

Ammunition allowed

Cartridges

Gun Powder/ Percussion Caps

Other Particulars of the Applicant

12.

Whether the applicant or its office bearers or directors or responsible person since the issuance/ last renewal have ever been -

(a)

convicted

(attach details in a separate sheet, if the answer is in affirmative)

Y

N

If yes, details thereof ?

Offence

Sentence

Date of sentence DD/MM/YYYY

(b)

prohibited under the Arms Act, 1959, or any other law from having the arms or ammunition

Y

N

If yes, details thereof ?

Date DD/MM/YYYY

Period for which prohibited

13.

Whether -

(a)

the applicant's license since the issuance or last renewal was ever suspended or cancelled or revoked

Y

N

If yes, details thereof ?

Name of the

licensing authority

Reasons

(b)

the licensee has a safe place to keep the arms and ammunition

Y

N

If yes, details thereof ?

(c)

the retainers appointed by the

company have undergone training requirements as specified in rule

10

(whenever made applicable by the Central Government)

Y

N

If yes, details thereof ?

Declaration:

I, _____, the responsible person (named in column 4) of _____ (company name), hereby declare that the above particulars given in the application are true, complete and correct to the best of my knowledge and belief. I understand that in the event of any information being found false or incorrect at any stage, I personally as well as the company are liable to be proceeded against and action taken under the relevant provisions of the Arms Act, 1959, the Arms Rules, 2016, and other central enactments or the law for the time being in force.

Signature with stamp of the responsible person

signing on behalf of the company

Note:

1. Constitution of the company be mentioned - Private Limited Company; Limited Company; Government undertaking; Society; Co-operative Society; Institute; University; Partnership Firm; Association of Persons (AOPs) or any other body under any special act or otherwise etc.

Warning:

Suppression of any factual information or furnishing of any false or wrong information in the Application Form in violation of arms rules will render the applicant company and the responsible person liable for punishment under Section 30 of the Arms Act, 1959.

Form A-5

(for individuals/ teams or groups)

Form of application for an arms license in Form VI for temporary import and export of arms and ammunition

Part A

(See rule 44, 45)

Application by

Individuals ?

bringing firearms of category III of Schedule

Into India

1.

Name

2.

Parent/ Spouse Name

3.

Nationality

4.

Passport Number

5.

VISA particulars for India

6.

Date of birth in Christian era

DD/MM/YYYY

7.
Original arms license number of the native country with
validity

DD/MM/YYYY

8.
Present Address(as per Passport)

Telephone (office/ residence)

Mobile No.

E-mail

9.
Purpose of bringing firearm into India

10.
Period of stay in India for which the license is sought

11.
Estimated date of arrival in India and port of entry

DD/MM/YYYY

12.
Estimated date of departure from India and port of exit

DD/MM/YYYY

13.
Firearms for which the license is being sought

Type

Bore

Number

14.
Details of sponsors/ organisers in India for the sporting
event/ tournament

Additional Information in case of sports
teams/ groups

1.
Name of the Manager or Group leader

2.
Parent/ Spouse Name

3.
Nationality

4.
Passport Number

5.
VISA particulars for India

6.
Place of birth

7.
Date of birth in Christian era

DD/MM/YYYY

8.
Present Address(as per Passport)

Telephone (office/ residence)

Mobile No.

E-mail

9.
Number of team members

10.

Event/ Tournament Details

Venue

Date

DD/MM/YYYY

11.

Period for which the license is sought

12.

Organisers/ sponsors in India

Declaration:

I hereby declare that the above particulars given in the application are true, complete and correct to the best of my knowledge and belief. I understand that in the event of any information being found false or incorrect at any stage, I am liable to be proceeded against and action taken under the relevant provisions of the Arms Act, 1959, the Arms Rules, 2016 and other central enactments or the law for the time being in force in India.

Signature of applicant/ Group or Team Leader

Place

Date

Notes:-

1. The application may be filed by the Group/ Team leader of sporting team visiting India giving details of individual team members as specified in Part A along with the additional details given above.

2. The application may be made in advance to Indian Consulates/ High Commissions for obtaining a license on the basis of an approval letter from the Indian organizers/ sponsors duly authenticated by Ministry of Sports and Youth Affairs for sporting events/ tournaments to be held in India.

Part B

(See rule 43)

Applicable for tourists visiting

India ?

Acquisition and possession (but not use) during the course of his stay in/carrying/ export out of India of category III, IV, V

(Made in India weapons only)

1.

Name

2.

Parent/Spouse Name

3.

Nationality

4.

Passport Number

5.

VISA details

6.

Date of birth in Christian era

DD/MM/YYYY

7.

Present Address(as per Passport)

Telephone (office/residence)

Mobile No.

E-mail

8.

Date of arrival in India and port of entry

9.

Estimated date of departure from India and port of exit

10.

Weapons for which the license is being sought

Category (III, IV or V)

Type

Bore

11.

Details of seller/ transferee from whom these weapons are to

be procured

Name

Address

UIN

License Number

Notes -

1. Weapon(s) on acquisition are to be produced before the licensing authority for necessary endorsement on the license along with the original invoice/ bill/ transfer letter.

2. Every application for the grant of a license for export of category IV arms shall be accompanied by a certificate from the Director-General of Archaeology of the Central Government to the effect that the arms intended to be exported do not fall within the definition of "antiquity" under the Antiquities and Art Treasures Act, 1972 (

52 of 1972

).

Declaration:

I hereby declare that the above particulars given in the application are true, complete and correct to the best of my knowledge and belief. I understand that in the event of any information being found false or incorrect at any stage, I am liable to be proceeded against and action taken under the relevant provisions of the Arms Act, 1959, the Arms Rules, 2016 and other central enactments or the law for the time being in force in India.

Signature of applicant

Place

Date

Form A - 6

(for companies)

Form of application for an arms license in Form VII for manufacture and proof test

(See rule 51)

1.

Name of the applicant

2.

Constitution of the applicant company

3.

Company Identification No. (CIN)

4.

Registered Office Address

Telephone

Mobile No.

E-mail

5.

Name of the responsible person with designation

6.

Address of the factory for manufacture and proof testing

Telephone

Mobile No.

E-mail

7.

Description of firearms to be manufactured/proof tested

Category

Proposed annual capacity(number)

8.

Description of ammunition to be manufactured/ proof tested

Category

Proposed annual capacity(Number or weight in kilograms)

9.

In case the manufacturer does not want in-house proof-testing,
name of the range or other place for proof-testing being applied
for

Declaration:

I, _____, the responsible person (named in column 5) of _____ (company name), hereby declare that the above particulars given in the application are true, complete and correct to the best of my knowledge and belief. I understand that in the event of any information being found false or incorrect at any stage, I, personally as well as the company are liable to be proceeded against and action taken under the relevant provisions of the Arms Act, 1959, the Arms Rules, 2016, and other central enactments or the law for the time being in force.

Signature and stamp of the responsible officer

signing on behalf of the company

Warning:

Suppression of any factual information or furnishing of any false or wrong information in the Application Form in violation of arms rules will render the applicant liable for punishment under Section 30 of the Arms Act, 1959.

Documents to be enclosed as specified in rule 53-

A company applying for a license in Form VII under these rules will be required to provide -

(a)

original or certified copies of the company's founding documents including Memorandum and Articles of Association, Certification of Registration of the Company under the Companies Act, 2013, CIN (Corporate Identification Number), proof of address of its registered office, PAN card and certified lists of directors and shareholders as on the date of application;

(b)

copy of Director Identification Numbers (DIN) of all the directors;

(c)

identification proof (Passport or PAN card or Voter's identification card) along with 2 recent photographs of all the directors and the responsible person as defined in clause (44) of rule 2;

(d)

copy of Aadhar Card of all the directors and responsible person;

(e)

residence proof (Passport or Voter's identification card or electricity bill or landline telephone bill or rent deed or lease-deed or any other document to the satisfaction of the licensing authority of all the directors and responsible person);

(f)

copy of the latest balance sheet of the company and audited copy of Net-worth Certificate duly certified by a Chartered Accountant;

(g)

estimated project outlay and means of finance for funding the project duly certified by a Chartered Accountant;

(h)

certified copy of the board resolution for filing the application under the arms rules along with full particulars of the

responsible person authorized to sign the same;

(i)

details of foreign control and/or ownership in the applicant company, as applicable, duly certified by a Chartered Accountant.

Form A-7

Form of application for an arms license in

Form VII-A - for manufacture of arms of category V of Schedule I

Form VII-B - for manufacture of replicas of firearms

Form VII-C - for manufacture of air weapons

1.

Name of the applicant

2.

Nomenclature

Company/ Individual

3.

P.A.N./ C.I.N

4.

Business address

Telephone

Mobile No.

E-mail

5.

Name of the responsible person

6.

Address of the factory for manufacture of category V arms or
manufacture of replicas of firearms or air weapons

Telephone

Mobile No.

E-mail

7.

Description of arms/ replicas of firearms/ air weapons to be
manufactured

Category

Proposed Annual Capacity(Number)

Declaration:

I, _____, (Individual or the responsible person named in column 5) of _____ (company name), hereby declare that the above particulars given in the application are true, complete and correct to the best of my knowledge and belief. I understand that in the event of any information being found false or incorrect at any stage, I personally as well as the company are liable to be proceeded against and action taken under the relevant provisions of the Arms Act, 1959, the Arms Rules, 1962, and other central enactments or the law for the time being in force.

Signature of the Individual applicant

or

Signature and stamp of the responsible person

signing on behalf of the applicant company

Warning:

Suppression of any factual information or furnishing of any false or wrong information in the Application Form in violation of arms rules will render the applicant liable for punishment under Section 30 of the Arms Act, 1959.

Documents to be enclosed in case of fresh application

(a)

Firm and its Partners. - A firm and its partners applying for a license in Form VII A, Form VII B or Form VII-C under these

rules will be required to provide -

- (a) proof of the identity of the partners and of all the persons, the applicant firm proposes to employ in the business, including names, physical and recent photographs.
- (b) medical certificate;
- (c) information on the arms of category V of Schedule I or replicas of firearms to be manufactured or air weapons, including types and quantities;
- (d) proof that the firm meets the standards for protection of proprietary and classified information, as applicable;

(b) Company. - A company applying for a license in Form VII-A, Form VII-B or Form VII-C under these rules will be required to provide -

- (a) original or certified copies of the company's founding documents, articles of incorporation or other proof of licensed business;
- (b) information on the arms of category V of Schedule I or replicas of firearms or air weapons to be manufactured, including types and quantities;
- (c) proof that the company meets the standards for protection of proprietary and classified information, as applicable; and
- (d) information on foreign control and/or ownership in the applicant company, as applicable.

The company is also required to provide -

- (e) the identity of the company's officers;
- (f) the identity of the person who will be responsible for the day to day management of the manufacturing facility (responsible person); and
- (g) proof of the identity of the responsible person, including name, physical address and recent photograph.

Form A - 8

Part I ? Form of application for an arms license in Form VIII for arms and ammunition dealers

(See rule 73)

1.
Name of the applicant
2.
Nomenclature
Company/ Individual
3.
Business Address (Shop)
Telephone
Mobile No.
E-mail
4.
Name of the responsible person
5.
Category of license applied for ?
Dealer License
Deposit of Arms

6.

Description of firearms to be sold or kept for sale

7.

Description of ammunition to be sold or kept for sale

8.

Description of arms and ammunition to be deposited under section 21 of the Act or for safe custody under rule 48

Declaration:

I, _____, the Prop./Partner/Director/Responsible Person of _____ (company name), hereby declare that the above particulars given in the application are true, complete and correct to the best of my knowledge and belief. I understand that in the event of any information being found false or incorrect at any stage, I as well as the company are liable to be proceeded against and action taken under the relevant provisions of the Arms Act, 1959, the Arms Rules, 2016, and other central enactments or the law for the time being in force.

Place _____

Date _____

Signature of the applicant

Warning:

Suppression of any factual information or furnishing of any false or wrong information in the Application Form in violation of arms rules will render the applicant liable for punishment under Section 30 of the Arms Act, 1959.

List of documents to be submitted at the time of application and subsequent renewal thereof -

(1)

A written declaration along with certified copies of drawings stating that the applicant has facilities available of a strong room for the safe custody of the firearms and ammunition;

(2)

A written undertaking in support of the application with specific reference to the steps which are contemplated in connection with the safe custody of the firearms and ammunition including provision for entry access control, close circuit television system, security guard, firefighting devices etc.;

(3)

Verification forms containing the names and addresses of every person authorized to trade on behalf the dealer applicant at the premises, who must possess the requisite training for safe handling of firearms as specified in rule 10.

Form A - 8

Part II ? Form of application for an arms license in Form VIII-A for Air weapon dealers

(See rule 84, 85)

1.

Name of the applicant

2.

Nomenclature

Company/ Individual

3.

Business Address (Shop)

Telephone

Mobile No.

E-mail

4.

Name of the responsible person

5.

Description of air weapons to be sold or kept for sale

6.

Description of ammunition for air weapons to be sold or kept for sale

Declaration:

I, _____, the Prop./Partner/Director/Responsible Person of _____ (company name), hereby declare that the above particulars given in the application are true, complete and correct to the best of my knowledge and belief. I understand that in the event of any information being found false or incorrect at any stage, I as well as the company are liable to be proceeded against and action taken under the relevant provisions of the Arms Act, 1959, the Arms Rules, 2016, and other central enactments or the law for the time being in force.

Place _____

Date _____

Signature of the applicant

Warning: Suppression of any factual information or furnishing of any false or wrong information in the Application Form in violation of arms rules will render the applicant liable for punishment under Section 30 of the Arms Act, 1959.

Form A - 9

Form of application for an arms license in Form IX or IX-A for accredited gunsmiths

(See rules 77 and 78)

1.

Name of the applicant

2.

Nomenclature

Company/ Individual

3.

Business Address (Shop/ Factory)

Telephone

Mobile No.

E-mail

4.

Name of the responsible person

5.

Professional qualification of the individual applying to act as a gunsmith or of the employees of the company applying for a gun smith license (applicable for a license in Form IX only)

6.

Description of firearms to be converted, shortened or repaired(major repair under license in Form IX)

7.

Description of firearms to be repaired(minor repair under license in Form IX-A)

7.

Description of firearms or parts of firearms to be stored

8.

Description of ammunition to be stored for testing

Declaration:

I, _____, the proprietor/ partner/ director/ responsible person of _____ (company name), hereby declare that the above particulars given in the application are true, complete and correct to the best of my knowledge and belief. I understand that in the event of any information being found false or incorrect at any stage, I as well as the company are liable to be proceeded against and action taken under the relevant provisions of the Arms Act, 1959, the Arms Rules, 2016, and any other law for the time being in force.

Place _____

Date _____

Signature of the applicant

Warning: Suppression of any factual information or furnishing of any false or wrong information in the Application Form in violation of arms rules will render the applicant liable for punishment under Section 30 of the Arms Act, 1959.

List of documents to be submitted at the time of application and subsequent renewal thereof -

(1)

A written declaration along with certified copies of drawings stating that the applicant has facilities available of a strong room for the safe custody of the firearms and ammunition;

(2)

A written undertaking in support of the application with specific reference to the steps which are contemplated in connection with the safe custody of the firearms and ammunition including provision for entry access control, close circuit television system, security guard, firefighting devices etc.;

(3)

Verification forms containing the name and address of every person authorized to carry out conversion, shortening or repair (major) on behalf the gunsmith at the premises, who must possess the requisite qualifications as specified under rule 78.

[Form A - 10]

[Substituted by Notification No. G.S.R. 1079(E), dated 1.11.2018 (w.e.f. 15.7.2016).]

Form of Application For An Arms Licence In Form X For Import, Transport In Transit and Import For Re-Export

(See rules 87, 88, 89, and 92)

Identity of the Applicant

(1)

(2)

(3)

1.

Name of the applicant

2.

UIN

3.

Description of arms license already held and number thereof

4.

Nomenclature

Individual/ Company

5.

Business Address

Telephone

Mobile No.

E-mail

6.

Name of the responsible person

7.

Category of license applied for ?

Import

Transport in Transit

Import for Re-Export

8

Category of arms or ammunition as per Schedule I for which the license is sought

9.

Number of packages

10.

Description and quantity of arms forming part of the consignment for which the license is sought

HS Code

11.

Description and quantity or weight of ammunition

forming part of the consignment for which the license is sought

12.

Port of Import

13.

Port of Export

14.

Port of Import and Re-Import

(with route of transport)

15.

Place of destination and route of consignment to
be imported

16.

Estimated time likely to be taken for the
shipment/journey

17.

Name, description and address of consignee for
Import

Declaration:

I, _____, the proprietor/partner/director/ responsible person of _____ (the company), hereby declare that the above particulars given in the application are true, complete and correct to the best of my knowledge and belief. I understand that in the event of any information being found false or incorrect at any stage, I personally as well as the company are liable to be proceeded against and action taken under the relevant provisions of the Arms Act, 1959, the Arms Rules, 2016, and other central enactments or the law for the time being in force.

Signature of the applicant

Place _____

Date _____

[Form A – 10A]

[Inserted by Notification No. G.S.R. 1079(E), dated 1.11.2018 (w.e.f. 15.7.2016).]

Form of Application For An Arms Licence In Form X For Export, Export for Re-Import and Transport

(See rules 87,90, 91 and 92)

Identity of The Applicant

(1)

(2)

(3)

1.

Name of the applicant

2.

UIN

3.

Description of arms license already held and
number thereof

4.

Nomenclature

Individual/ Company

5.

Business Address

Telephone

Mobile No.

E-mail

6.

Name of the responsible person

7.

Category of license applied for ?

Export

Export for Re-import and Transport

8

Category of arms or ammunition as per Schedule I
for which the license is sought

9.

Number of packages

10.

Description and quantity of arms forming part of
the purchase order for which the licence is sought

HS Code

11.

Description and quantity or weight of ammunition
forming part of the purchase order for which the licence is
sought

HS Code

12.

Port of Import

13.

Port of Export

14.

Port of Import and Re-Import

15.

Place of dispatch and route of consignment to be
exported

16.

Estimated time likely to be taken for the
shipment/journey

17.

Name, description and address of consignee for
export

Declaration:

I, _____, the proprietor/partner/director/ responsible person of _____ (the company), hereby declare that the above particulars given in the application are true, complete and correct to the best of my knowledge and belief. I understand that in the event of any information being found false or incorrect at any stage, I personally as well as the company are liable to be proceeded against and action taken under the relevant provisions of the Arms Act, 1959, the Arms Rules, 2016, and other central enactments or the law for the time being in force.

Signature of the applicant

Place _____

Date _____

Form A-11

Form of application for journey license in Form XI for carrying of arms and ammunition

Application for Journey License

1.

Name

2.

Parent/ Spouse Name

3.

UIN

4.

Address as per license in Form III

Mobile No.

5.

License No.

6.

Validity of the license up to

DD/MM/YYYY

7.

Area validity as per license in Form III

8.

Mode of Journey (Road/ Rail/ Air)

9.

Names of States likely to be visited during the journey

10.

Period which the journey is likely to occupy

11.

Description of arms endorsed on license which the applicant wishes to carry during journey

Weapon Type -

Weapon Number -

12.

Description of ammunition endorsed on license which the applicant wishes to carry during journey

Declaration:

I hereby declare that the above particulars given in the application are true, complete and correct to the best of my knowledge and belief. I understand that in the event of any information being found false or incorrect at any stage, I am liable to be proceeded against and action taken under the relevant provisions of the Arms Act, 1959, the Arms Rules, 1962, and other central enactments or the law for the time being in force.

Signature/ Thumb - impression of applicant

Place

Date

Form A - 12

Form of application for transport license in Form XII

(See rule 96)

Application for Transport License

1.

Consignor details

(Manufacturer/ Dealer etc.)

UIN

Address as per license

License No.

Validity of the license up to

DD/MM/YYYY

2.

Consignee details

UIN

Address as per license

License No.

Validity of the license up to

DD/MM/YYYY

3.

Place of dispatch

4.

Place of destination

5.

Mode of transport (Road/ Rail/ Air)

By hand personally

6.

Names of States likely to be covered during transportation

7.

Probable period of transportation

Maximum three months

8.

Description of arms to be transported

Weapon Type ?

Weapon Number ?

9.

Description of ammunition to be transported

10.

Details of the previous sanction of the concerned authority

required under Rule 98

Declaration:

I hereby declare that the above particulars given in the application are true, complete and correct to the best of my knowledge and belief. I understand that in the event of any information being found false or incorrect at any stage, I am liable to be proceeded against and action taken under the relevant provisions of the Arms Act, 1959, the Arms Rules, 2016, and other central enactments or the law for the time being in force.

Signature/ Thumb - impression of the applicant

Place

Date

Form A - 13

Form of application for an arms license in Form XIV for transporters license

(See rule 101)

1.

Name of the applicant

2.

Nomenclature

Individual/ Company

3.

Date of inception of transportation business

4.

Registered Office Address

Telephone

Mobile No.

E-mail

5.

Name of the responsible person

6.

Description of firearms to be transported

7.

Description of ammunition to be transported

8.

Number of branch offices or representative offices in India

9.

Number of employees engaged in transportation business

10.

Particulars of the fleet maintained by the transporter

Declaration:

I, _____, the Proprietor/partner/director/responsible person of _____ (company name), hereby declare that the above particulars given in the application are true, complete and correct to the best of my knowledge and belief. I understand that in the event of any information being found false or incorrect at any stage, I personally as well as the company are liable to be proceeded against and action taken under the relevant provisions of the Arms Act, 1959, the Arms Rules, 2016, and other central enactments or the law for the time being in force.

Place _____

Date _____

Signature of the applicant

Form A - 14

Form of application for a license in Form XV for firearm free zone

(See rule 46)

1.

Name of the applicant

2.

Nomenclature

Individual/ Company/ Others

3.

Date of inception of business

4.

Nature of business or activity carried out

4.

Address

Telephone

Mobile No.

E-mail

5.

Name of the responsible person in case the applicant is a company

6.

Description of the Area to be declared as Firearm Free Zone

(enclose site plan and mark in red the area to be declared as firearm free zone)

7.

Reasons for applying for the premises to be declared as fire-arm free zone

1.

2.

3.

8.

Number of surveillance staff employed at the premises to be declared as firearm free zone

Declaration:

I, _____, the proprietor/partner/director/responsible person of _____ (company name), hereby declare that the above particulars given in the application are true, complete and correct to the best of my knowledge and belief. I understand that in the event of any information being found false or incorrect at any stage, I personally as well as the company are liable to be proceeded against and action taken under the relevant provisions of the Arms Act, 1959, the Arms Rules, 2016, and other laws for the time being in force.

Place _____

Date _____

Signature of the applicant

Supplementary Forms

Form B-1

Application for registration with an outside licensing authority

(see rule 17)

Part A ? {}

| -

| Identity of the Applicant

| -

| 1.

| UIN

|

| -

| 2.

| Name

|

| -

| 3.

| Parent/ Spouse Name

|

| -

| 4.

| Place of birth (Nativity)

|

| -

| 5.

| Date of birth in Christian era

|

| -

| in figures DD/MM/YYYY

|

| -

| In words

|

| -

| 6.

| Present Address

|

| -

|

|

| -

| Telephone (Office/Residence)

|
|-
| Mobile No.
|
|-
| E-mail
|
|-
| Nearest Police Station
|
|-
| 7.
| Address as appearing on the license
|
|-
| Nearest Police Station
|
|-
| 8.
| Occupation
|
|-
| 9.
| Period of stay in the local jurisdiction
|
|}
Part B ? {
|-
| Existing license particulars and weapon
endorsements
|-
| 10.
| License Number
|
|-
| 11.
| Issuing Authority
|
|-
| 12.
| Last Renewing Authority
|
|-
| 13.
| Date of expiry
|
|}
14.
Area Validity
15.
Weapons Endorsed

Weapon 1

Weapon 2

Weapon 3

Type [Rifle/ Shot Gun/ Hand Gun (Rev/ Pistol)]

Bore

Weapon Number

16.

Ammunition allowed

Cartridges Gun Powder/ Percussion Caps

17.

Mention restriction on sale of weapon, if any

18.

Details of additional licensees under rule 20, if any

Additional Licensee No.1

Name

Father's/ Spouse Name

License No.

Additional Licensee No. 2

Name

Father's/ Spouse Name

License No.

Part C ? {

|

| Other Particulars of the Licensee

|

| 19.

| Whether the licensee, since the last renewal/ issuance of license has been ?

|

|

| (a)

| convicted - if so, the offence (s), the sentence and date of sentence

|

|

| (b)

| ordered to execute a bond under Chapter VIII of Code of Criminal Procedure, 1973 (2 of 1974) for keeping the peace or for good behavior - if so, ? when and for what period

|

|

| (c)

| prohibited under the Arms Act, 1959, or any other law from having the arms/ ammunition

|

|

| 20.

| Whether -

|

|

| (a)

| the applicant's license since last renewal/ issuance was ever
suspended or canceled/ revoked - if so, when and by whom and on
what account

|

|-

| (b)

| any other member of the applicant's
family is in possession of any arms license, if so, particulars
thereof

(other than additional licenses vide para 18)

|

|-

| (c)

| the applicant has a safe place to keep the arms

|

|}

Declaration:

I hereby declare that the above particulars given in the application are true, complete and correct to the best of my knowledge and belief. I understand that in the event of any information being found false or incorrect at any stage, I am liable to be proceeded against and action taken under the relevant provisions of the Arms Act, 1959, the Arms Rules, 2016, and laws for the time being in force.

Signature/ Thumb - impression of applicant

Place

Date

Warning: Suppression of any factual information or furnishing of any false or wrong information in the Application Form in violation of arms rules will render the applicant liable for punishment under Section 30 of the Arms Act, 1959.

Form B-2

Application for allied services related to licenses issued in Form II, III and IV

Part A ? { |

|-

| Identity of the Licensee

|-

| 1.

| Name of the licensee

|

|-

| 2.

| Parent/ Spouse Name

|

|}

3.

Present Address

District

State

Telephone Number

Office

Residence

Mobile Number

Nearest Police Station

4.

UIN

5.

License Number

Date of Expiry

DD/MM/YYYY

6.

Area validity of the license

7.

Firearms endorsed on the license

Weapon 1

Weapon 2

Weapon 3

Type

(Rifle/ Shot Gun/ Hand Gun)

Bore/ Caliber

Weapon Number

Part B ? { |

| -

| Acquisition of a Firearm

| -

| 1.

| Type of firearm to be acquired

(Rifle/ Shot Gun/ Hand Gun/ Others)

|

| -

| 2.

| Reason for acquisition of firearm

|

| -

| 3.

| Claims for special consideration for acquisition of additional
firearm

|

| }

Part C ? { |

| -

| Endorsement of

firearms on the license

(see rule 18)

| -

| A

| Acquisition of firearm

|

| -

| (a)

| Validity of permission to acquire

| DD/MM/YYYY

| -

| (b)

| Date of acquisition of firearm

| DD/MM/YYYY

| -

| B

| Acquisition from manufacturer or arms dealer

|

| -

| (a)

| Name of the vendor

|

| -

| (b)

| UIN of the vendor

|

| -

| (c)

| Invoice number

|

| -

| (d)

| Invoice date

| DD/MM/YYYY

| -

| C

| Acquisition from another licensee

|

| -

| (a)

| Name of the transferor licensee

|

| -

| (b)

| Parent/Spouse Name

|

| -

| 9

| UIN

|

| -

| 10

| License number

|

| -

| 11

| Validity period of license

| DD/MM/YYYY

| -

| 12

| Details of permission to sell obtained by transferor

| DD/MM/YYYY

| -

| Name of the licensing authority

|

| -

| Reference No.

|

| -

| Date

| DD/MM/YYYY

| -

| Expiry date (if any)

| DD/MM/YYYY

| -

| D

| Details to be furnished in case acquisition of
firearm is made from any place not covered under the area
validity of the license of the applicant

|

| -

| 13

| Reference No. of NOC issued by the licensing authority under
rule 98

|

| -

| Date of NOC

| DD/MM/YYYY

| -

| Validity of NOC

| DD/MM/YYYY

| -

| 14

| Transport License Number Issued in Form XII

|

| -

| Name of the issuing authority of transport license

|

| -

| Date of transport license

| DD/MM/YYYY

| -

| Validity period of transport license

| DD/MM/YYYY

| -

| E

| Details of firearms to be endorsed

|

| -

| 15

| Type of firearm

(Hand Gun/ Shot Gun/ Rifle)

|

| -

| Make of firearm

|

| -

| Caliber/ bore

|

| -

| Serial Number of firearm

|

| -

| List of documents to be enclosed

| -

| 1

| Original Invoice (refer Para B)

| -

| 2

| Sale confirmation from the transferor licensee (refer Para C)

| -

| 3

| No objection certificate and transport license (refer Para D)

| -

| 4

| Coloured photograph of the firearm acquired showing the serial number of the firearm (refer Para E)

| -

| Note: The licensing authority may require the licensee to get the physical inspection of the firearm before endorsement of the same on the license.

| }

Part D ? { |

| -

| Permission to sell or transfer firearm or ammunition under section 5 of the Arms Act, 1959

| -

| 1.

| Details of firearm to be sold or transferred

|

| -

| Type of firearm

(Rifle/ Shot Gun/ Hand Gun)

|

| -

| Bore/ Caliber

|

| -

| Weapon Number

|

| -

| 2.

| Details of ammunition to be sold or transferred

|

| -

| Bore/ caliber of ammunition

|

| -

| Quantity of ammunition

|

| -

| 3.

| Reason for sale or transfer of
firearm or ammunition

(defective condition of the firearm/ economic reason/ any
other reason)

|

| -

| 4.

| Particulars of the purchaser or transferee to whom the firearm
or ammunition is to be sold or transferred

|

| -

|

| If to be sold or transferred to another licensee

|

| -

| (a)

| Name of the prospective buyer or transferee

|

| -

| (b)

| Address of the prospective buyer or transferee

|

| -

| (c)

| UIN

|

| -

| (d)

| License Number

|

| -

| (e)

| Validity of license

| DD/MM/YYYY

|

| -

| (f)

| Validity of purchase period

| DD/MM/YYYY

|

| -

| If to be sold to an authorised arms and ammunition dealer

|

| -

| (a)

| Name of the dealer

|

| -

| (b)
| Address of the dealer
|
|-
| (c)
| UIN
|
|-
| This may be treated as the mandatory notice under clause
(b)
of sub-section (2) of section 5 of the Arms Act, 1959
|}
Part E ? {
|-
| Deletion of Firearms or Ammunition from the
license
|-
| 1.
| Detail of firearm sold or transferred
|
|-
| Type of firearm
(Rifle/ Shot Gun/ Hand Gun)
|
|-
| Bore/ Caliber
|
|-
| Weapon Number
|
|-
| 2.
| Details of ammunition sold or transferred
|
|-
|
| Bore/ caliber of ammunition
|
|-
| Quantity of ammunition
|
|-
| 3.
| Details of permission to sell granted
|
|-
| Reference Number
|
|-
| Date
| DD/MM/YYYY

| -

| 4.

| Particulars of the purchase or transferee

|

| -

| (a)

| In case sold to an arms dealer

|

| -

| Name and address of the arms and ammunition Dealer

|

| -

| UIN

|

| -

| Serial No. of certificate of acquisition

|

| -

| Date of the certificate of acquisition

| DD/MM/YYYY

| -

| (b)

| In case sold to another licensee

|

| -

| 5.

| Name of the purchaser or transferee

|

| -

| UIN

|

| -

| License number

|

| -

| Validity of license

|

| -

| Validity of permission to acquire possessed by the transferee

| DD/MM/YYYY

| -

| List of documents to be enclosed

| -

| 1.

Acquisition certificate of the arms dealer; or

| -

| 2. Written

confirmation from the purchaser or transferee along with the
signed copy of his license

| }

Part F ? { |

|-

| Extension of time limit for acquisition of firearm
(see rule 18)

|-

| 1.

| Date of grant of permission to acquire firearm
| DD/MM/YYYY

|-

| 2.

| Date of expiry of permission to acquire firearm
| DD/MM/YYYY

|-

| 3.

| Period of validity of the license
| DD/MM/YYYY

|-

| 4.

| Reasons for not been able to acquire the firearm within the
stipulated period

|

|-

| 5.

| Details of the firearm to be acquired for which extension is
being sought

|

|-

| 6.

| Any other claims for special consideration

|

|}

Declaration:

I hereby declare that the above particulars given in the application are true, complete and correct to the best of my knowledge and belief. I understand that in the event of any information being found false or incorrect at any stage, I am liable to be proceeded against and action taken under the relevant provisions of the Arms Act, 1959, the Arms Rules, 2016, and other laws for the time being in force.

Signature/ Thumb - impression of applicant

Place

Date

Warning: - Suppression of any factual information or furnishing of any false or wrong information in the Application Form in violation of arms rules will render the applicant liable for punishment under Section 30 of the Arms Act, 1959.

Form B-3

Application for addition/ deletion of retainer
(See rule 22)

For companies

To be filled in separately for every addition
or deletion

1.

Name of the licensee company

2.

UIN

3.

License number

4.

Validity of the license

DD/MM/YYYY

5.

Details of weapons endorsed on the license

1.

2.

3.

6.

Retainer details

(a)

Name of the retainer

(b)

Parent/ Spouse Name

(c)

Date of birth

DD/MM/YYYY

(d)

Date since employed with the organization

DD/MM/YYYY

(e)

Present address

(f)

Nearest Police Station

(g)

Tele/ Mobile Number(s)

(h)

Permanent address

(i)

Nearest police station

(Signature the licensee)

Date_____

(Signature the retainer)

Form B-4

Application for additional licensees under license in Form III

(See rule 20)

(to be filed along with Form A-1)

Part A ? {

|-

| Identity of the Parent Licensee

|-

| 1.

| Name of the licensee

|

|-

| 2.

| Parent/ Spouse Name

|

| -
| 3.
| Present address
|
| -
| District
State
Telephone Number
Office
Residence
-
Mobile Number
-
Nearest Police Station
-
4.
UIN
-
5.
License number
Date of expiry
DD/MM/YYYY
-
6.
Area validity of the license
-
7.
Firearms endorsed on the license
Weapon 1
Weapon 2
Weapon 3
-
Type
(Rifle/ Shot Gun/ Hand Gun)
-
Bore/ Caliber
-
Weapon Number

|
|
|}
Part B ? {
|-
Identity of the First Additional Licensee
1.
Name of the first additional licensee
-
2.
Parent/ Spouse Name
-
3.
Relationship with parent licensee
-
4.
Present address
-
District
State
-
Telephone Number
Office
Residence
-
Mobile Number
-
Nearest Police Station
-
5.
Firearms endorsed on the license
Weapon 1
Weapon 2
Weapon 3
-
Type
(Rifle/ Shot Gun/ Hand Gun)
-
Bore/ Caliber

|
|-
| Weapon Number
|
|
|
|}
Part C ? {
|-
Identity of the Second Additional Licensee
1.
Name of the second additional licensee
-
2.
Parent/ Spouse Name
-
3.
Relationship with parent licensee
-
4.
Present address
-
District
State
-
Telephone Number
Office
Residence
-
Mobile Number
-
Nearest Police Station
-
5.
Firearms endorsed on the license
Firearm 1
Firearm 2
Firearm 3
-
Type
(Rifle/ Shot Gun/ Hand Gun)

| -
| Bore/ Caliber
|
|
|
| -
| Weapon Number
|
|
|
| }
}

Declaration -

I, hereby declare that, the person(s) being appointed as additional licensee reside with me at the my registered address as mentioned in my license in Form III and fall within the definition of close relatives as given under rule 20. In case any of the additional licensees shifts temporarily or permanently from my premises, it will be my responsibility to furnish the information to the licensing authority for cancellation of the license of such additional licensee.

Place

(Signature of the parent licensee)

Date

Form S-1

Standard format of training certificate

[See rule 10(1)]

To

The Licensing Authority,

Training Certificate

This is to certify the person whose particulars are furnished below has completed the training as stipulated under rule 10(1) of the Arms Rules, 2016

1

Name of the person

2

Father's Name/ Spouse Name

3

Residential address

4

Age and date of birth

5

Training period undergone

From __/__/__

To __/__/__

6

Details of firearms for which
training has been imparted
(please specify)

1. Handguns

2. Rifle

3. Shotguns

4. Air

weapons

7

Purpose of training

(please specify)

1. Application for arms license
2. Employ with arms dealer
3. Employ with manufacturer
4. Others

The training curriculum included the following modules:

- a) basic arms and ammunition safety practices, including safe handling and carry procedures;
- b) firing techniques and procedures;
- c) care of arms and ammunition;
- d) safe storage and transportation of arms and ammunition.

The person named above was also imparted reasonable working knowledge of important provisions of the Arms Act, 1959 and Arms Rules, 2016 relevant to him and made to understand responsibilities of the arms owner or user, particularly in relation to children.

Date

Place

Signatures of the

Certifying Person

Form S-2

Standard format of undertaking for safe storage of firearms

[See rule 10(4)]

To

The Licensing Authority,

Undertaking

This is to solely affirm and declare that -

1. I have applied for grant of a new arms license/ renewal of arms license (bearing number _____ and my UIN is _____)
2. I undertake to practice safe storage of the firearm (in knocked down condition) when I am not carrying the firearm(s) with me.
3. I undertake to educate the children about the dangers of interacting with arms and ammunition.
4. I have the capacity to store the firearm safely and securely in a safe or steel almirah in order to minimize the risk that it could be stolen or accessed by someone else.

It is hereby solely affirmed that the declaration made above is true to the best of my knowledge and belief and if at any subsequent date, if any of the said declarations is found false or incorrect, I shall be liable for the same including cancellation or revocation of my license and subject to penal provisions under the Arms Act, 1959.

Place:

(Signatures of the Applicant/ Licensee)

Date:

Note: Enclose proof of safe storage as mentioned at S.No. 4

Form S-3

Standard format of medical certificate

[See clause (g) of sub-rule (4) of rule 11]

(On the letter head of the medical practitioner)

This is to certify that I have carefully examined the person whose particulars are furnished below -

1

Name of the
person examined

2

Father's

Name/ Spouse Name

3

Residential
address

4

Age and date
of birth

5

Height

6

Weight (in

Kgs)

7

Blood

pressure (please specify)

8

Deformity, if any

(particularly

in upper limbs)

9

Any other

observation

On the basis of examination, it is certified that the person examined as mentioned in column 1 above -

1. is in good physical health and is free from any physical deformity;

2. has been found to be of stable mental condition and is not inclined to violence;

3. has been found not dependent on any substance which has an intoxicating or narcotic effect.

Signature of the person examined named in column (1) _____

Signature of the medical practitioner _____

Registration Number _____

Seal

Form S-4

Standard format of police report

(See rule 14)

Draft Covering Letter

Office of the DM/ Commissioner of Police

Ref. No. _____

Date : _____

To

The Station House Officer,

Police Station _____,

_____.

Sub. : Report under section 13(2) of Arms Act, 1959 of the officer in charge of the nearest police station (of present address of the applicant) on application for grant of arms license or renewal of an arms license

S.No.

Particulars

Contents

1

Name of the applicant

Mr./ Mrs./ Messrs

2

Nature of license applied for (fresh applications)

3

License No.

(renewal application)

4

Address of the applicant

Note: As per provisions of Section 13(2) of Arms Act, 1959, on receipt of an application, the licensing authority shall call for the report from the officer-in-charge of the nearest police station on the application and such officer shall send his report within the prescribed time. Accordingly the report be sent in the format attached here within 30 days.

For DM/CoP

Enclosures:

Copy of application form (original)/renewal form along with enclosures

Antecedent Verification Report

(To be Filled in by the Police Department)

1.

Name of the applicant

2.

Father/ Spouse Name

3.

Present address

Nearest police station of the present address

4. (a)

(b)

(c)

Whether the applicant has ever been convicted?

Yes

No

If so, the offence(s) the sentence and date of sentence

Ordered to execute a bond under Chapter VII of Code of Criminal Procedure, 1973 (2 to 1974) for keeping the peace or for good behavior.

Yes

No

If so, when and for what period?

Prohibited under the Arms Act, 1959, or any other law from acquiring, having in his possession or carrying any arms or ammunition

If yes, the details thereof

5.

Has the applicant any serious enmity or quarrel which is likely to lead to a breach of peace? If yes, Give details

Yes

No

6.

Has the address and date of birth of the applicant been verified? Give details.

Yes

No

7.

Has the profession/ business of the applicant been verified? Give details.

Yes

No

8.

Is any complaint registered against applicant in the Police Station? If so, give details.

Yes

No

9.

Is the applicant involved in any criminal case? If so, give details.

Yes

No

10.

Has applicant been arrested in any criminal case? If so, give details.

Yes

No

11.

Is applicant's name enlisted in police station's bad character register? If so, give details according to the records of police station?

Yes

No

12.

Is applicant's name appears in any case registered by other department of Government of India such as CBI, Narcotics Control Bureau, DRI, Enforcement Directorate etc. which finds mention in the Daily Diary Register of the police station (summons, warrants etc.). If so, give details.

Yes

No

13.

Has the applicant registered a complaint in Police Station regarding threat to life? If so, give details.

Yes

No

14.

Detail of any political or communal organization of which the applicant is a member.

Certified that, I have checked the contents of the application form for grant of arms license submitted by the applicant.

Dated:

Signatures

SHO

Police

Station

IV

(See rule 27)

Table A

Fees payable for licenses

Part I

Licenses issued Under Section 3 for
Acquisition and Possession

Sr. No.

License Form No.

License Fee at the time of grant of license((in Rs.)

Renewal fee for each subsequent year(in Rs.)

1

2

3

4

1.

I

2000

1000

2.

II

1000

1000

3.

III, IV, V

(a)

Handguns ? Revolvers/ Pistols

(both restricted or permissible)

1000

500

(b)

Centre fire rifles (semi-automatic) and any other restricted firearm of category I(b) or I(c)

1000

1000

(c)

Breach loading centre fire rifles

(not semi-automatic)

1000

500

(d)

.22 bore rim-fire Rifles

(including semi-automatic)

1000

500

(e)

Smooth bore breech loading shotguns

(including semi-automatic)

1000

500

(f)

Air Weapons including air rifles

and air guns having muzzle energy exceeding 20 joules or 15

ftlbs. or bore exceeding 0.177" or 4.5 mm

Firearm replicas

Electronic disabling devices having

firing range of less than 15 feet

Paint ball markers or guns

Blank firing firearms

Muzzle Loading (ML) Guns

Accessories for any firearms designed or adapted to diminish the noise or flash caused by the firing thereof

1000

500

(g)

Sword, bayonet, dagger and spear lance.

500

100

(h)

Weapons of category V of Schedule I other than those mentioned

in (g)

500

100

Part II

Other Types of Licenses

Sr. No.

Form No.

License Fee at the time of grant of license(in Rs.)

Renewal fee for each subsequent year wherever applicable(in Rs.)

1

2

3

4

4.

III-B

Permits to retainers of companies
(for each entry of addition/ deletion)

1000

N/A

5.

V-B

Permits to members of rifle associations/ clubs

-

N/A

6.

VI

Temporary export/ import licenses
to tourists/ sports persons/ others
(for each firearm)

1000

N/A

7. [

[Substituted by Notification No. G.S.R. 1342(E), dated 27.10.2017 (w.e.f. 15.7.2016).]

VII

Manufacture and Proof Test

I

Firearms - Annual Licensed Capacity

(a)

Not exceeding 1000 units

Rs. 5000

N/A

(b)

More than 1000 units but not exceeding 10000 units

Rs. 15000

N/A

(c)

More than 10000 units

Rs. 5000

N/A

II

Ammunition - Annual Licensed Capacity

(a)

Not exceeding 1 lac cartridges

Rs. 5000

N/A

(b)

More than 1 lac cartridges but not exceeding 10 lac cartridges

Rs.15000

N/A

(c)

More than 10 lac cartridges

Rs. 50000

N/A

8.

VII-A

Manufacture of Category V arms of Schedule I (arms other than firearms)

Rs. 5000

N/A

9.

VII-B

Manufacture of replica of firearms including of antique muzzle loading weapons and air weapons including air rifles/ air guns

Rs. 5000

N/A

10.

VII-C

Manufacture of air weapons

Rs. 5000

N/A]

11.

VIII

Arms and ammunition dealers

2000

1000

12.

VIII-A

Air Weapons Dealers

1000

500

13.	
IX	
Gunsmiths	
(for conversion and major repairs)	
5000	
2000	
14.	
IX-A	
Gunsmiths	
(for carrying out minor repairs)	
2000	
1000	
15. [	
[Substituted by Notification No. G.S.R. 1342(E), dated 27.10.2017 (w.e.f. 15.7.2016).]	
X	
[X and X-A Composite Import or Export licence for arms and ammunition including parts thereof (for each consignment for the purpose of import and for each purchase order for the purpose of export)]	
[Substituted by Notification No. G.S.R. 1079(E), dated 1.11.2018 (w.e.f. 15.7.2016).]	
5000	
N/A]	
16	
XI	
Journey license	
(for each firearm)	
500	
N/A	
17.	
XII	
Transport license -	
Arms and ammunition (for	
individuals)	
(for each firearm)	
500	
N/A	
Arms and ammunition (for	
dealers and manufacturers)	
(for a single consignment or maximum three part	
consignments with in a period of 3 months under the same	
Transport License)	
2000	
N/A	
Sr. No.	
License Form No.	
License Fee at the time of grant of license(in	
Rs.)	
Renewal fee for each subsequent year wherever	
applicable(in Rs.)	
1	
2	
3	
4	

18.	
XIII	
Transport license for proof testing	
(for each consignment)	
10000	
N/A	
19.	
XIV	
Transporters license	
10000	
2000	
20. [	
[Substituted by Notification No. G.S.R. 1342(E), dated 27.10.2017 (w.e.f. 15.7.2016).]	
XV	
For Import and Transportation for Govt. of Nepal(for each Consignment)	
5000	
N/A]	
Table B	
Fee for allied services	
S.No.	
License Form	
Particulars of service	
Fee Amount (Rs.)	
1	
2	
3	
4	
1.	
III	
Registration with outside licensing authority under rule 17(1)	
500	
2.	
III	
Addition/deletion of retainer under	
rule 22	
(for companies)	
500	
3.	
All	
Change of address within the existing licensing authority	
under rule 17(3)	
500	
4.	
II, III, IV	
Endorsement of firearm under rule	
18	
(for each firearm)	
500	
5.	
II, III, IV	
Addition/deletion of firearm	

(for each firearm)

500

6.

II, III, IV

Transfer of firearms(s) to legal heir under rule 25 (for each firearm)

1000

7.

II, III, V

Change of particulars of 'responsible person' under rule 22(4) by companies

1000

8.

All

Correction of information in license under rule 33

500

9.

All

Grant of NOC under rule 98

500

10.

II, III, IV, V

License book

100

11.

All

Any other service not mentioned above

500

V

(See rule 16)

Prescribed time limits for various services under the rules for licensing authorities under Schedule II

S.No.

Nature of Service

Rule No.

Prescribed Time Period

(1)

(2)

(3)

(4)

1

Police Verification

14

30 days of the receipt of application

2

Grant or refusal of a license

13

60 days of the receipt of police report under rule 13

3

Grant or refusal of additional license

20

30 days of the receipt of police report under rule 13

4	Renewal of license
24	
30 days of the receipt of police report under rule 13	
5	Endorsement of arms or ammunition on license
18	
7 days of the receipt of application of endorsement of weapon	
6	Registration of licensee by an outside licensing authority
17	
15 days of the receipt of application of registration by the new licensing authority	
7	Addition/ Deletion of weapon
18	
7 days of the receipt of application	
8	Permission to sell a firearm
-	
3 days of the expiry of stipulated period under Section 5	
9	Extension of area validity of license
19	
15 days of the receipt of application by the competent authority under Schedule II	
10	Change of Address
17	
15 days of the receipt of application of registration by the licensing authority	
11	Addition/ deletion of retainer of companies
22	
7 days of the receipt of application	
12	Grant of journey license
-	
2 Working days of the receipt of application	
13	Grant of transport license
96	
2 Working days of the receipt of application	
14	Grant of NOC
98	
2 Working days of the receipt of application	
15	Issuance of duplicate booklet
28	
7 days of the receipt of application	

16

Disposal of Appeals

108

60 days of the receipt of appeal

17

Any other service not defined above

7 days of the receipt of application

Related AI tags, queries and research notes

Translation